

2 & 3 GEO. 6. *Aberdeen Corporation* **Ch. iii.**
(General Powers) Order Confirmation Act, 1938.



CHAPTER iii.

An Act to confirm a Provisional Order under the Private Legislation (Provisional Order) (Scotland) Act 1936 relating to the Aberdeen Corporation (General Powers). [22nd December 1938.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has after inquiry held before Commissioners been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936 and it is requisite that the said Order should be confirmed by Parliament: 26 Geo. 5. & 1 Edw. 8. c. 52.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Aberdeen Corporation (General Powers) Order Confirmation Act 1938. Short title.

SCHEDULE.

**ABERDEEN CORPORATION
(GENERAL POWERS).**

Provisional Order to consolidate with amendments the Acts and Orders of or relating to the corporation of the city and royal burgh of Aberdeen in respect of public health and general municipal administration of the city and to confer further powers upon the Corporation with respect thereto to make further provision for the local government health and improvement of the city and for other purposes.

WHEREAS the lord provost magistrates and town council of the burgh of Aberdeen (hereinafter referred to as "the Corporation" and "the city" respectively) are vested with the municipal administration of the city :

And whereas the Acts and Orders relating to the several matters and things in this Order mentioned are very numerous and many of their provisions have been superseded by subsequent legislation and ought to be repealed and it would be of public and local advantage if such of the provisions of the said Acts and Orders as it is deemed expedient to retain were consolidated with certain additions and amendments into one Order :

And whereas it is expedient at the same time to extend as in this Order provided the powers of the Corporation relating to the matters comprised in those enactments :

And whereas it is expedient to make further and better provision with reference to the local government health and improvement of the city and that the powers of the Corporation with respect thereto should be enlarged as hereinafter in this Order provided :

And whereas it is expedient that the other provisions in this Order contained should be enacted :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament

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under the provisions of the Private Legislation Procedure (Scotland) Act 1936 :

Now therefore in pursuance of the powers contained in the said last-mentioned Act the Secretary of State orders as follows :—

PART I.

PRELIMINARY.

1.—(1) This Order may be cited as the Aberdeen Corporation (General Powers) Order 1938 and this Order and the Aberdeen City Acts 1862 to 1937 may be cited together as the Aberdeen City Acts 1862 to 1938. Short title and commencement of Order.

(2) Except as otherwise in this Order expressly provided this Order shall come into operation on the date of the passing of the Act confirming this Order which date is in this Order referred to as “the commencement of this Order.”

2. This Order is divided into Parts as follows :—

Division
of Order
into Parts.

Part I.—Preliminary.

Part II.—Public health—

A.—Infectious diseases and sanitary.

B.—Washhouses &c.

C.—Slaughter-houses cattle markets &c.

D.—Human food.

E.—Stables &c.

Part III.—Cleansing and lighting—

A.—Cleansing and street refuse.

B.—Lighting.

Part IV.—Parks bathing entertainments &c.—

A.—Parks &c.

B.—Entertainment buildings.

C.—Bathing establishment.

D.—Seabeach esplanade &c.

E.—Fair ground on links.

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PART I.
—cont.

F.—Illuminations.

G.—Art gallery.

H.—Public halls &c.

Part V.—General municipal powers—

A.—Markets and fairs.

B.—Weights and measures.

C.—Burial grounds and cemeteries.

D.—Public clocks.

Part VI.—Licensing provisions—

A.—Advertisements and hoardings.

B.—Hackney carriages.

C.—Street porters.

D.—Brokers and pawnbrokers.

E.—Theatres &c.

F.—Window cleaners.

Part VII.—Street traffic.

Part VIII.—Offences and penalties—

A.—Offences in streets &c.

B.—Stolen goods &c.

C.—Nuisances.

Part IX.—Streets buildings &c.

Part X.—Byelaws and jurisdiction—

A.—Byelaws.

B.—Jurisdiction of police court and recovery of penalties.

Part XI.—Miscellaneous.

Interpre-
tation.

3. The following words and expressions in this Order have unless there is something in the subject or context repugnant to such construction the meanings hereby assigned to them (that is to say):—

“Art gallery” means the art gallery and museum situated at Schoolhill and any other building or place established by the Corporation for the purposes of an art gallery or museum in the city together with the buildings sculpture casts models pictures objects of art and

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—cont.

illustrations of science or other collections
furniture and other property of all descriptions
contained therein or connected therewith;

“Bathing establishment” means and includes
the bathing establishment on the esplanade
the bathing establishment in Justice Mill Lane
the bathing pool referred to in the section
of this Order of which the marginal note is
“Power to provide bathing pool on links”
and any swimming pool or bathing establish-
ment hereafter provided by the Corporation
(other than any swimming pool or bathing
establishment provided by the Corporation
as education authority) together with all lands
buildings refreshment rooms furnishings fittings
conveniences appliances plant apparatus and
appurtenances and materials held used and
enjoyed by the Corporation for the purposes
thereof or provided in connection therewith
for the purposes of health recreation and
amusement;

“Burgh fund” means the burgh fund established
under and in pursuance of the City Acts;

“Burial Grounds Acts” means the Burial Grounds 18 & 19 Vict.
(Scotland) Act 1855 and any Act amending c. 68.
or extending the same;

“Carriage” means any vehicle (as defined by this
section) used or capable of being used for the
conveyance of persons;

“Cattle” means and includes any horse mare
gelding foal colt filly bull cow heifer bullock
or calf ass mule sheep lamb goat kid or swine;

“Chief constable” means the chief constable of
the city;

“City” means the city and royal burgh of
Aberdeen;

“City Acts” means the local Acts and Orders
applicable to the city;

“City chamberlain” means the city chamberlain
of the city;

“City engineer” means the city engineer of the
city;

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—cont.

- “Cleansing undertaking” means any land whether situated within or beyond the city owned leased or occupied by the Corporation and used or to be used for the purpose of the collection treatment and disposal of domestic refuse trade refuse manure or other refuse and all depots buildings works animals vehicles apparatus appliances machinery plant materials servitudes rights powers and privileges connected therewith;
- “Common good” means the common good fund of the city;
- “Constable” means the chief constable or any member of the police force of the city;
- “Corporation” means the lord provost magistrates and town council of the city;
- “Daily penalty” means a penalty for every day on which an offence continues after conviction therefor;
- “Department of Health” means the Department of Health for Scotland;
- “Domestic refuse” means the dust ashes rubbish and other refuse arising from or incidental to the normal occupation of any dwelling-house shop office or other similar premises but shall not include manure soot or trade refuse;
- “Duthie Park” means that area of ground described in the agreement set forth in the First Schedule to this Order and vested in the Corporation as a public park for the recreation use and behoof of the inhabitants of the city;
- “Dwelling-house” means and includes all premises used or occupied wholly or partly by any person or persons for residential purposes;
- “Entertainment buildings” means the entertainment buildings provided by the Corporation in pursuance of the repealed Acts and includes the beach ballroom and restaurant the pavilion the shops and all buildings conveniences and facilities connected therewith or provided by or vested in the Corporation under the powers of this Order and

all lands referred to in the section of this Order of which the marginal note is “Entertainment buildings”;

“Esplanade” means the esplanade extending from Bridge of Don to Foot Dee as existing and vested in the Corporation at the commencement of this Order;

“Fish market” means the fish market of the Corporation at Commercial Quay within the city;

“Hackney carriage” means every wheel carriage whatever be its form or construction and however drawn or propelled which shall stand for hire or ply for passengers for hire on any street within the city but shall not include—

(a) a carriage let out to hire as a job carriage by the day or the month or for any longer period or a carriage kept by the owner within his own premises for the purpose of being let out for hire as a job carriage for any shorter period; or

(b) a tramway car a trolley vehicle or a public service vehicle;

“Hazlehead” means that portion of the Hazlehead Estate of the Corporation which is edged green on the plan signed and deposited with the town clerk in pursuance of the repealed Acts;

“Justice Street Market” means the site for market stances off Justice Street established by the Corporation under the repealed Acts together with all appurtenances appliances fittings and apparatus provided in connection therewith;

“Lands” means lands and heritages as defined in the Valuation Acts;

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 as such last-mentioned Act is amended by the Acquisition of Land (Assessment of Compensation) (Scotland) Act 1931;

9 & 10
Geo. 5. c. 57.

21 & 22
Geo. 5. c. 11.

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PART I.
—cont.

“ Lighting undertaking ” means and includes all lands buildings workshops wayleaves lamp-posts standards lamp-brackets lamps cables pipes wires and other apparatus and appurtenances held used or enjoyed by the Corporation for the purposes of lighting the streets of the city together with all servitudes rights powers and privileges connected therewith ;

“ Links ” means the Queen’s Links and the Old Town or King’s Links situated in the city but shall not include the entertainment buildings the esplanade the seabeach the bathing pool authorised by the section of this Order of which the marginal note is “ Power to provide bathing pool on links ” the bathing station belonging to the Corporation situated between the Queen’s Links and the seabeach with the buildings and grounds connected therewith ;

“ Magistrates ” means the lord provost and bailies of the city for the time being and “ magistrate ” means any one of them ;

“ Medical officer ” means the medical officer of health of the city ;

26 Geo. 5. &
1 Edw. 8.
c. lxxvii.

“ Order of 1936 ” means the Aberdeen Corporation (Streets Buildings Sewers &c.) Order 1936 ;

“ Parks ” means and includes any land whether situated within or beyond the city provided owned or leased by the Corporation and used for the purposes of recreation games sports or amusement or as a public playground (other than a school playground) public open space public walk and ornamental or pleasure ground including the links as defined in this section (but shall not include the esplanade or the seabeach) and all buildings works appurtenances apparatus appliances machinery and plant servitudes rights powers and privileges connected therewith ;

“ Procurator-fiscal ” means the procurator-fiscal of the police court of Aberdeen and includes his depute or deputes ;

60 & 61 Vict.
c. 38.

“ Public Health Acts ” means the Public Health (Scotland) Act 1897 and any Acts amending or extending the same ;

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“Public Parks Act” means the Public Parks (Scotland) Act 1878;

“Public service vehicle” has the same meaning as in the Road Traffic Act 1930;

“Repealed Acts” means those provisions of Acts and Orders which are repealed by this Order and includes the provisions of any Act adopted by the Corporation prior to the commencement of this Order the adoption of which is by this Order deemed to have been rescinded;

“Sanitary inspector” means the chief sanitary inspector of the city;

“Seabeach” includes all parts of the beach within the city above and below high-water mark and (where the esplanade exists) between the esplanade and low-water mark;

“Sewer” has the same meaning as in the Order of 1936;

“Sheriff” means the sheriff of Aberdeen Banff and Kincardine and includes his substitutes;

“Sky sign” means any word letter model sign device or representation in the nature of an advertisement announcement or direction supported on or attached to any post pole standard framework or other support wholly or in part over any house building or structure which or any part of which sky sign shall be visible against the sky from any point in any street or public way and includes all and every part of any such post pole standard framework or other support The expression sky sign shall also include any similar device employed wholly or in part for the purpose of any advertisement or announcement on or over any building structure street or public way but shall not be deemed to include (1) any flagstaff or pole or (2) any vane or weathercock unless adapted or used wholly or in part for the purpose of any advertisement or announcement or (3) any sign which is securely fixed to or against but not over any building or which rests immediately upon the top of any

PART I.

—cont.

41 & 42 Vict.
c. 76.

20 & 21

Geo. 5. c. 43.

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PART I.
—cont.

wall or building being of one continuous face and not open work or (4) any such word letter model sign device or representation as aforesaid which relates exclusively to the business of a railway company and which is or may be placed wholly upon or over any railway station yard platform or station approach belonging to a railway company and which is also so placed that it would not fall into any street or public place;

“Street” has the same meaning as in the Order of 1936;

“Superintendent of cleansing” means the superintendent of cleansing of the city;

“Town clerk” means the town clerk of the city;

“Town planning scheme” means the Aberdeen and District Joint Town Planning Scheme 1933;

“Trade refuse” means (a) the refuse arising out of or incidental to the carrying on of any trade business or manufacture including ashes clinker and flue dust from any kiln engine furnace oven or stove used in connection with any industrial or commercial purpose or process (b) packing material and similar refuse from shops warehouses and workshops (c) fruit and vegetable rubbish (d) rubbish containing or comprising waste animal or fish matter (e) garden rubbish and refuse and (f) garage rubbish and debris;

17 & 18 Vict.
c. 91.

“Valuation Acts” means the Lands Valuation (Scotland) Act 1854 and any Act for the time being in force with respect to the valuation of lands and heritages in Scotland;

“Vehicle” except as otherwise in this Order specially provided means any coach public service vehicle motor car cart gig brougham wagon timber-carriage dray truck handcart wheelbarrow handbarrow bicycle tricycle lorry or other vehicle of any description used or capable of being used for the conveyance of goods or persons.

4. In the sections of the Burgh Police (Scotland) Acts 1892 to 1911 which are by this Order brought into force within the city the following expressions shall have the meanings hereinafter respectively assigned to them (that is to say):—

PART I.
—cont.
Expressions in sections of Burgh Police (Scotland) Acts deemed to be adopted by this Order.

“The burgh” means the city;

“The town council” and “the commissioners” mean the Corporation;

“The clerk” means the clerk of the police court;

“Burgh prosecutor” means the procurator-fiscal;

“Police offences” means offences under this Order;

“Broker” has the same meaning as in the Burgh Police (Scotland) Act 1892 but does not include a person whose sole or principal business is that of a dealer in mechanically propelled vehicles and accessories;

55 & 56 Vict.
c. 55.

“The commencement of this Act” means the commencement of this Order;

“Applied for the purposes of this Act” where occurring in section 409 and “applied for the purposes of this Act” where occurring in section 415 of the Burgh Police (Scotland) Act 1892 mean paid into the burgh fund for the general purposes of the City Acts;

“Under this Act” or “under the provisions of this Act” or any similar phrase means under the provisions of the City Acts;

and words and expressions defined in the said Burgh Police (Scotland) Acts 1892 to 1911 shall if and when used in the said sections and when not inconsistent with the above provisions have the same respective meanings as in the said Acts.

5. The Lands Clauses Acts so far as they are applicable for the purposes of and are not inconsistent with or varied by this Order are hereby incorporated with and form part of this Order and this Order shall be deemed to be a special Act within the meaning of those Acts.

Incorporation of Acts.

6. Except where otherwise expressly provided the provisions of this Order shall apply only to the city.

Limits of Order.

PART II.

PUBLIC HEALTH.

A.—Infectious diseases and sanitary.

As to
removal of
certain
infirm and
diseased
persons.

7.—(1) If the medical officer shall certify in writing that any person in the city—

(a) is aged or infirm or physically incapacitated and resides in premises which are insanitary owing to any neglect on the part of the occupier thereof or under insanitary conditions; or

(b) is suffering from any grave chronic disease; and that such person is unable to devote to himself or to receive from persons with whom he resides proper care and attention and that thorough inquiry and consideration have shown the necessity in the interest of the health of such person and in order to prevent injury to the health of or serious nuisance to other persons that he should be removed from the premises in which he is residing the medical officer may make application to the sheriff and the sheriff upon oral proof of the allegations in the certificate and subject to examination of such person by a registered medical practitioner to be nominated by him (if he thinks fit) may make an order for the removal of such person to a suitable hospital or institution or other suitable place provided or arranged for by the Corporation for the detention and maintenance of such person therein for such period (not exceeding three months) as may be determined by the order or such further period or periods (each not exceeding three months) as may be determined by any further order or orders made under and in accordance with the provisions of this section.

(2) The medical officer shall give to any person proposed to be removed under the provisions of this section or to some person being in charge of such person at least three clear days' notice of his intention to make such application and of the time and place when and where such application will be made.

(3) The cost of the removal of any person to a hospital or institution or other place as aforesaid and of his detention and maintenance therein in pursuance of an order made under this section shall be borne by the Corporation.

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PART II.
—cont.

(4) Any person who wilfully refuses to comply with or obstructs the execution of an order under this section shall be guilty of an offence and shall be liable to a penalty not exceeding ten pounds.

(5) At any time after but not before the expiration of six clear weeks from the making of the order an application may be made to the sheriff by or on behalf of the person in respect of whom the order was made for the rescission of the order and the sheriff may make a rescission order accordingly if having regard to the circumstances he is of opinion that it is right and proper that such rescission order should be made.

Such person or other person making the application shall give to the medical officer not less than three clear days' notice of his intention to make the application and of the time and place when and where the application will be made.

(6) The powers of this section shall not be put into operation by the medical officer unless he is authorised by a resolution of the public health committee of the Corporation so to do in any particular case in which those powers are proposed to be exercised.

8.—(1) The owners of all common stairs or common passages and of waterclosets drying rooms and washhouses used in common and of all common ventilating shafts and lift shafts shall keep the same in repair and shall as often as may be required by the Corporation and to their satisfaction repair cleanse and limewash or paint the same and every part and pertinent thereof and all roof-lights fan-lights and windows belonging thereto in such manner and within such time as may be required. Provided that no such owner shall be required under the powers of this section to limewash more often than once in every year or to paint more often than once in three years any such common stair common passage watercloset drying room washhouse used in common common ventilating shaft lift shaft or any part or pertinent thereof or any roof-light fan-light or window belonging thereto.

Common
stairs &c.
to be
cleansed
by owners.

(2) Any such owner failing to comply with the provisions of this section or with any requirement of the Corporation under this section shall be guilty of an offence and shall be liable to a penalty not exceeding

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—cont.

forty shillings and to a daily penalty not exceeding five shillings.

(3) Any person aggrieved by any requirement of the Corporation under this section may appeal to the sheriff against such requirement and the provisions of section 168 (Appeals) of the Order of 1936 so far as applicable shall extend and apply in respect of any such appeal.

Penalty for
not keeping
areas clean.

9. If any area in front of any premises is not regularly and effectually swept and kept clean by the occupier of such premises such occupier shall be guilty of an offence and shall be liable to a penalty not exceeding five shillings.

As to
cleansing
of certain
dwelling-
houses.

10. When the medical officer certifies in writing that any dwelling-house is in an insanitary condition and that the occupier thereof is unable through infirmity or mental incapacity to remedy such condition and that his health is thereby endangered the sheriff may on the application of the Corporation (who shall give the occupier seven days' notice of their intention to make such application) make an order for the removal of such occupier to an institution or other dwelling maintained by the Corporation for such period as the sheriff may by such order direct as being necessary to enable the Corporation to cleanse and disinfect the dwelling-house and the Corporation may carry out the removal and such cleansing and disinfection of the dwelling-house as may be necessary. Provided that upon the completion of such cleansing and disinfection of the dwelling-house the Corporation shall make provision for the return of such occupier to the dwelling-house.

Cleansing of
verminous
persons
and their
clothing.

11.—(1) Where it appears to the Corporation upon a report from the medical officer or from the sanitary inspector that any person or the clothing of any person is verminous then if that person consents to be removed to a cleansing station they may cause him to be removed to such a station and if he does not so consent they may apply to the sheriff and the sheriff if satisfied that it is necessary that such person or his clothing should be cleansed may make an order for his removal to such a station and for his detention therein for such period and subject to such conditions as may be specified in the order.

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(2) Where a person has been removed to a cleansing station in pursuance of the last preceding subsection the Corporation shall take such measures as may in their opinion be necessary to free him and his clothing from vermin.

PART II.
—cont.

(3) The cleansing of females under this section shall be carried out only by a registered medical practitioner or by a woman duly authorised by the medical officer.

(4) Any consent required to be given for the purposes of this section may in the case of a person under the age of sixteen years be given on his behalf by his parent or guardian.

(5) No charge shall be made in respect of the cleansing of a person or his clothing or in respect of his removal to or maintenance in a cleansing station under this section.

(6) The powers conferred on the Corporation by this section shall be in addition to and not in derogation of any power in relation to the cleansing of children which may be exerciseable by them as education authority.

12.—(1) Where it appears to the Corporation that—
(a) any dwelling-house or part thereof or any thing therein is in such a verminous condition that the health of any person is affected or endangered thereby; or

Verminous
articles
to be
purified.

(b) the cleansing or purifying of any such dwelling-house or part thereof or thing therein would tend to prevent or check infectious disease;

the Corporation shall by notice in writing to the owner or occupier as the case may be of such house or part thereof or the owner of such thing require such owner or occupier as the case may be to cleanse or purify such dwelling-house or part thereof or such thing.

(2) Any person to whom notice is so given who fails to comply therewith within the time therein specified shall be guilty of an offence and shall be liable to a penalty not exceeding ten shillings for every day during which he continues to make default and the Corporation may if they think fit cause such article or

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PART II.
—cont.

thing to be cleansed or purified and may recover in a summary manner the expenses incurred by them in so doing from the person in default.

**Buildings
unfit for
occupation.**

13.—(1) In any case where it is certified to the Corporation by the medical officer or the sanitary inspector that any building or part of a building (other than a dwelling-house) is unfit for occupation the Corporation may by an order affixed conspicuously on the building or part of the building declare that such building or part of a building is not fit for occupation and such building or part of a building shall not after a date to be specified in such order be occupied.

(2) Any person who after the date specified in such order lets or continues to let or knowingly occupies or suffers to be occupied such building or part of a building shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings for every day during which such building or part of a building is so let or occupied. Provided always that if at any time after such order is made the Corporation are satisfied that such building has become or been rendered fit for occupation they may revoke such order and such order shall thenceforward cease to operate.

**20 & 21
Geo. 5. c. 40.**

(3) Any person aggrieved by any order of the Corporation under the provisions of this section may appeal to the sheriff in the manner provided by section 20 of the Housing (Scotland) Act 1930 and the provisions of that section so far as applicable shall extend and apply with respect to any such appeal.

**Sanitary
conveni-
ences for
workmen
engaged on
buildings.**

14.—(1) The contractor or builder engaged in or upon the erection of a new building or the construction or reconstruction of any works shall where practicable and if required by the Corporation provide to the reasonable satisfaction of the Corporation and until the completion of any such erection construction or reconstruction maintain such water or other closets and urinals in or in connection with such building or works as may be sufficient for the accommodation of the workmen employed.

(2) Any person who shall offend against this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) Any person aggrieved by any requirement of the Corporation under the provisions of this section may appeal therefrom and the provisions of section 168 (Appeals) of the Order of 1936 shall extend and apply in respect of any such appeal.

PART II.
—cont.

(4) Nothing in this section shall affect the operation of the Factories Act 1937 or any regulation or order made thereunder.

1 Edw. 8. &
1 Geo. 6.
c. 67.

B.—Washhouses &c.

15.—(1) The Corporation may from time to time—

- (a) purchase lease or otherwise provide either within the city or at a reasonable distance therefrom suitable and convenient lands or buildings to be used for public washhouses and public drying grounds;
- (b) fit up such washhouses and drying grounds with all requisite and proper conveniences plant apparatus and materials;
- (c) extend enlarge renew and repair such washhouses and drying grounds;
- (d) discontinue such washhouses and drying grounds; and
- (e) make such reasonable charges in respect thereof as the Corporation may think fit.

Wash-
houses and
drying
grounds.

(2) The Corporation may make such byelaws as they think fit for the use of such washhouses and drying grounds.

C.—Slaughter-houses cattle markets &c.

16.—(1) The Corporation may provide establish improve or extend and may manage and carry on such slaughter-houses and cattle markets within or without the city as they think proper for the purpose of slaughtering cattle or the purchase and sale of cattle together with all such conveniences plant and apparatus as may be necessary for those purposes.

Corporation
may
provide
slaughter-
houses
and cattle
markets.

(2) Part VIII (Acquisition of lands) of the Public Health (Scotland) Act 1897 shall extend and apply with respect to the purchase of lands for the purposes of this section as if those purposes were included among the purposes specified in section 144 of the said Act.

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—cont.

(3) The Corporation may demand and take for the use of any such slaughter-house or cattle market provided by them such reasonable sum as may be agreed on and fixed between the Corporation and the persons using such slaughter-house or cattle market and in case of difference as to the sum to be taken for the use of such slaughter-house or cattle market such sum shall upon the application of either party and after seven days' previous notice to the other party of such intended application be fixed and determined by the sheriff in a summary manner without written pleadings and the decision of the sheriff shall be final.

(4) If the Corporation provide or establish a slaughter-house under the provisions of this section no person shall thereafter slaughter any cattle or scald or dress the carcasses of any slaughtered cattle or cause such slaughtering scalding or dressing to be done within the city elsewhere than within the said slaughter-house.

(5) Any person acting in contravention of the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

(6) The Corporation may make such byelaws as they think fit for the regulation of any slaughter-house or cattle market provided by them under the provisions of this section and for the regulation of the conduct of all persons resorting thereto or carrying on business or employed therein.

Corporation
may close
slaughter-
houses and
knackeries
making
compensa-
tion to
owners.

17. The Corporation may if they think fit shut up and close any existing slaughter-house or knackery or knacker's yard on making compensation where any legal claim for compensation exists to the owners thereof in the manner provided by the Lands Clauses Acts in the case of lands taken otherwise than by agreement. Provided that if the slaughter-house knackery or knacker's yard so shut up and closed is defective or otherwise open to objection on sanitary grounds the arbiter shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in respect of such shutting up and closing.

Byelaws
as to manu-
facture of
fire-lighters
&c.

18. The Corporation may make byelaws for the prevention of fire in connection with the manufacture of fire-lighters or other articles which by reason of the nature of the materials used in their manufacture are

liable to cause fire Provided that nothing in this section shall affect the operation of the Factories Act 1937 or any regulation or order made thereunder.

PART II.
 —cont.

D.—Human food.

19.—(1) The Corporation may make byelaws—

- (i) for securing the observance of sanitary and cleanly conditions and practices in connection with the handling wrapping and delivery of food sold or intended for sale for human consumption and in connection with the sale or exposure for sale in the open air of food intended for human consumption; and
- (ii) with respect to the cleansing within the city of the holds and other parts of fishing vessels and receptacles used in vessels in which fish are kept or deposited prior to landing and boxes containing fish for sale placed in the fish market:

Byelaws with respect to handling wrapping &c. of food and sale of food in open air.

Provided that before making any byelaws under the provisions of paragraph (ii) of this subsection the Corporation shall consult the Aberdeen Harbour Commissioners and shall consider any representations made to them by the said commissioners with respect thereto.

(2) The medical officer the sanitary inspector or any other officer duly authorised by the Corporation in that behalf and showing his authority if required shall be entitled at all reasonable times to enter into and inspect any premises or fishing vessels on which he suspects that there is any contravention of a byelaw made under this section.

(3) Any person refusing such entry or inspection or obstructing any such officer in the execution of his duty shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

20.—(1) Every occupier of any shop or other premises used for the sale preparation or storage of butcher meat poultry game fish butter meal bread or any other article of food which by its nature will be liable to contamination by contact with unclean conditions who does not keep such shop or other premises

Penalty for want of cleanliness in meat and provision shops &c.

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PART II.
—cont.

clean and in good condition shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

(2) Every person who uses any cart basket or other article or thing for the disposal or sale of any article of food which by its nature will be liable to contamination by contact with unclean conditions who does not keep the same clean and in good condition shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

Provisions
as to
rooms
where food
intended
for sale is
prepared
or stored
&c.

21.—(1) Subject to the provisions of this section the following provisions shall have effect in relation to every room in which any food intended for human consumption other than milk is prepared for sale or sold or offered or exposed for sale or deposited for the purpose of sale or of preparation for sale (that is to say) :—

- (a) no sanitary convenience dustbin or ashpit shall be within or communicate directly with the room or be so placed that offensive odours therefrom can penetrate into the room;
- (b) no cistern for the supply of water to the room shall be in direct communication with or discharge directly into a sanitary convenience and there shall not be within the room any outlet for the ventilation of a drain or except with the approval of the Corporation an inlet into any drain conveying sewage or foul water;
- (c) the walls floor doors windows and ceiling of the room shall be kept in a proper state of repair;
- (d) the walls ceiling and doors of the room shall be painted whitewashed cleansed or purified as often as may be necessary to keep them clean and the windows of the room shall be kept clean;
- (e) the room shall not be used as a sleeping place and so far as may be necessary to prevent risk of infection or contamination of food in the room no sleeping place adjoining the room shall communicate therewith except through the open air or through an intervening ventilated space;

- (f) except in the case of an artificially refrigerated room suitable and sufficient means of ventilation shall be provided and suitable and sufficient ventilation shall be maintained;
- (g) no refuse or filth whether solid or liquid shall be deposited or allowed to accumulate in the room except so far as may be necessary for the proper carrying on of the trade or business for which the room is used and the floor of the room shall be cleansed as often as may be necessary to keep it clean;
- (h) cleanliness shall be observed by persons employed in the room both in regard to the room and all articles apparatus and utensils therein and in regard to themselves and their clothing; and
- (i) there shall be provided in or within reasonable distance of the room suitable washing basins and a sufficient supply of soap clean towels and clean water both hot and cold for the use of persons employed in the room :

Provided that paragraph (i) of this subsection shall not apply in relation to a room which is used for the sale or storage or for the sale and storage of food contained in containers of such materials and so closed as to exclude all risk of contamination but is not otherwise used for any purpose in connection with the preparation storage or sale of food.

(2) If in the case of a room to which the preceding subsection applies—

- (a) any of the requirements of that subsection are not complied with; or
- (b) any person does or permits any act or thing in contravention of that subsection or fails to take all such steps as may be reasonably necessary to prevent risk of contamination of food in the room; or
- (c) any person prevents the owner of the room from executing any work necessary to make the room comply with the said requirements;

then in the first-mentioned case the occupier of the room and in the other cases mentioned the person in

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—cont.

question whether he be the occupier or not shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding twenty pounds and to a daily penalty not exceeding five pounds.

(3) If in the case of a room to which subsection (1) of this section applies any of the requirements specified in paragraphs (a) (b) (c) or (f) of that subsection is not complied with then in so far as that requirement is of a structural character the owner of the room shall if he let it for the purpose of being used for the preparation sale or storage of food or if not having so let it he permits it to be so used after receiving notice from the Corporation be liable to the same penalty as the occupier of the room but without prejudice to the liability of the occupier under the foregoing subsection.

(4) Where the owner of a room who did not let it for the purpose of being used for the preparation sale or storage of food executes any work necessary to make the room comply with the requirements of subsection (1) of this section he may recover the expenses incurred by him in so doing from the occupier of the room as a civil debt.

(5) In this section the expression "room" includes a shop or cellar or any other part of a building and a shed store or outbuilding or any part thereof and the provisions of this section except paragraphs (e) and (f) of subsection (1) thereof shall so far as applicable apply in relation to a yard forecourt or area as they apply in relation to a room.

Provisions
as to
vehicles
used in
connection
with sale
&c. of
food.

22.—(1) The following provisions shall apply and have effect in relation to every vehicle in which any food intended for human consumption (other than milk) is prepared for sale or sold or offered or exposed for sale or deposited for the purpose of sale or of preparation for sale (that is to say):—

- (a) Every part of such vehicle adjacent to or liable to come in contact with any food as aforesaid shall be kept in a proper state of repair;
- (b) The inside of the floor sides ends roof and doors of such vehicle shall be painted washed cleaned or purified as often as may be necessary to keep them clean;

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PART II.
—cont.

(c) Sufficient means of ventilation shall be provided and suitable and sufficient ventilation shall be maintained in such vehicle;

(d) No refuse or filth either liquid or solid shall be deposited or allowed to accumulate in such vehicle except so far as may be reasonably necessary for the proper carrying on of the trade or business for which the vehicle is used;

(e) Due cleanliness shall be observed by persons employed in or about such vehicle and in the carrying of food to or from the vehicle.

(2) If in the case of a vehicle to which the preceding subsection applies—

(a) Any of the requirements of that subsection are not complied with; or

(b) Any person does or permits any act or thing in contravention of that subsection or fails to take such steps as may be reasonably necessary to prevent risk of contamination of food in the vehicle;

the owner of or any person in charge of such vehicle shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

23.—(1) (a) No person shall carry on the business of a manufacturer or vendor of or dealer in ice-cream or preserved food unless he be registered by the Corporation.

Registra-
tion &c. of
dealers in
ice-cream
and pre-
served food
and their
premises.

(b) No premises shall be used for the manufacture for sale or sale of ice-cream or preserved food or for the storage of ice-cream or preserved food intended for sale unless such premises are registered by the Corporation.

(c) Any person who offends against the provisions of this subsection shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

(2) (a) The Corporation may refuse to register any such person or premises or (after giving one month's

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PART II.
—cont.

notice in writing to the person registered or in whose name any such premises are registered) may revoke the registration of any such person or premises as regards any person on the ground that the public health is or is likely to be endangered by any act or default of the person who is registered or who seeks to be registered as aforesaid in relation to the quality storage or distribution of the ice-cream or preserved food as the case may be and as regards any premises on the ground that the premises are not suitable to be used for the purposes aforesaid :

Provided that before refusing or revoking such registration the Corporation shall serve upon the applicant for registration or the person registered or in whose name such premises are registered a notice to appear before them not less than seven days after the date of the notice to show cause why the Corporation should not for reasons to be specified in the notice refuse to register or revoke the registration of the person or premises.

(b) If the Corporation refuse to register or revoke the registration of any such person or premises they shall deliver to the person applying for such registration or the person registered or in whose name the premises are registered a statement in writing of the ground or grounds on which such refusal or revocation is based Notice of the right to appeal next hereinafter mentioned shall be endorsed on every such statement.

(c) Any person aggrieved by any such refusal or revocation may appeal to the sheriff provided that such appeal be made within fourteen days from the date of the delivery of the statement referred to in the immediately preceding paragraph of this subsection.

(d) Any person so appealing shall give written notice of such appeal and of the grounds thereof to the town clerk before lodging his appeal.

(3) In this and the immediately succeeding section—

(a) the expression “ice-cream” includes any preparation sold under the name of ice-cream or any similar name whether containing milk or cream or not;

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(b) the expression "preserved food" means sausages or potted pressed pickled or preserved meat fish or other food and the preparation of meat or fish by any process of cooking shall be deemed to be the preservation thereof.

PART II.
—cont.

(4) The Corporation may make a charge not exceeding five shillings in respect of the registration of any person or premises under this section.

(5) The provisions of this section shall not in any way affect the operation of the Factories Act 1937.

(6) The provisions of this section shall not apply to any premises used as a club hotel or restaurant or as railway refreshment rooms nor to the sale of ice-cream upon any premises used as a theatre or other place of public amusement unless ice-cream is actually manufactured upon such premises.

24.—(1) If the medical officer shall certify that any person is suffering from tuberculosis of the respiratory tract and is in an infectious state and that he is employed within the city in the cooking preparation or handling of food intended for consumption by persons other than himself or members of his household and that his continuance in such employment would in the judgment of the medical officer be detrimental to the public health the Corporation may request such person to stop his employment and on such request being made the Corporation may if they think fit make compensation to him in respect of any loss which he may sustain by reason of such stoppage.

Power to prohibit persons in advanced state of tuberculosis from selling &c. food.

(2) If any such person shall fail to comply with such request the Corporation may apply to the sheriff for an order requiring him to stop his employment and the sheriff shall have power to make such an order if after consideration of all the circumstances he thinks fit to do so and may direct that such compensation as he deems equitable shall be paid by the Corporation to such person.

(3) If any such person fails to comply with any such order he shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

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PART II.

—cont.

Medical
practi-
tioners to
notify
cases of food
poisoning.

25.—(1) Every registered medical practitioner attending on a person in the city who is or is suspected to be suffering from food poisoning shall forthwith on becoming aware that such person is or is suspected to be so suffering send to the medical officer a notification of the case stating the name of such person and the place at which such person is.

(2) The Corporation shall pay to every registered medical practitioner for each notification duly sent by him in accordance with this section a fee of two shillings and sixpence if the case occurs in his private practice and of one shilling if the case occurs in his practice as medical officer of any public body or institution.

Provisions
as to
suspected
food.

26.—(1) If the medical officer the sanitary inspector or any other officer duly authorised by the Corporation in that behalf has reasonable ground for suspecting that any food of which he has procured a sample is likely to cause food poisoning he may give notice to the person in charge of the food that until his investigations are completed the food or any specified portion thereof is not to be removed or is not to be removed except to some place specified in the notice.

(2) If as a result of his investigations the medical officer the sanitary inspector or such other officer is satisfied that the food in question may safely be used for human consumption he shall forthwith withdraw his notice but if he is satisfied that such food or any portion thereof is likely to cause food poisoning he may seize and remove it in order to have it dealt with by the magistrate and shall inform the person in whose possession it was found of his intention to have it dealt with by the magistrate and such person shall be entitled to appear before the magistrate and to be heard and call witnesses.

(3) If it appears to the magistrate that any food brought before him whether seized under the provisions of this section or not is unfit for human consumption he shall condemn it and order it to be destroyed or to be so disposed of as to prevent it from being used for human consumption.

(4) A person who removes any food in contravention of the requirement of a notice given under

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subsection (1) of this section shall be guilty of an offence and shall be liable to a penalty not exceeding ten pounds.

PART II
 —cont.

(5) If a notice given under subsection (1) of this section is withdrawn by the medical officer the sanitary inspector or such other officer or if the magistrate before whom any food is brought under this section refuses to condemn it the Corporation shall compensate the owner of the food to which the notice related for any depreciation in its value resulting from the action taken by the medical officer sanitary inspector or such other officer.

E.—Stables &c.

27.—(1) All stables cattle sheds sheep pens and areas connected therewith shall be constantly kept in a clean condition by the occupier thereof to the satisfaction of the sanitary inspector.

Stables &c.
 to be kept
 clean.

(2) Any person failing to comply with the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding ten shillings.

28. Any person who keeps any swine except in a place licensed by the Corporation for that purpose (which place they are hereby authorised to license on the application of the owner or occupier thereof) shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings and the Corporation may revoke or suspend any licence granted by them for keeping any swine in any place.

Penalty on
 persons
 keeping
 swine in
 places not
 licensed.

PART III.

CLEANSING AND LIGHTING.

A.—Cleansing and street refuse.

29. The cleansing undertaking as it exists and as it is used by and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation and be held and used by them.

Vesting of
 cleansing
 under-
 taking.

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PART III.

—cont.

Buildings
and works
for
cleansing
under-
taking.

30. The Corporation may for the purposes of the cleansing undertaking continue erect construct provide maintain alter improve enlarge or renew depots stables garages incinerators destructors separators workshops works and materials for the collection disposal or treatment of domestic refuse trade refuse manure or other refuse with all necessary plant machinery and apparatus and do all such acts as may be appropriate for or in connection with the collection treatment disposal or sale in any form of domestic refuse trade refuse manure or other refuse or otherwise.

Lands for
cleansing
under-
taking.

31. The Corporation may from time to time as they think fit by agreement purchase feu or lease or arrange for the use of any lands or other property situated within or beyond the city for the purposes of this Head of this Part of this Order. Provided that nothing in this Order shall exempt the Corporation from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them upon any land acquired or feued under the provisions of this section.

Collection
and
disposal of
domestic
refuse.

32. Subject to the provisions of the City Acts the Corporation shall make or cause to be made provision for the effectual scavenging of the city in a suitable manner for keeping the streets clean and for the collection disposal or treatment of domestic refuse but the Corporation shall not be bound to collect and remove manure soot or trade refuse otherwise than as provided in this Head of this Part of this Order.

Dustbins.

33.—(1) The Corporation may require the occupiers of houses shops or other premises to provide portable dustbins for domestic refuse and such dustbins shall be of such size and construction as may be approved by the Corporation.

(2) The Corporation may purchase suitable or standard dustbins and may on such terms and conditions as they may decide supply or let such dustbins on hire to occupiers of shops houses or other premises.

(3) Any person who refuses to comply with any requirement of the Corporation under the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings.

34. The Corporation may make arrangements with shopkeepers warehousemen occupiers of factories workshops garages or business premises and others and with the occupiers of gardens and other persons for the collection removal and disposal of trade refuse manure and soot at such times and on such terms and conditions as the Corporation may determine.

PART III.
 —cont.
 Trade refuse.

35. The Corporation may (without prejudice to the provisions of the City Acts) by agreement enter into arrangements with any local authority company body or person for the collection removal and disposal of domestic refuse trade refuse manure and soot on such terms and conditions as may be agreed between the parties.

Arrange-
 ments for
 collection
 &c. of
 domestic
 refuse &c.

36.—(1) Any person who obstructs the scavengers or other officers of the Corporation engaged in connection with the cleansing undertaking and any person other than the scavengers or other persons employed by the Corporation for the purpose who—

Penalty for
 obstructing
 scavengers
 &c.

(a) collects or carries away any domestic refuse or street sweepings or any trade refuse manure or soot in respect of the collection removal or disposal of which the Corporation have made arrangements; or

(b) searches through or interferes with the same when deposited on the street; or

(c) interferes with any dustbins or other receptacles for domestic refuse or street sweepings or for such trade refuse manure or soot or their contents;

shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings.

(2) Any person who without authority searches amongst the refuse on any dump or land used for or in connection with the disposal or treatment of refuse for materials for salvage or otherwise or who collects or carries away any articles or things from such refuse or who interferes with such refuse in any way shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings.

37. Where any rubbish or refuse of whatever description which is not fit to be used and sold for manure has been deposited in any street by any person it shall be lawful for the superintendent of cleansing

Rubbish
 &c. not fit
 for manure
 to be
 removed.

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PART III.
—cont.

forthwith to remove or cause such rubbish or refuse to be removed at the expense of such person which expense shall be repaid by such person to the Corporation and shall be recoverable as damages over and above any penalty to which such person may be liable.

**Pavements
to be
cleansed by
occupiers.**

38.—(1) In time of snow or frost the occupier of any shop or other apartment on the ground floor of any dwelling-house or other building along which a foot pavement has been laid shall be obliged from time to time to sweep and clear away the snow and ice that has fallen or formed upon such pavement opposite to such shop or other apartment.

(2) Any person liable to sweep or clear away such snow or ice who neglects or refuses to do so shall be guilty of an offence and shall be liable to a penalty not exceeding five shillings over and above the expense of executing the work which the superintendent of cleansing in the above event is hereby authorised to cause to be performed by scavengers or other persons. Provided that the foot pavement opposite to uninhabited dwelling-houses shops warehouses or other buildings as well as opposite to courts closes or unbuilt areas shall be swept and cleared of snow or ice by the scavengers or other persons employed by the Corporation.

**Refuse &c.
vested in
Corpora-
tion.**

39. The whole domestic refuse trade refuse and manure soot street sweepings and other materials collected by the Corporation shall be vested in and be the property of the Corporation and the Corporation may dispose of or use in such manner or may sell the same on such terms and conditions as they may think fit.

**Dustbins
to be
erected by
Corpora-
tion.**

40.—(1) The Corporation may provide and place in any of the streets dustbins or other conveniences in which domestic refuse may be deposited until removed and carried away and may require the occupiers of premises in such streets to cause all their domestic refuse to be deposited daily in such dustbins or other conveniences.

(2) Any person who after such dustbins or other conveniences have been so provided shall deposit or cause or permit to be deposited any domestic refuse in any part of any street except in such dustbins or other conveniences or in some suitable dustbin or vessel provided by such person and delivered or caused to be

delivered by him on the street to the scavengers or other persons acting under the authority of the Corporation at such times and in such manner as shall be required by the byelaws made or continued in force under the provisions of this Order shall be guilty of an offence and shall be liable to a penalty not exceeding ten shillings.

PART III.
—cont.

41.—(1) The Corporation may make byelaws with respect to the cleansing of streets and with respect to the assorting collecting conveying and depositing of domestic refuse trade refuse manure and soot whether vested in the Corporation or not.

Byelaws as to cleansing streets and collection &c. of refuse.

(2) Any person who empties or begins to empty any privy or removes along any street any offensive matter at any time except within the hours fixed by any such byelaw and any person who—

(a) at any time whether such hours have been fixed by the Corporation or not uses for any such purpose any vehicle not having a covering proper for preventing the escape of the contents of such vehicle; or

(b) wilfully or negligently spills any such offensive matter in the removal thereof; or

(c) does not carefully sweep and cleanse every place in which any such offensive matter has been placed or unavoidably spilled;

shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

42.—(1) Nothing in this Order shall have the effect of prohibiting any person laying down dung or other refuse on any field nursery or garden ground for the purpose of manuring the same. Provided always that if the medical officer is of opinion that dung or other refuse so laid down in any place within the city is offensive or prejudicial to health the magistrate may order it to be removed or otherwise disposed of forthwith.

Exception as to dung or other refuse on fields.

(2) Any person failing to comply with such order shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and the magistrate may order the forfeiture of such dung or other refuse if he shall see fit.

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PART III.
—cont.
Erection of
lavatories
&c.

43. The Corporation may from time to time continue erect provide and maintain or may discontinue public conveniences waiting-rooms cloak-rooms lavatories waterclosets urinals and other accommodation and conveniences and offices and shelters in or under any street or in any other suitable place for the use and accommodation of the public and of any department of the Corporation and of the employees thereof or for any similar purpose and may use the solum of any street for those purposes and may make reasonable charges for the use of the same and may from time to time make regulations with respect to admission thereto and the use thereof and the charges to be made therefor Provided that nothing contained in this section shall empower the Corporation to interfere with the access of vehicular and pedestrian traffic to any station or depot or hotel of a railway company Provided further that the Corporation shall not without the consent of the railway company erect any such waiting-rooms lavatories waterclosets urinals or other accommodation and conveniences either in or under Guild Street ex adverso any property of a railway company and on the side of the street on which such property is situate or in or under Bridge Street.

Adoption
of Burgh
Police
(Scotland)
Act 1892
Streets to
be watered.

44. Section 111 (Streets to be watered and wells pumps &c. provided) of the Burgh Police (Scotland) Act 1892 shall be deemed to have been duly adopted by the Corporation in terms of that Act and shall come into force in the city at the commencement of and as part of this Order.

Byelaws for
cleansing
common
stairs &c. by
tenants.

45. The Corporation may make such byelaws as they think fit for the cleansing by the tenants in rotation of stairs lobbies passages drying rooms washhouses sinks waterclosets and areas used in common.

B.—Lighting.

Vesting of
lighting
under-
taking.

46. The lighting undertaking as it exists and as it is used and enjoyed by and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation and be held used and enjoyed by them.

Streets to
be lighted.

47. Subject to the provisions of the City Acts the Corporation shall make provision for lighting the streets of the city in a suitable manner.

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48. The Corporation may provide such lamps lamp-posts standards lamp-brackets cables pipes wires and other apparatus as they think necessary for lighting the streets and they may fix brackets electric conductors wires lamp-irons lamp and gas tubes or any other apparatus required for lighting the streets either upon the foot pavements or footways or on the railings or upon the houses or other buildings on the sides of the streets doing as little injury as possible Provided that the Corporation shall make compensation to any person sustaining injury by the affixing of any such brackets or other apparatus to any house or building the amount of such compensation to be determined in default of agreement by arbitration under the Lands Clauses Acts Provided further that nothing contained in this section shall empower the Corporation to fix brackets electric conductors wires lamp-irons lamp and gas tubes or any other apparatus to any part of any bridge station depot viaduct or other property forming part of the railway of any railway company without the consent in writing of the engineer of such company which consent shall not be unreasonably withheld and any question as to whether or not any such consent has been unreasonably withheld shall be determined by the sheriff.

PART III.
 —cont.
 Works for
 lighting
 streets.

49.—(1) The owner of every common stair or passage or private court or of lands or premises having a right of access by any common stair or passage or private court shall when required by the Corporation within seven days after service of a notice requiring him to do so make provision for lighting such common stair or passage or court in a suitable manner and shall for that purpose provide and erect all necessary lamps and shall alter repair and renew such lamps to the satisfaction of the Corporation.

Owners to
 provide
 lamps for
 common
 stairs &c.

(2) Any owner who does not comply with any such notice shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings.

50.—(1) The owner of the lands or premises to which access is obtained by any outside common stair or passage or private court shall keep the lamps erected in such common stair or passage or private court regularly cleaned and lighted during such hours as are from time to time fixed by the Corporation.

Owners
 to keep
 outside
 common
 stairs &c.
 lighted.

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PART III.
—cont.

(2) Any such owner failing to comply with the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding ten shillings.

(3) The Corporation may arrange on such terms and conditions as they think fit with any such owner for the lighting extinguishing and cleaning by the Corporation on behalf and at the expense of such owner of the lamps erected or placed in any such common stair or passage or private court.

Occupiers
to keep
inside
common
stairs &c.
lighted.

51.—(1) The occupier of every building or part thereof to which access is obtained by any inside common stair or passage or private court within the building shall keep the lamps erected in such common stair or passage or private court regularly cleaned and lighted during such hours as are from time to time fixed by the Corporation.

(2) Any such occupier failing to comply with the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding ten shillings.

PART IV.

PARKS BATHING ENTERTAINMENTS &C.

A.—Parks &c.

Vesting of
parks.

52. Subject to the provisions of this Order the parks as they exist and as they are used and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation and be held used and enjoyed by them.

Continuing
agreement
with Miss
Elizabeth
Crombie
Duthie.

53.—(1) The agreement set forth in the First Schedule to this Order between the Corporation and Elizabeth Crombie Duthie dated the twenty-sixth and twenty-seventh days of November one thousand eight hundred and eighty with reference to Duthie Park shall subject to the provisions of the City Acts continue and remain binding on the parties thereto and full effect may and shall subject as aforesaid be given to the same.

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(2) The Corporation shall uphold and maintain Duthie Park under and in terms of the Public Parks Act and shall subject to the provisions of this Order and the agreement contained in the said First Schedule have and possess with respect to the said park all the rights powers and authorities vested in and conferred upon a local authority under the Public Parks Act.

PART IV.
—cont.

(3) Nothing contained in this Head of this Part of this Order shall take away diminish alter or abridge any rights privileges or servitudes which the proprietors or owners or lessees or tenants of the salmon fishings in or upon the pot of the river Dee have to in or over the said river or the lands and property situated upon the left or north bank of the said river and described in the agreement set forth in the said First Schedule.

54. The Corporation may from time to time as they think fit by agreement purchase feu or lease any lands situated either within or beyond the city for the purposes of this Head of this Part of this Order.

Acquisition
of land for
parks.

55. Subject to the provisions of this Part of this Order the Corporation shall in addition to the powers conferred on the Corporation by the Public Parks Act have and may exercise all or any of the following powers in connection with the parks (that is to say):—

Powers as
to parks.

- (1) They may reclaim drain and improve the surface of the parks or any part thereof and execute construct and maintain all necessary works for that purpose :
- (2) They may form improve and maintain roads drives footpaths riding tracks and walks in the parks and do such other things as from time to time may appear to the Corporation to be expedient for the use and enjoyment of the parks by the public :
- (3) They may form and maintain or lay out or set apart in any part of the parks golf courses tennis courts bowling greens putting greens polo grounds football pitches cricket pitches and hockey pitches and grounds for other outdoor games and may also form and maintain thereon yachting ponds boating ponds curling

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(General Powers) Order Confirmation Act, 1938.

PART IV.
—cont.

and skating ponds and may regulate the playing of games in the parks and the use of such ponds :

- (4) They may provide and maintain in any of the parks any apparatus and facilities for games recreation and amusement and may make reasonable charges for the use of the same :
- (5) They may erect maintain manage and carry on in the parks or authorise other persons to erect maintain and carry on therein refreshment rooms pavilions waiting-rooms shelters stores club-houses baths lavatories and other conveniences band-stands conservatories tool-houses dwelling-houses for park-keepers and other similar officers of the Corporation and other such erections and may charge and take such rents rates or charges in respect of the use of the parks and of such yachting ponds boating ponds curling and skating ponds tennis courts bowling greens putting greens polo grounds football pitches golf courses cricket pitches hockey pitches grounds refreshment rooms pavilions waiting-rooms shelters stores club-houses baths lavatories and other conveniences band-stands or other erections as they think fit :
- (6) They may from time to time let or permit to be used for any special or temporary purpose portions of the parks and the right to provide apparatus for the purposes of games recreation or amusement on such terms and subject to such conditions and for such periods as they think fit :
- (7) They may set apart any portion of the parks as a children's playground and provide gymnastic or other apparatus therefor and may fix the age above which persons shall not be permitted to play therein :
- (8) They may levy reasonable charges for admission into any museum conservatory winter garden collection of natural history science or art and other similar places and buildings under their control.

56. In addition to the powers to make byelaws conferred upon the Corporation by the Public Parks Act the Corporation may make byelaws for all or any of the following purposes (that is to say):—

PART IV.
—cont.
Byelaws as
to parks.

- (1) For the general management regulation control and better preservation of the parks and for regulating and ensuring good order in the use of parks and the regulation and control of golf or any other games now played or which may hereafter be played in the parks:
- (2) For licensing appointing and regulating golf caddies and professional golfers and golf experts and all other persons who may be employed in the parks for remuneration or reward and for fixing and regulating the charges for their services:
- (3) For the prevention of unlicensed persons being employed or taking employment in the parks:
- (4) For the orderly conduct of persons frequenting or using the parks or playing golf or any other games therein:
- (5) For excluding and removing from the parks gipsies hawkers and beggars and all persons committing a breach of the peace or infringing any byelaw:
- (6) For regulating and prescribing the days on which games may be played and the hours at which games shall be permitted in the parks or in any part or parts thereof:
- (7) For preventing or regulating the admission to the parks of vehicles and of horses and other animals:
- (8) For protecting from injury any golf courses and turf and greens and all tee boxes guide posts bunkers golf holes pins flags and other fittings connected therewith and any yachting ponds boating ponds curling and skating ponds tennis courts bowling greens putting greens polo grounds football pitches cricket pitches and hockey pitches or ground set apart for any other games or any apparatus or implements used for or in connection with any games

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PART IV.
—cont.

established or provided in any part of the parks :

- (9) For regulating and varying from time to time any charges to be exacted from persons using any place or places for the playing of games in the parks and the recovery thereof and the exclusion and removal of persons refusing or evading payment thereof.

* Approval of Secretary of State for War to certain byelaws.

57. No byelaw restricting the use of the links for the purposes of manœuvring and drilling troops as heretofore enjoyed shall take effect unless it be previously approved by the Secretary of State for War.

Power to provide music in parks &c.

58. The Corporation may provide music in the parks gardens open spaces and places within the city and may for that purpose engage and make payments to bands and musicians and provide band-stands and other conveniences.

As to temporary use of parks for other purposes.

59. Subject to the provisions of this Order the Corporation may use or permit the use of the whole or any part of any of the parks for any period or periods not exceeding in the whole one month in any one year for any special purpose other than a purpose for which such park may ordinarily be used and may when the park is being so used close the same or any part thereof against the public and may demand and take or permit to be demanded and taken such reasonable sums for the exclusive occupation of or for the admission of persons to such park or portion thereof as they may fix.

As to parks outside city.

60. Any park which has been or shall be provided or administered by the Corporation outside the city shall be deemed to be within the city for the purpose of the control regulation and management of the same and the provisions of the Public Parks Act and of the City Acts (so far as relating to parks) as to the making of rules regulations and byelaws shall extend and apply to every such park Provided that nothing in this section shall affect or interfere with the area of jurisdiction of any justices of the peace or any court of competent jurisdiction or any police force Provided also that such byelaws shall before confirmation be subject to the approval of the county council of the county in which the park to which any such byelaws apply is situate.

61.—(1) The Corporation may by order from time to time prohibit games on such parts or portions of the links as they may deem proper or set apart parts or portions of the links for particular games and for purposes of recreation or otherwise or temporarily exclude the public from any portion of the links and for that purpose may enclose or fence off the same. Provided that on any such order being made the Corporation shall forthwith give notice thereof by affixing a copy of the order on a board on some conspicuous part of the links.

PART IV.
—cont.
Provisions
as to links.

(2) Any person who contravenes any such order shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

62. The Corporation may let such portions of Hazlehead as are reserved as private open spaces in the town planning scheme for such periods and subject to such terms and conditions as they think fit and proper (a) for the purpose of carrying on farming operations or nursery gardens or similar purposes and (b) to persons clubs companies and organisations for the exclusive use thereof by such persons clubs companies and organisations as sports or playing fields or as agricultural horticultural or similar show grounds.

Power to
let portions
of Hazle-
head.

63.—(1) The following provisions shall extend and apply to and in respect of that area of ground near the Bay of Nigg acquired by the Corporation for the purposes of this Head of this Part of this Order:—

As to
public open
space near
Bay of Nigg.

The Corporation may—

- (a) provide construct erect and maintain and may carry on on the said area of ground such stalls shelters tents bathing huts and lavatories bathing places bathing pools landing places putting greens swings shutes and other erections and conveniences and facilities for picnicking and car-parking as they deem desirable and may demand and recover rents or charges in respect of the same; and
- (b) make byelaws applicable to the said area of ground for any or all of the purposes specified in the section of this Order of which the marginal note is "Byelaws as to parks" in relation to the parks.

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PART IV.
—cont.

15 & 16
Geo. 5. c. 17.

(2) Nothing in this section shall prejudice or affect the agreement between Alister James Davidson residing at Balnagask House in the county of Kincardine and William Garden advocate in Aberdeen the trustees acting under the ante-nuptial contract of marriage in the Scottish form between the now deceased Colonel James Davidson of Balnagask and Miss Margaret Berry (now Mrs. Margaret Berry or Davidson) of the first part and the Aberdeen and District Joint Town Planning Committee constituted under the Town Planning (Scotland) Act 1925 (including the successors of the joint committee and the responsible authority administering the scheme as approved by the Department of Health for Scotland) of the second part set out in the Sixth Schedule to the town planning scheme.

B.—Entertainment buildings.

Entertain-
ment
buildings.

64.—(1) The entertainment buildings as they exist and as they are used and enjoyed by and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation and be held used and enjoyed by them.

15 & 16
Geo. 5.
c. cxxix.

(2) Subject to the provisions of this Order the Corporation may continue to use the lands shown on the plans deposited in connection with the Aberdeen Corporation Order 1925 or any part thereof for the purposes of the entertainment buildings and may thereon continue erect enlarge extend improve repair alter furnish equip and maintain the same :

Provided that if any of the said lands are not used by the Corporation for the purposes of the entertainment buildings the Corporation may lease the said lands or any part thereof for entertainments or for any similar purposes on such terms and subject to such conditions as they may think fit.

(3) The Corporation may provide manage and carry on or arrange on such terms and conditions as they may think fit for the provision management or carrying on in the entertainment buildings of all or any of the following (in this section referred to as "entertainments") that is to say concerts musical and dramatic performances gymnastic displays dancing cinematograph shows exhibitions meetings and social

2 & 3 GEO. 6. *Aberdeen Corporation* **Ch. iii.**
(General Powers) Order Confirmation Act, 1938.

gatherings and the playing of games dining rooms
tea rooms refreshment rooms kitchens cloak-rooms
lavatories stalls pavilions waiting-rooms bicycle sheds
motor car parks and other conveniences and may do
all such things and provide such services as may be
necessary or requisite in connection therewith :

PART IV.
—cont.

Provided that no concert or other entertainment
provided by the Corporation themselves at their own
hand under this subsection shall include—

- (a) the performance of a stage play; or
- (b) any performance (other than a pageant or
similar display) in which scenery theatrical
costumes or scenic or theatrical accessories are
used; or
- (c) the showing of any cinematograph film (other
than a film illustrative of matters relating to
health or disease or the activities of the
Corporation).

(4) The Corporation may make such reasonable
charges as they may think fit for admission to and for
the use of the entertainment buildings or any part
thereof and for and in respect of the entertainments
provided in the entertainment buildings and the services
provided in connection therewith.

(5) The Corporation may make byelaws for securing
good and orderly conduct during any entertainments
provided in pursuance of this section.

65. The Corporation may grant or let with or without charge the use of the whole or any part of the entertainment buildings together with the right to charge for admission thereto for the purpose of any public or other meetings or any entertainment or exhibition for such periods or occasions and upon such terms and conditions as the Corporation may think fit.

Power to
let enter-
tainment
buildings.

66. Subject as hereinafter in this section provided the magistrates acting as the licensing court shall not grant a certificate for the sale of excisable liquor to be consumed on the premises at any part of the entertainment buildings Provided that nothing in this section shall operate to prevent the grant in respect of any part of those buildings of a special permission under

Sale of
excisable
liquor at
entertain-
ment
buildings.

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(General Powers) Order Confirmation Act, 1938.

PART IV.
—cont.
3 Edw. 7.
c. 25.

section 40 of the Licensing (Scotland) Act 1903 as amended or extended by any subsequent Act to any person qualified in terms of the said section 40 to apply for a special permission under that section.

C.—Bathing establishment.

Bathing
establish-
ment.

67.—(1) The bathing establishment as it exists and as it is used and enjoyed by and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation and be held used and enjoyed by them.

(2) Subject to the provisions of this Order the Corporation may continue maintain alter extend enlarge improve repair furnish equip manage and carry on the bathing establishment and may provide as part of the bathing establishment such additional swimming pools and baths as they may think fit.

Application
of certain
provisions
of Order to
bathing
establish-
ment.

68. The Corporation shall have and may exercise in respect of the bathing establishment all or any of the powers conferred on them by the section of this Order of which the marginal note is "Entertainment buildings" in respect of the entertainment buildings.

Power to
let bathing
establish-
ment.

69.—(1) The Corporation may grant or let with or without charge the use of the whole or any part of the bathing establishment together with the right to charge for admission thereto for the purpose of any public or other meetings or any entertainments or exhibitions for such periods or occasions and upon such terms and conditions as the Corporation may think fit.

(2) Subject to the provisions of this Order the Corporation may let part of the bathing establishment for the sale of refreshments (other than excisable liquor) for such periods and upon such terms and conditions as the Corporation may think fit.

Byelaws as
to family
and mixed
bathing.

70. The Corporation may make byelaws with respect to the use of the premises forming part of the bathing establishment and for securing good and orderly conduct therein and may by such byelaws provide for family bathing (that is to say by any males and females members of families bathing together at the same time) or of mixed bathing (that is to say by males

and females bathing together at the same time) during such hours and subject to such regulations as shall be prescribed in such byelaws provided that by such byelaws provision shall be made for ensuring that separate dressing accommodation shall be provided and used by males who have attained the age of eight years and females respectively and that proper costumes shall be worn.

PART IV.
 —cont.

71. The Corporation may from the first day of October to the first day of May in each year close and cover over any swimming bath forming part of the bathing establishment and utilise or from time to time let the same for meetings or entertainments of any description or for any other purposes.

Use of
 swimming
 baths in
 winter.

72. The Corporation may close to the public and may reserve the exclusive use of any part of the bathing establishment and may grant the use thereof either gratuitously or for payment for swimming contests practices aquatic exercises regattas or for any other entertainment or exhibition or for meetings and may demand and take or authorise to be demanded and taken such sums of money for the exclusive use thereof or for admission of persons thereto as they may think fit.

Use of
 bathing
 establish-
 ment for
 exhibitions
 and enter-
 tainments.

73. Any or all of the provisions of this Head of this Part of this Order or of any byelaws made thereunder may be applied by the Corporation to any swimming bath pond or pool belonging to them as education authority.

As to
 swimming
 baths of
 Corporation
 as education
 authority.

74.—(1) The Corporation may erect construct provide maintain furnish equip regulate manage and carry on medicated and other baths (including baths the beneficial properties of which are due to agencies other than water) and they may make such regulations and may demand and take such reasonable charges for the use thereof as they may think fit.

Medicated
 and other
 baths.

(2) In connection with any electrical or radiant heat or other similar baths equipped by the Corporation in pursuance of their powers under this section patients shall only be afforded treatment on the prescription of a medical practitioner and on the certificate of that practitioner that the patient is in a fit condition

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(General Powers) Order Confirmation Act, 1938.

PART IV. to receive treatment and the Corporation shall afford
—cont. facilities to medical practitioners to attend their patients
at such baths.

Power to
provide
bathing
pool on
links.
26 Geo. 5. &
1 Edw. 8.
c. lxxviii.

75. Subject to the provisions of this Order—

- (1) The Corporation may on the lands shown on the plans deposited with reference to the Aberdeen Corporation Order 1936 forming part of the links and not exceeding in the whole four acres construct and may provide maintain alter extend enlarge improve repair furnish equip manage and carry on open or covered sea water or fresh water swimming and other baths and bathing pools with all buildings conveniences and appliances including refreshment rooms in connection therewith requisite for the purposes of health recreation and amusement (all of which are hereinafter in this section included in the expression "the bathing pool"):
- (2) The Corporation may make and enforce bye-laws for the management use and regulation of the bathing pool and for regulating the conduct of the persons resorting thereto:
- (3) The Corporation may also lay down and provide such intake pipes apparatus and fittings as may be incidental to or necessary for supplying sea or fresh water to the bathing pool and for the purpose of laying and repairing such pipes apparatus or fittings may break up streets and alter the position of any culverts pipes and wires under any street Provided that the Corporation shall not alter the position of or otherwise interfere with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878:
- (4) The Corporation may let for such period and on such terms and conditions as they may think fit the bathing pool or may enter into arrangements with any body or person for the exercise by such body or person of all

41 & 42 Vict.
c. 76.

or any of the powers and rights conferred on the Corporation by this Order with regard to the provision maintenance and carrying on or otherwise in relation to the bathing pool :

PART IV.
—cont.

- (5) Before constructing any works below high-water mark of ordinary spring tides under the powers of this section the Corporation shall consult the Aberdeen Harbour Commissioners as to the locus of such works with a view to minimising interference with the salmon fishings belonging to the said commissioners.

D.—Seabeach esplanade &c.

76. Subject to the provisions of this Order and to any existing rights of property—

Jurisdiction
of Corpora-
tion over
seabeach.

- (1) The Corporation shall have jurisdiction over the seabeach for the purposes following (viz.) :—

(a) Preventing nuisance and preserving and improving the amenity of the city ;

(b) Regulating the use of the seabeach by pleasure boats or vessels or aircraft let for hire ;

(c) Regulating the use of the seabeach for riding and driving ;

(d) Regulating the use of the seabeach for bathing recreation and general purposes ; and

(e) Providing or granting authority on such terms and conditions as they think fit to any person to provide chairs or seats and allowing such person to make reasonable charges for the use of the same :

- (2) The Corporation shall have power to make byelaws for the said purposes or any of them and such byelaws may relate to the whole or any part of the city Provided that no such byelaws affecting any area below high-water mark shall come into operation until the consent of the Board of Trade thereto has been obtained :

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PART IV.
—cont.

- (3) It shall not be lawful except under authority from the Corporation and at such places and on such terms and subject to such conditions as the Corporation may appoint to erect or use any booth stall or stand or any other structure or use any motor-car or any vehicle for the sale of goods wares or merchandise of any kind or to sell any goods wares or merchandise or let out the use of any chair or seat on the seabeach or enclose or fence any part of the seabeach and any person who shall contravene the provisions of this subsection or who shall fail to comply with any requirement of the Corporation thereunder shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings :
- (4) The Corporation on any part of the seabeach belonging to them or which they may acquire or on any other part of the seabeach with the consent of any person having right thereto may erect and maintain brushwood fences groynes piles and retaining walls or embankments for the purpose of protecting land from the sea and for levelling up of the land enclosed by such fences groynes piles walls or embankments or carry out works for the purpose of improving the amenity of the seabeach and may also construct maintain or protect footpaths roads or promenades :
- (5) No person except with written authority from an owner or other person having right to grant such authority (which authority he shall exhibit to any constable or officer of the Corporation requiring him so to do) shall without the consent of the Corporation remove sand or gravel from the foreshore within the city below high-water mark of ordinary spring tides or within fifty yards above the said high-water mark and any person who shall contravene the provisions of this subsection shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds :
- (6) It shall not be lawful except under authority from the Corporation and at such places as

the Corporation may appoint to erect occupy or use any tent shed or other structure upon the seabeach and any person who shall contravene the provisions of this subsection shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings :

PART IV.
—cont.

- (7) The Corporation may from time to time as they think fit by agreement purchase feu or lease any part of the seabeach or any interest therein.

77.—(1) Subject to the provisions of this Order it shall not be lawful for any person having or claiming right to the seabeach to remove or carry away or authorise or permit the removal or carrying away of sand or other matter from any part of the seabeach to such an extent as will affect the amenity thereof and the Corporation shall have power to make byelaws for regulating and (where necessary for preserving amenity) prohibiting the removal of sand or other matter from the seabeach Provided that no such byelaws affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade thereto has been obtained.

Protection
of sea-
beach.

(2) Any dispute as to whether any sand or other matter is being or may be removed to such an extent as will affect the amenity of the seabeach shall be settled by an arbiter to be nominated by the sheriff on the application of either party to such dispute.

78. The Corporation may provide and maintain drags life-buoys and other implements for the prevention of drowning.

Power to
provide
drags life-
buoys &c.

79. Subject to any existing rights of property the Corporation may on any part of the seabeach continue construct erect or provide and maintain bathing machines shelters chairs seats booths stalls stands stances lavatories cloak-rooms and other erections and conveniences and provide facilities for the playing of games or for recreation and may demand and recover rents or charges for the use thereof or admission thereto and the Corporation may let any part or parts of the seabeach for any of such purposes at such rent and for such period

Power to
Corpora-
tion to
provide
bathing
machines
&c.

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PART IV. and upon and subject to such terms and conditions
—*cont.* as they may think fit.

Byelaws
as to
bathing &c.

80. Where any part of the seabeach or of the strand of any river within the city is used as a public bathing place the Corporation may make byelaws for the following purposes (that is to say):—

- (a) For fixing the stands of bathing machines and shelters on the seabeach or strand and the limits within which persons shall bathe;
- (b) For regulating the occupation of such stands of bathing machines and shelters and apportioning the same temporarily among the owners of such machines for the time;
- (c) For preventing any indecent exposure of the persons of the bathers;
- (d) For regulating the manner in which and the times at which the bathing machines and shelters shall be used and the charges to be made for the same;
- (e) For ensuring that the bathing machines and shelters shall be kept in a proper state of repair;
- (f) For regulating the distance at which boats and vessels let to hire for the purpose of sailing or rowing for pleasure shall be kept from persons bathing within such prescribed limits;
- (g) For prohibiting limiting or restricting the use of pleasure boats or regulating the speed at which or the manner in which they may be driven.

Powers to
license
pleasure
boats.

81.—(1) The Corporation may grant upon such terms and conditions as they may think fit licences for pleasure boats to be let for hire or to be used for carrying passengers for hire.

(2) A licence under this section shall not be required for any boat duly licensed by or under any regulations of the Board of Trade.

(3) No person shall carry or permit to be carried in any pleasure boat a greater number of passengers for hire than shall be specified in the licence applying

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PART IV.
—cont.

(3) provide for the preservation of order and good conduct among persons frequenting the esplanade seashore and sands :

(4) regulate or restrict touting singing and playing of musical instruments on the esplanade seashore and sands :

Provided that no byelaws affecting the foreshore below high-water mark shall come into operation until the consent of the Board of Trade has been obtained.

Works
below high-
water mark
not to be
constructed
without
consent of
Board of
Trade.

84. The Corporation or any other body or person shall not under the powers of this Part of this Order construct on under or over the shore or bed of the sea or of any creek bay arm of the sea or navigable river communicating therewith below high-water mark of ordinary spring tides any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries under-secretaries or assistant-secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation or any other body or person shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consent or approval If any work be commenced altered extended or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the owner of such work and the amount of such costs and charges shall be a debt due from the owner of such work to the Crown and shall be recoverable accordingly.

Saving rights
of Aberdeen
Harbour Com-
missioners and
proprietors of
Nether Don
Salmon Fishings.

85. Nothing in this Head of this Part of this Order shall prejudice or affect the existing rights powers and privileges of the Aberdeen Harbour Commissioners or of the proprietors of the Nether Don Salmon Fishings.

Further
saving for
proprietors
of Nether
Don Salmon
Fishings.

86. No extension of any works constructed under Parts III and V of the Aberdeen Corporation Order 1907 shall without the consent of the proprietors of the Nether Don Salmon Fishings be carried out under the provisions of this Order between the south bank of the river Don and the red dotted line shown on the two

to such boat and every owner of any such boat shall before permitting such boat to be used for carrying passengers for hire paint or cause to be painted in letters and figures not less than one inch in height and three-quarters of an inch in breadth on a conspicuous part of such boat his own name and also the number of persons which such boat is licensed to carry in the form "Licensed to carry persons."

PART IV.
—cont.

(4) Any person who acts in contravention of the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

82. Subject to the provisions of this Order the Corporation may continue maintain extend and improve the esplanade and may erect brushwood fences groynes piles retaining walls and embankments for the purpose of protecting the esplanade and the links from encroachment or erosion by the sea and levelling up the land enclosed by such works. Provided that without the consent of the proprietors of the Nether Don Salmon Fishings no groyne or similar protection work extending for a greater distance than forty-five yards seaward measured at right angles to the general line of the coast from high-water mark of ordinary spring tides shall be constructed by the Corporation within the limits of the said fishings under the provisions of this section.

Provisions
as to
esplanade.

83. In addition to the powers conferred on the Corporation by the section of this Order of which the marginal note is "Jurisdiction of Corporation over seabeach" the Corporation may make and enforce byelaws for regulating the use of the esplanade seashore and sands opposite the links or any parts thereof respectively and for the prevention of danger obstruction nuisance or annoyance to persons using the esplanade seashore and sands opposite the links and in particular may by such byelaws—

Byelaws
as to
esplanade
seashore
and sands.

- (1) regulate the use of the esplanade seashore and sands for riding and driving :
- (2) regulate the selling and hawking of any article commodity or thing on the esplanade seashore and sands :

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copies of the deposited plans signed as relative to section 27 (For protection of Nether Don Salmon Fishing Proprietors) of the Aberdeen Corporation Order 1907 by John A. Dewar M.P. chairman of the commission to which the said Order of 1907 was referred.

PART IV.
—cont.
7 Edw. 7.
c. cxi.

E.—Fair ground on links.

87.—(1) The Corporation may level improve lay out and continue as a fair ground—

Use of part
of links &c.
as fair
ground.

(a) that part of the links shown on the plans deposited with reference to the Aberdeen Corporation Order 1925 not exceeding two and a half acres in extent and lying immediately to the west of the esplanade and to the south-east of the continuation of Wellington Street; and

(b) adjoining land forming part of the common good.

(2) Subject to the provisions of this Order the Corporation may continue maintain manage and use or permit upon such terms and conditions as they may think fit the use of the said part of the links and adjoining ground (in this Part of this Order referred to as “the fair ground”) for the holding of fairs shows sports and meetings or as an amusement park.

88. The Corporation may make byelaws for the following purposes in relation to the fair ground (that is to say):—

Byelaws for
regulation
of fair
ground.

(1) For the preservation of order and good conduct among persons frequenting the fair ground:

(2) For securing public health amenity and decency and the safety of persons resorting to the fair ground:

(3) For regulating the erection or placing on the fair ground of any booths tents sheds stands and stalls (whether fixed or moveable) or vehicles for the sale or exposure of any article or thing or any shows exhibitions performances swings roundabouts or other erections vans photographic carts or other vehicles whether drawn or propelled by animals persons or mechanical power:

(4) For securing protection against fire.

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PART IV.

—cont.

Allotment
of sites for
stalls and
tolls and
charges for
stalls &c.

89. The Corporation may appoint the days and times when the fair ground may be used for the holding of a fair show sports or meeting and may allot the pitches or sites to be used for that purpose and may permit any person subject to such charges and upon such terms and conditions as the Corporation think fit to occupy any pitch or site for the erection of tents booths stands stalls or other temporary buildings for providing entertainments exhibitions and amusements and for the sale of refreshments.

Temporary
enclosure of
fair ground
for shows.

90. The Corporation may temporarily enclose all or any part of the fair ground for the holding of a show or exhibition by any agricultural horticultural or trade society or for any athletic or sporting contest and may make a charge or permit a charge to be made for admission to any such enclosure Provided that the fair ground shall not be enclosed for the purposes aforesaid for more than seven days in succession nor for more than twenty-one days in any year.

Penalty for
attempting
to evade
payment of
tolls and
charges for
use of fair
ground.

91. Any person liable to pay any stallage rent toll or charge to the Corporation in respect of the fair ground who—

- (a) gives an incorrect account of such stallage rent toll or charge; or
- (b) makes any false statement in relation thereto; or
- (c) refuses or neglects to give a correct account thereof with a view to evading or attempting to evade the payment of such stallage rent toll or charge or any part thereof;

shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to pay the amount of the stallage rent toll or charge so evaded or attempted to be evaded.

Power to
take
possession
of stalls &c.
for non-
payment of
charges.

92. If any stallage rent toll or charge has become due and payable to the Corporation in respect of any building stall shed yard enclosure site space of ground or other convenience or accommodation in the fair ground and demand has been made therefor and the person liable does not pay such stallage rent toll or charge forthwith the Corporation may enter upon and take possession of such building stall shed yard enclosure

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site space of ground or other convenience or accommodation and relet the same without prejudice to any other remedy for the recovery of such stallage rent toll or charge.

PART IV.
—cont.

93.—(1) Every article brought to and left in the fair ground after the hour of closing on any day (except such as may be left in charge of the superintendent or inspector of the fair ground) may be taken possession of by such superintendent or inspector. Forfeiture of articles left in fair ground.

(2) In the case of any non-perishable article so left if it be not claimed within fourteen days the Corporation may proceed to sell such article and in that case they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid stallage rent toll or charge due in respect thereof or from the owner thereof together with the expenses of detention and sale.

(3) In the case of any article or commodity of a perishable nature so left if it be not claimed within twelve hours the Corporation may proceed to sell such article or commodity and in that case they shall return to the owner on demand the surplus proceeds of such sale after deducting any unpaid stallage rent toll or charge due in respect thereof or from the owner thereof together with the expenses of detention and sale.

(4) The Corporation may if they think fit at the expiration of the periods respectively hereinbefore mentioned with respect to each class of goods destroy any goods of that class so left instead of selling such goods and in the case of any article or commodity of a perishable nature the cost of destruction may be recovered by the Corporation from the owner in a summary manner.

(5) If in any such case as hereinbefore mentioned no demand is made by an owner within one month of a sale for the return of any surplus arising from a sale the proceeds of such sale shall be forfeited to the Corporation.

F.—Illuminations.

94. The Corporation may in on over or in proximity to any of the parks the esplanade or the seabeach adjacent thereto or any building or premises belonging to the Corporation or (with the consent of the owner Power to provide illuminations flood-lighting &c.

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PART IV.
—cont.

or owners) any other building or premises provide or arrange on such terms and conditions as they may think fit for the provision of floodlights flashlights or other illuminations and may for such purposes provide fit up maintain and operate all such lamps fittings and apparatus and appurtenances and do all such things as may be necessary or requisite in connection therewith.

G.—Art gallery.

Art gallery
to continue
vested in
Corporation.

95. The art gallery as it exists and as it is used and enjoyed by and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation for the purposes of an art gallery and museum and be held used and enjoyed by them accordingly.

Lands for
art gallery
purposes.

96. The Corporation may from time to time as they think fit by agreement purchase feu or lease or arrange for the use by them of any lands or buildings or other property for the purposes of this Head of this Part of this Order and may construct provide and maintain buildings for such purposes.

Manage-
ment of
art gallery
by com-
mittee.

97. The art gallery committee appointed in pursuance of the City Acts for the purpose of managing and carrying on the art gallery shall have and may exercise (subject to the approval of the Corporation) all or any of the following powers in connection with the art gallery:—

- (1) They may manage maintain improve enlarge extend furnish and equip the art gallery :
- (2) They may make rules and regulations for the use of the art gallery and the admission of the public thereto :
- (3) They may close the art gallery to the public on such occasions and for such periods as they think fit :
- (4) They may let or grant the use of the art gallery or any part thereof for exhibitions receptions lectures and any other like purpose :
- (5) They may fix and demand fees and charges for admission to the art gallery or any part thereof and allow any persons to whom the art gallery or any part thereof may be let to make

charges for admission thereto as they think fit respectively Provided that the days on which the public are admitted free to that portion of the art gallery in which the permanent collections of works or specimens are situated shall not be less than two hundred days in each year :

PART IV.
 —cont.

- (6) They may purchase sell lend or exchange statuary casts models paintings pictures engravings and specimens provided that the money arising from any sale or exchange shall be applied and held by the committee for the purposes of the art gallery :
- (7) They may make provision for the exhibition and display for such period as they think fit of any of the statuary casts models paintings pictures engravings and specimens vested in the Corporation in connection with the art gallery in any of the public libraries schools institutions or other premises of the Corporation or in other buildings in the city and make arrangements with the Corporation acting under the Public Libraries (Scotland) Acts 1887 to 1920 or with the owners of such other buildings for the purposes aforesaid and do all other acts and provide all other things that may be necessary or proper in connection therewith.

98. Nothing contained in this Head of this Part of this Order shall be in derogation of any existing deed of gift or trust deed under or in pursuance of which any buildings sculpture casts models pictures objects of art and illustrations of science or other collections are held or administered by the Corporation.

Saving for deeds of gift relating to art gallery property.

H.—Public halls &c.

99.—(1) The halls and other premises known as the Town House of Old Aberdeen the Woodside Hall the Cowdray Hall and the Music Hall belonging to the Corporation at the commencement of this Order shall continue vested in the Corporation and the Corporation may maintain alter improve enlarge furnish and equip the same for the purposes of public halls and may

Public halls.

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—cont.

acquire such additional and other lands and buildings and provide and equip the same for the like purposes as they may from time to time consider necessary and expedient and the Corporation may in connection with such halls provide and maintain offices shops studios and other premises.

(2) The Corporation may use the public halls belonging to them or any of them or allow the same to be used under their direction regulation and control for concerts recitals or other entertainments public meetings civic functions or such other purposes as the Corporation may from time to time sanction or approve of and the Corporation may from time to time let such halls or other premises or any of them or any part thereof and charge such rent or other consideration for the use of the same as they may think fit :

Provided that no concert or other entertainment provided by the Corporation themselves at their own hand under this subsection shall include—

- (a) the performance of a stage play; or
- (b) any performance (other than a pageant or similar display) in which scenery theatrical costumes or scenic or theatrical accessories are used; or
- (c) the showing of any cinematograph film (other than a film illustrative of matters relating to health or disease or the activities of the Corporation).

(3) The Corporation may in any of the public halls belonging to them provide and carry on or arrange for the provision or carrying on of suitable entertainments exhibitions and amusements.

(4) Nothing contained in this Head of this Part of this Order shall be in derogation of any existing deed of gift or trust deed under or in pursuance of which any of the public halls belonging to the Corporation are held or administered.

Power to
make
regulations
for halls
&c.

100. The Corporation may make such regulations as they may think fit for the proper administration of the public halls belonging to them and for securing good and orderly conduct therein.

101. The City War Memorial situated at the junction of Schoolhill and Blackfriars Street shall vest in the Corporation and the Corporation shall maintain and manage the said war memorial for the purpose for which it was erected and may do all such things as may be necessary or requisite in connection therewith.

PART IV.
—cont.
City War Memorial to vest in Corporation.

PART V.

GENERAL MUNICIPAL POWERS.

A.—Markets and fairs.

102.—(1) The fish market as it exists and as it is used and enjoyed by and vested in the Corporation at the commencement of this Order shall be and continue to be vested in the Corporation and be held used and enjoyed by them for and on behoof of the common good.

Fish market to continue vested in Corporation.

(2) The Corporation may maintain improve enlarge and extend the fish market and may levy demand and take in respect thereof such tolls dues stallages rates and rents as they may from time to time appoint not exceeding the several tolls dues stallages rates and rents specified in the Second Schedule to this Order.

103.—(1) No person shall sell or expose for sale any fish otherwise than by retail in any public place within the city except in the fish market.

Penalty on sales elsewhere than in fish market.

(2) Any person who acts in contravention of this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

(3) Nothing in this section contained shall extend or apply to salmon or fresh herrings or to fish sold or exposed for sale in any private premises.

104. If any person liable for the payment of any tolls dues stallages rates or rents payable to the Corporation in respect of the fish market fails to pay the same when demanded the Corporation or any person authorised by them to collect the same may seize any fish or article in the fish market belonging to the person liable to pay the same or under his charge and if the tolls dues stallages rates or rents and the reasonable expenses of such seizure are not forthwith paid the Corporation may sell the fish or article seized and out of the money arising therefrom pay and retain such tolls

Recovery of charges for fish market.

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dues stallages rates or rents and expenses returning the surplus proceeds (if any) of such sale to the owner of the fish or article seized or such tolls dues stallages rates or rents and expenses may be recovered in any court of competent jurisdiction.

Fish market
inspectors
may be
made
constables.

105. The Corporation may cause the superintendent of the fish market and the attendants in connection therewith to be appointed constables in relation to their duties in the fish market and the superintendent and attendants so appointed shall in relation to their duties as aforesaid have the same powers authorities and privileges and be liable to the same responsibilities as constables appointed for the city.

Fish porters
to be
licensed.

106.—(1) The magistrates may license to ply for hire as fish porters such persons as they may think fit and may cause a register to be kept of such persons ~~so licensed~~ and may from time to time suspend or revoke such licences as they shall see cause.

(2) No person shall ply for hire as a fish porter without first obtaining a licence from the magistrates ~~or during the time his licence is suspended or after it has been revoked or has ceased to be in force and any person acting in contravention of this section shall be guilty of an offence and shall be liable to a~~ penalty not exceeding twenty shillings.

(3) For the purposes of this and the next succeeding section of this Order "fish porter" includes all men employed in the fish market but does not include the purchasers of fish or men in their regular full-time employment or carriers engaged by the purchasers of fish for the removal of fish purchased or men in the regular full-time employment of such carriers or salesmen.

(4) For the purposes of this and the next succeeding section of this Order the fish market shall subject to the consent of the Aberdeen Harbour Commissioners include the quay between the fish market and the dock.

Byelaws
as to fish
market.

107. The Corporation may make byelaws with respect to the fish market—

- (i) For fixing and regulating the hours during which the fish market or any part thereof shall be open;

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—cont.

- (ii) For regulating the use of the fish market and the stalls and offices therein;
- (iii) For fixing the tolls dues stallages rates and rents to be payable to the Corporation in respect of the fish market and the stalls and offices therein and the time for and manner of collecting the same;
- (iv) For regulating the conduct of fish porters plying within the fish market and determining what badges (if any) fish porters shall wear and for regulating the hours within which they may exercise their calling;
- (v) For regulating ~~and fixing~~ the time and manner in which the licences to fish porters shall be applied for and granted the period during which such licences shall remain in force the time and manner of applying for and granting renewals of the same;
- (vi) For securing the observance of sanitary and cleanly conditions and practices in the fish market.

108. The Corporation shall maintain Justice Street Provisions Market and shall continue to make provision for the following matters with respect thereto:—

as to
Justice
Street
Market.

- (a) The maintenance of a suitable place for stands and passages between the same;
- (b) The supply by means of stand-pipes or otherwise of water for drinking and washing purposes for the convenience of stallholders together with suitable lavatory and water-closet accommodation;
- (c) Facilities for the supply of electric light to stallholders;
- (d) The erection and maintenance of suitable signs indicating the situation of the markets to be held;
- (e) Reasonable access for vehicles to Justice Street Market.

109.—(1) The Corporation may make such byelaws as they shall think necessary for regulating the use of Justice Street Market and the markets held thereat and the conduct of persons resorting thereto or carrying

Byelaws for
Justice
Street
Market.

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—cont.

on business or employed thereat including (without prejudice to the foregoing generality) byelaws for some or all of the purposes following (that is to say):—

- (a) The days on which and the time during which stalls may be erected;
- (b) The charges to be made for stalls; and
- (c) The number size arrangement allocation and position of stalls:

Provided that the charges made to stallholders (and to their successors in business being members of their respective families) at Justice Street Market who prior to the transfer by the Corporation under the provisions of the repealed Acts to Justice Street Market of the market stances formerly existing at a site in Castle Street were regular stallholders at the said site in Castle Street shall for a period of ten years from the date of the transfer as aforesaid not exceed the corresponding charges made immediately prior to that date to stallholders at the said site in Castle Street.

(2) In the event of any dispute arising as to whether all or any of the provisions of this and the immediately preceding section of this Order have been complied with the same shall be determined by the sheriff upon application being made to him in writing so to determine.

Provision
with respect
to charges
at Justice
Street
Market.

110. The charges for market stands in Justice Street Market shall form part of the revenues of the common good Provided that the Corporation shall annually pay from the common good out of the said revenues to the burgh fund any sum remaining after deduction of a sum of two hundred and thirteen pounds from the amount of the charges collected by the Corporation from stallholders at Justice Street Market.

Byelaws as
to use of
The Green
as public
market
place.

111. The Corporation may make such byelaws as they think fit in relation to the use of The Green as a public market place or may discontinue in whole or in part the use of The Green as a public market place.

Charges for
market
stands.

112. Subject to the provisions of this Head of this Part of this Order the Corporation may levy collect and recover the charges specified in the Third Schedule to this Order for market stands in Justice Street Market and The Green.

113.—(1) The Corporation may make such byelaws as may appear necessary and expedient for regulating the situation of stalls booths benches carts barrows boxes and baskets on the usual market days or on such market days as may be fixed by the Corporation (which they are hereby empowered to fix) so that a free and uninterrupted passage may be preserved for all vehicles and foot passengers in the streets and for removing in a summary manner all such stalls booths benches carts barrows boxes and baskets or any other obstruction to such situation or place of safety as the Corporation or the chief constable shall direct.

PART V.
—cont.
Byelaws for regulation of markets.

(2) Any person owning any such stall booth bench cart barrow box basket or other obstruction or having charge of the same who refuses to remove such stall booth bench cart barrow box basket or other obstruction in accordance with any byelaw made under the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings for every such offence and shall also be liable to pay the expense of such removal which expense shall be recovered as damages.

114. It shall not be lawful to hold the annual market known as St. Luke's Fair or the Aulton Market formerly held at the Glebe Lands Old Aberdeen.

Discontin-
ance of
St. Luke's
Fair.

B.—Weights and measures.

115. In this Head of this Part of this Order unless the subject or context otherwise requires—

Definitions
for Head B
of Part V
of Order.

“Coal” includes any other fuel of which coal is a constituent;

“Inspector of weights and measures” means an inspector appointed under and by virtue of the Weights and Measures Acts;

“Vehicle” means any carriage cart wagon truck barrow or other means of carrying materials by land in whatsoever manner the same may be drawn or propelled but does not include a railway truck or wagon;

“Weighing instrument” means and includes scales with the weights belonging thereto scale beams balances spring balances steelyards weighing machines and other instruments for weighing;

“Weights and Measures Acts” means the Weights and Measures Act 1878 and any Act amending or extending the same;

41 & 42 Vict.
c. 49.

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Words and expressions to which by the Weights and Measures Acts meanings are assigned have the same respective meanings.

Public
weighing
instru-
ments.

116.—(1) The Corporation may continue provide erect and maintain upon or adjacent to any street or at any other convenient place (not being upon any land or property of a railway company or of the Aberdeen Harbour Commissioners) fixed weighing instruments and offices in connection therewith for the use of the public and houses for the accommodation of the persons in charge thereof as they think necessary and may also provide furnish and maintain such and so many portable weighing instruments as they think necessary and may appoint persons to keep and attend any such instruments.

(2) The Corporation may make such reasonable charges as they may determine for and in respect of the use of any such weighing instruments.

(3) The keeper of any such weighing instrument shall during such hours as may be fixed by the Corporation weigh or re-weigh any vehicle or the contents or load of any vehicle presented to him for that purpose capable of being weighed on such weighing instrument and shall enter in a book and also give to the person in charge of the vehicle a ticket or note stating—

- (a) the contents or load of such vehicle;
- (b) the gross weight of such vehicle;
- (c) the tare weight of such vehicle if ascertainable;
- (d) the number of such vehicle if marked thereon;
- and

(e) the date and time of weighing such vehicle;
for which ticket or note he may exact from the person in charge of the vehicle such fees as may be fixed by the Corporation under the provisions of this Head of this Part of this Order but such fees shall be repaid to the person in charge of the vehicle by the person receiving delivery of the contents of such vehicle.

(4) If the keeper of any such fixed weighing instrument—

- (a) refuses without reasonable excuse to weigh or re-weigh any vehicle or the contents or load of any vehicle; or

(b) gives a ticket or note specifying untruly or incorrectly any of the particulars hereinbefore in this section mentioned; or

(c) so weighs any vehicle or the contents or load of any vehicle as wilfully to defraud any person;

he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

117.—(1) In this section the expression “personal weighing machine” means any weighing machine which is used or exposed for use for the purpose of ascertaining the weight of a person (a) for the use of which a charge is made or (b) which is kept for the use of the public in any shop or premises or in any place in the city. Personal weighing machines.

(2) The owner or the person in charge of any personal weighing machine which is false or unjust shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings or in the case of a second or any subsequent offence five pounds and the machine shall be liable to be forfeited.

(3) A personal weighing machine shall not be used or exposed for use unless it has been examined and approved by an inspector of weights and measures and has been marked with a distinguishing mark by such inspector.

(4) If any person forges or counterfeits or removes any such distinguishing mark as is referred to in the last preceding subsection of this section he shall be liable to a penalty not exceeding five pounds and if after the expiry of twelve months from the commencement of this Order any person knowingly exposes for use any personal weighing machine without such mark or with such forged or counterfeit mark thereon he shall be liable to a penalty not exceeding five pounds.

(5) (a) Any inspector of weights and measures may at all reasonable times inspect and examine any personal weighing machine and may seize and detain any such machine which is liable to be forfeited under the provisions of this section and may for the purposes of such inspection and examination enter any place (whether open or enclosed) where he has reasonable

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—cont.

cause to believe that there is a personal weighing machine which he is authorised to inspect and examine.

(b) Any person who neglects or refuses to produce for such inspection any personal weighing machine in his possession or on his premises or refuses to permit any inspector of weights and measures to examine the same or obstructs the entry of such inspector or otherwise obstructs or hinders him from acting under this section shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds or in the case of a second offence ten pounds.

(6) The Corporation shall as soon as may be after the commencement of this Order make byelaws—

(a) generally with respect to the examination and inspection of personal weighing machines and the distinguishing marks to be fixed on personal weighing machines under this section and the circumstances and conditions under which such marks may be affixed or cancelled;

(b) with respect to the tests to be applied for the purpose of ascertaining the accuracy and efficiency of personal weighing machines;

(c) for fixing the fees to be paid to the Corporation for the examination approval and marking of personal weighing machines under this section or for the examination of such personal weighing machines as are found to be incorrect or defective; and

(d) for fixing the limits of error to be allowed on examination and approval or on inspection and examination of any personal weighing machine under this section.

(7) The provisions of subsections (2) (3) (4) and (5) of this section shall not come into operation until the date of the confirmation of the byelaws first made by the Corporation after the commencement of this Order in pursuance of subsection (6) of this section.

Penalty on
fraud in
connection
with
weighing.

118. Any owner or driver or other person having the charge of any vehicle who shall—

(a) place or knowingly have any article matter or thing in or about such vehicle other than the proper load therein;

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- (b) alter the tare or weight or the ticket denoting the weight of any vehicle or of the load thereof; PART V.
—cont.
- (c) make use or be privy to the making or using of any false or fraudulent ticket respecting the weight of any such vehicle or load;
- (d) abstract any part of the load from such vehicle after it shall have passed the weighing instrument where it was originally weighed;
- (e) make or give or use or be privy to the making or giving or using of any false or fraudulent contrivance touching the weight of any vehicle or of the load therein; or
- (f) knowingly aid or assist in the committing of any fraud respecting the weight of any vehicle or the load therein weighed or stated or represented to be weighed at any such weighing instrument;

shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds or to be imprisoned for any period not exceeding thirty days.

119.—(1) All coal shall be sold by weight only except where by the written consent of the purchaser it is sold by boat load or by wagons or tubs delivered from the colliery into the works of the purchaser. Coal to be sold by weight.

(2) If any person sells coal otherwise than as required by this section he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds for every such sale.

120.—(1) Where any quantity of coal exceeding two hundredweight is delivered by means of any vehicle to a purchaser the seller of the coal shall therewith deliver or cause to be delivered to the purchaser or to his servant before any part of the coal is unloaded a ticket or note in the form contained in the Fourth Schedule to this Order or according to a form to the like effect. Delivery of coal over two hundredweight.

(2) If default is made in complying with the requirements of the immediately preceding subsection of this section with respect to the delivery or sending of a ticket or note or if the quantity of coal delivered is less than the quantity expressed in the ticket or note

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—cont.

the seller of the coal shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

(3) If any person attending on any such vehicle having received any such ticket or note for delivery to the purchaser refuses or neglects to deliver it as required by this section or on being requested so to do to exhibit it to any inspector of weights and measures or any other officer appointed for the purpose by the Corporation he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

Coal sold in
bulk.

121.—(1) Where any quantity of coal exceeding two hundredweight is conveyed for delivery on sale in a vehicle in bulk or the sacks or bags of coal have not been weighed individually the seller of the coal shall cause the weight of the vehicle (unless the vehicle is provided by the purchaser) as well as of the coal contained therein to be previously ascertained by a weighing instrument stamped by an inspector of weights and measures and being on or near to the place from which the coal is brought.

(2) In any such case the seller of the coal shall insert or cause to be inserted in the ticket or note required by this Head of this Part of this Order to be given by him a statement of the correct weight of the vehicle or of the vehicle and of the animal drawing it where both are weighed together with the load as well as of the correct weight of the coal contained in the vehicle.

(3) If any person fails to comply with the requirements of this section he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

Fraud by
drivers
of coal
vehicles.

122. If any person in charge of any vehicle in which coal is carried wilfully makes any false statement as to the tare weight of the vehicle or wilfully does any act by which either the seller or the purchaser of the coal is defrauded he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

Deficient
weight of
coal on
small sales.

123. If any person on the sale of coal in any quantity not exceeding two hundredweight fraudulently delivers to the purchaser a less quantity of coal than is agreed to be sold he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

124.—(1) Where coal is sold by retail for delivery at the place where it is kept for sale and there is not at or near such place any weighing instrument stamped by an inspector of weights and measures at which the coal can be weighed the seller shall keep at that place a weighing instrument stamped as aforesaid and shall if so required by any purchaser or by any inspector of weights and measures or any other officer appointed for the purpose by the Corporation weigh any coal before the sale or delivery thereof.

PART V.
—cont.
Weighing
instrument
to be kept
where coal
sold by
retail.

(2) If any person fails to comply with the requirements of this section he shall be guilty of an offence and shall be liable to a penalty not exceeding for a first offence two pounds and for any subsequent offence five pounds.

125.—(1) Any seller or purchaser of coal or person in charge of a vehicle in which coal is carried or inspector of weights and measures or other officer appointed for the purpose by the Corporation may require that any coal or any vehicle used for the carriage of coal be weighed or re-weighed by any weighing instrument stamped by an inspector of weights and measures :

Weighment
of coal or
vehicle.

Provided as follows :—

(a) No seller of coal or person in charge of a vehicle in which coal is carried shall be required under this section to carry coal beyond one mile;

(b) Where any such coal or vehicle has at the instance of the purchaser been weighed or re-weighed in pursuance of this section and found to be of the weight stated in that behalf by the seller of the coal or the person in charge of the vehicle the purchaser shall be liable to the payment of all reasonable costs actually incurred of and incidental to the weighing or re-weighing.

(2) If any person obstructs or if any driver or other person in charge of any such vehicle refuses to assist when called upon so to do any weighing or re-weighing by this section authorised he shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

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—cont.
Registration
of sellers of
coal in small
quantities.

126.—(1) Every person selling coal in quantities not exceeding two hundredweight shall register his name and address with the Corporation and no person shall carry on the business of selling coal as aforesaid unless he so registers.

(2) Any person offending against the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

Byelaws as
to sale of
coal.

127. The Corporation may make byelaws for all or any of the following purposes (that is to say):—

- (i) Regulating for the purpose of this Head of this Part of this Order the sale of coal in quantities not exceeding two hundredweight;
- (ii) Requiring either generally or in specified classes of cases a weighing instrument of a form approved by the Corporation to be carried with any vehicle in which coal is carried for sale or delivery to a purchaser;
- (iii) Fixing the fees to be paid for the use of any weighing instrument maintained by the Corporation;
- (iv) Regulating the charges to be made for the cartage and delivery of coal;
- (v) Prohibiting the wilful damping of coke;
- (vi) Regulating the weighing of vehicles in which coal is carried for the purpose of ascertaining the tare weight.

Weighment
of coal in
shop or
vehicle.

128.—(1) Any inspector of weights and measures or any other officer appointed for the purpose by the Corporation may at all reasonable times enter any building or other place in which coal is sold or kept or exposed for sale and may stop any vehicle or person carrying coal for sale or for delivery to a purchaser and may test any weights and weighing instruments found in any such building place or vehicle and may weigh any load sack or other less quantity of coal found in any such building place or vehicle or which is in course of delivery to any purchaser.

(2) If it appear to the magistrate that any load sack or less quantity so weighed is of less weight than that represented by the seller the person selling or

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keeping or exposing the coal for sale or the person in charge of the vehicle as the case may be shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

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—cont.

(3) Any person who obstructs or hinders or any person in charge for the time being of any such building place or vehicle who when called upon so to do refuses to assist any inspector or officer acting under this section shall be guilty of an offence and shall be liable to a penalty not exceeding for a first offence five pounds and for any subsequent offence ten pounds.

129. The Corporation may by resolution and with the approval of the Secretary of State declare that as from such date as may be specified in such resolution the provisions of this Head of this Part of this Order and of any byelaws made under such provisions shall apply to the sale of coke and the provisions of section 15 of the Burgh Police (Scotland) Act 1892 shall with the necessary modifications extend and apply to such resolution.

Extension
of this Head
of this Part
of Order to
sale of coke.

C.—Burial grounds and cemeteries.

130. All burial grounds cemeteries and churchyards vested in or belonging to the Corporation at the commencement of this Order shall continue vested in the Corporation and be held and used by them.

Vesting of
burial
grounds &c.

131.—(1) The Corporation shall continue to be the authority for carrying out within the city the provisions of the Burial Grounds Acts and shall have as regards all burial grounds cemeteries and churchyards vested in or belonging to them all the powers rights and duties and shall be subject to all the liabilities of a burial authority under those Acts.

Corpora-
tion to be
authority
for execu-
ting Burial
Grounds
Acts.

(2) Notwithstanding anything contained in the Burial Grounds Acts the Corporation may exercise such powers and rights as aforesaid in the same manner and at the same time and subject to the same notices as all other powers of the Corporation are exerciseable by them and without being required to keep separate minutes books and accounts relative to their business under the said Acts.

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Preservation of historical and other monuments.

132. The Corporation may in their discretion repair and preserve historical and other monuments situated in any burial ground cemetery or churchyard within the city.

Power to accept sums for maintenance of graves &c.

133. The Corporation may enter into arrangements for maintaining lairs or burying places or monuments in any burial ground cemetery or churchyard vested in or belonging to them and may for such purposes accept and apply any sums of money received by them under such arrangements.

Consent of Corporation as to cemeteries.

134. After the commencement of this Order it shall not be lawful for any person except with the consent in writing of the Corporation to lay out make or construct any burial ground cemetery or crematorium or to extend or enlarge any existing burial ground cemetery or crematorium within the city Provided that the provisions of this section shall not apply to—

(a) the Allenvale Cemetery the Springbank Cemetery or the Trinity Cemetery as the same respectively exist at the commencement of this Order; or

(b) any lands belonging on the twenty-eighth day of May one thousand nine hundred and thirty-five to the Aberdeen Baker Incorporation and forming part of or held by them for the purpose of extending the said Springbank Cemetery;

so long as such lands form part of any of the said cemeteries or are held for the said purpose.

Byelaws for cemeteries.

135. The Corporation may for the protection of the public health and amenity and the maintenance of public decency make byelaws for the regulation and preservation of burial grounds cemeteries and crematoria.

Burial registers to be kept.

136.—(1) Every interment in any burial ground or cemetery (not belonging to the Corporation) shall be registered in register books to be provided and kept for that purpose in such manner as may be approved by the Corporation by the person to whom such burial ground or cemetery belongs and such register books shall specify the place of each interment within such burial ground or cemetery with reference to a plan or

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plans which shall also be provided and kept for such purpose by the person to whom the burial ground or cemetery belongs and on which plan every lair or burying place shall be numbered and the register books and plan or plans shall at all reasonable times be open to inspection by the medical officer or the sanitary inspector without fee or payment.

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(2) Any person failing to comply with the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding fifty pounds.

137.—(1) It shall not be lawful except with the consent of the Corporation to inter or cause or permit to be interred any human remains in any place within the city other than in a public burial ground or cemetery. Interments.

(2) Any person who does or causes or wilfully permits to be done any act in contravention of this section shall be guilty of an offence and shall be liable to a penalty not exceeding fifty pounds and to a daily penalty not exceeding five pounds.

D.—Public clocks.

138. The Corporation may from time to time provide such clocks as they consider necessary and cause the same to be fixed upon or against any public building or with the consent of the owner and occupier upon or against any private building the situation of which may be convenient for that purpose and may cause the dials thereof to be lighted at night and may from time to time maintain regulate repair renew alter or may remove any such clock. Power to Corporation to provide public clocks.

PART VI.

LICENSING PROVISIONS.

A.—Advertisements and hoardings.

139.—(1) Any person who proposes to erect any hoarding or similar structure to be used either wholly or partly for advertising purposes upon any land or building in or abutting on or adjoining any street or court shall present a written application to the Corporation for warrant so to do accompanied by a relative plan and elevation and the Corporation may Provision as to hoardings and other structures used for advertising purposes.

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—cont.

on being satisfied as to the stability and sufficiency of such hoarding or similar structure and the position thereof in relation to the building line of the adjoining buildings grant warrant accordingly.

(2) The Corporation may remit to the city engineer to examine any such application and relative plan and on his being satisfied therewith to grant warrant with such modifications and under such conditions (if any) as he may think proper which warrant shall have the same effect in all respects as if it had been granted by the Corporation.

(3) If the city engineer refuses to grant such warrant the applicant may appeal to the Corporation.

(4) No procedure or warrant under this section shall prejudice any rights competent to third parties or relieve the applicant from any liability or obligation to third parties which he may otherwise be under.

(5) Every owner or person using any hoarding or similar structure for advertising purposes whether erected before or after the first day of January one thousand nine hundred and thirty-nine shall keep and maintain the same at all times in a proper and safe condition and repair and securely fixed or erected to the satisfaction of the Corporation and the Corporation may at any time pronounce an order requiring the owner or other person using such hoarding or structure within a period to be specified in such order to take such steps as may be necessary in their opinion to render the same secure or (if they shall so direct) to remove the same.

(6) In the event of such order not being implemented to their satisfaction within the period specified the Corporation may authorise the city engineer to take such steps as they may direct to render the said hoarding or structure secure or in case of urgency to remove the said hoarding or structure at the expense of the owner or other person using the same.

(7) Any proceedings under this section and any order pronounced in terms thereof may be taken or pronounced against either the owner or other person using such hoarding or structure.

(8) The provisions of this section shall not apply to or in respect of any newspaper or periodical contents bill board or placard or board employed for the purpose

of advertising newspapers and periodicals and situated upon or attached to any premises in which the newspapers and periodicals so advertised are printed published sold or distributed (hereinafter in this section referred to as "bill board") provided that every owner or person using any bill board whether erected before or after the first day of January one thousand nine hundred and thirty-nine shall keep and maintain the same at all times in a proper and safe condition and repair and securely fixed or erected to the satisfaction of the Corporation and the Corporation may at any time pronounce an order requiring the owner or other person using any such bill board within a period to be specified in such order to take such steps as may be necessary in their opinion to render the same secure. In the event of such order not being implemented to their satisfaction within the period specified the Corporation may authorise the city engineer to take such steps as they may direct to render the bill board secure at the expense of the owner or other person using the same.

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(9) Any person aggrieved by or in consequence of any decision or order of the Corporation under this section may appeal therefrom and the provisions of section 168 (Appeals) of the Order of 1936 shall extend and apply in respect of any such appeal.

140.—(1) No person shall erect fix maintain or retain upon or in connection with any building or erection any sky sign whether existing at the first day of January one thousand nine hundred and thirty-nine or not except with the licence of the Corporation.

Regulations
as to sky
signs.

(2) Such licence may be granted for any period not exceeding two years and under and subject to such terms and conditions as shall be therein prescribed.

(3) A licence under this section shall become void in any of the following cases (that is to say) :—

- (i) If any addition to any sky sign be made except for the purpose of making it secure under the direction of the city engineer;
- (ii) If any change be made in the sky sign or any part thereof;
- (iii) If the sky sign or any part thereof fall either through accident decay or any other cause;

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- (iv) If any addition or alteration be made to or in the house building or structure on over or to which any sky sign is placed or attached if such addition or alteration involves the disturbance of the sky sign or any part thereof;
- (v) If the house building or structure over on or to which the sky sign is placed or attached become unoccupied or be demolished or destroyed.

(4) If any sky sign be erected or retained contrary to the provisions of this Order or after the licence for the erection maintenance or retention thereof for any period shall have expired or become void the Corporation may order the proprietor of the sky sign to take down and remove such sky sign within a specified time and in the event of his failing so to do grant warrant to the city engineer to take down and remove such sky sign at the expense of the proprietor and the expense thereof and of the proceedings with reference thereto may be recovered from the proprietor in any competent court.

(5) Any person acting in contravention of any of the provisions of this section or of the terms and conditions (if any) of any licence under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(6) Any person aggrieved by or in consequence of any decision or order of the Corporation under this section may appeal therefrom and the provisions of section 168 (Appeals) of the Order of 1936 shall extend and apply in respect of any such appeal.

Advertisements and advertising sites to be licensed.

141. For the purpose of protecting the amenity of the city and of enabling the Corporation to exercise control over any sites or hoardings to be used for the purposes of advertisements the following provisions shall have effect :—

- (1) It shall not be lawful to erect exhibit fix maintain retain or continue any advertisement whether existing at the first day of January one thousand nine hundred and thirty-nine or not upon any land building or hoarding except on such sites buildings or hoardings as the Corporation may in writing license and such licence may be granted for such period not

exceeding three years and subject to such terms and conditions to be therein prescribed as the Corporation may deem proper :

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—cont.

(2) A licence shall not be necessary for any advertisement or site for advertisements (not being illuminated advertisements) of the classes following (that is to say) :—

(i) Advertisements exhibited within the window of any building ;

(ii) Advertisements relating to the trade or business carried on within the land or building upon which the same are placed (and not being sky signs) or to any sale feu or let of such land or building or any effects therein or to any sale entertainment or meeting held in or upon the same ;

(iii) Advertisements relating to the business of any railway company ;

(iv) Advertisements exhibited within any railway station or upon any wall or other property of a railway company except any portion of the surface of such wall or property fronting any public street :

(3) If any advertisement be erected retained or continued contrary to the provisions of this section or after the licence for the erection maintenance or retention thereof on a licensed site for any period shall have expired or become void the Corporation may require the owner or occupier of the land or building upon which the same is placed or rests to take down or remove such advertisement within a specified time and in the event of his failing to do so the city engineer shall report such failure to the procurator-fiscal and the magistrate may on the application of the procurator-fiscal grant warrant to and authorise the city engineer to take down and remove such advertisement at the expense of such owner or occupier and the expense of the removal and of the proceedings with reference thereto shall be paid by such owner or occupier and may be recovered in any competent court :

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—cont.

- (4) Any person acting in contravention of any of the provisions of this section or of the terms and conditions of any licence under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings :
- (5) The expression “advertisement” shall in this section mean any word letter model sign placard board notice device or representation whether illuminated or not in the nature of or employed wholly or in part for the purpose of advertisement announcement or direction on over or resting upon any land building or street :
- (6) If the Corporation refuse to grant a licence under the provisions of this section they shall state their reasons for such refusal and any person aggrieved by the refusal to grant any such licence or by the terms and conditions attached to such licence may appeal to the sheriff within fourteen days after receipt of notice from the Corporation refusing a licence by letter signed by or on behalf of such person stating the grounds of such appeal and a copy of such letter shall at the same time be sent to the town clerk and the sheriff may after hearing the parties either dismiss the appeal or grant the licence for a period not exceeding three years :
- (7) Licences existing as at the twenty-eighth day of March one thousand nine hundred and thirty shall continue until Whit Sunday one thousand nine hundred and forty :
- (8) Notwithstanding anything in this section contained a licence shall not be necessary in respect of newspaper or periodical contents bills or bill boards and advertisements placards and boards employed for the purpose of advertising newspapers and periodicals and displayed within or outside any premises in which the newspapers and periodicals so advertised are printed published sold or distributed Provided that if in the opinion of the Corporation any such display is such as to affect prejudicially

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the amenity of the locality in which such premises are situated the Corporation may require the occupier of such premises to limit or curtail such display in such manner as they may think reasonable and in the event of any such occupier feeling aggrieved by any requirement of the Corporation under this subsection such occupier may appeal to the sheriff who shall deal with the matter summarily and his decision shall be final.

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142. The provisions of this Head of this Part of this Order shall come into operation on the first day of January one thousand nine hundred and thirty-nine and on that date section 43 (Provision as to hoardings and other structures used for advertising purposes) and section 44 (Regulations as to sky signs) of the Aberdeen Police and Improvement Act 1900 and section 66 (Advertisements and advertising sites to be licensed) of the Aberdeen Corporation Order 1930 shall be repealed.

Commence-
 ment of
 Head A of
 Part VI of
 Order.

63 & 64 Vict.
 c. cxxiv.
 20 & 21
 Geo. 5.
 c. cxxxii.

B.—Hackney carriages.

143. The magistrates may from time to time license to ply for hire within five miles from the General Post Office of the city such number of hackney carriages as they think fit.

Hackney
 carriages
 to be
 licensed.

144.—(1) Before any licence under this Head of this Part of this Order is granted the proprietor or one of the proprietors of the hackney carriage in respect of which such licence is required shall make and sign an application for such licence in such form as the magistrates may from time to time prescribe for that purpose.

Persons
 applying for
 hackney
 carriage
 licences to
 sign a
 requisition
 for same.

(2) In every such application there shall be stated the name and place of abode of the person applying for such licence and of every proprietor or part proprietor of such hackney carriage or person concerned either solely or in partnership with any other person in the keeping managing or letting for hire of such hackney carriage.

(3) Any person who states in such application the name of any person who is not a proprietor or part

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proprietor of such hackney carriage or who is not concerned in the keeping managing or letting for hire of such hackney carriage and any person who wilfully omits to specify truly in such application the name of any person who is a proprietor or part proprietor of such hackney carriage or who is concerned as aforesaid in the keeping managing or letting for hire of such hackney carriage shall be guilty of an offence and shall be liable to a penalty not exceeding ten pounds.

Terms of
hackney
carriage
licence.

145. In every licence granted under this Head of this Part of this Order there shall be specified—

- (a) the name and place of abode of every person who is a proprietor or part proprietor of the hackney carriage in respect of which such licence is granted or who is concerned either solely or in partnership with any other person in the keeping managing or letting for hire of any such hackney carriage;
- (b) the number of such licence which shall correspond with the number to be painted or marked on any plate required to be fixed on such hackney carriage;
- (c) such other particulars as the magistrates think fit.

Hackney
carriage
licences to
be regis-
tered.

146.—(1) Every licence granted under this Head of this Part of this Order shall be duly entered in a book to be provided by the town clerk for that purpose.

(2) Such book shall contain columns or places for entries to be made of every offence committed by any proprietor or driver or person attending the hackney carriage in respect of which such licence is granted.

(3) Any person may at any reasonable time inspect such book free of charge.

Period dur-
ing which
hackney
carriage
licences
shall be in
force.

147.—(1) No licence granted under the section of this Order of which the marginal note is "Hackney carriages to be licensed" shall include more than one hackney carriage so licensed.

(2) Every such licence shall be in force for one year only from the date of such licence or until any general licensing day appointed by the magistrates

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or until revoked by the magistrates Provided that a licence granted by the magistrates may be for a less period than one year.

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—cont.

(3) In every case the period during which the licence shall be in force shall be stated in the licence and every licence shall cease to be in force at the expiration of the period therein stated.

(4) The magistrates may in their discretion grant occasional licences for hackney carriages to be in force for such day or days as may be specified in such licences.

148.—(1) Any person named in any licence granted under this Head of this Part of this Order as the proprietor or one of the proprietors or as being concerned either solely or in partnership with any person in the keeping managing or letting for hire of the hackney carriage in respect of which such licence is granted who changes his place of abode shall within seven days next after every such change give notice thereof in writing signed by him to the town clerk specifying in such notice his new place of abode and shall at the same time produce such licence and the town clerk shall endorse thereon the particulars of such change.

Notice to be given by proprietors of hackney carriages of change of abode.

(2) Every person named in any such licence as the proprietor or one of the proprietors of any hackney carriage or as being concerned as aforesaid who changes his place of abode and neglects or wilfully omits to give notice of such change or to produce such licence in accordance with the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

149.—(1) Any proprietor or part proprietor of any hackney carriage and any person concerned either solely or in partnership with any person in the keeping managing or letting for hire of any hackney carriage who permits such hackney carriage to be used as a hackney carriage—

Penalty for plying for hire without licence.

(a) without having obtained a licence for such hackney carriage in terms of this Head of this Part of this Order; or

(b) during the time that such licence is suspended as hereinafter provided; or

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(2) Any person who shall be found within the city driving standing or plying for hire with any hackney carriage for which a licence has not been previously obtained or upon which a number corresponding with the number of the licence is not openly displayed; shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

Drivers of
hackney
carriages to
be licensed.

150.—(1) The magistrates shall from time to time license such persons as they shall think fit to act as hackney carriage drivers.

(2) Every licence granted in pursuance of this section shall be in force for such a period not exceeding one year as the magistrates shall fix unless the same is revoked or suspended as hereinafter provided.

(3) In every case the period during which a licence granted in pursuance of this section shall be in force shall be stated in the licence and every such licence shall cease to be in force at the expiration of the period therein stated.

Penalty on
drivers
acting
without
licence.

151. Any person who acts as driver of a hackney carriage without having obtained a licence or during the time that his licence is suspended lends or parts with his licence except to the proprietor of the hackney carriage and any proprietor of any hackney carriage who employs any person as the driver thereof who has not obtained a licence or during the time that his licence is suspended shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings.

Proprietor
to retain
licence of
drivers.

152.—(1) In every case in which the proprietor of any hackney carriage permits or employs any licensed person to act as the driver thereof such proprietor shall cause to be delivered to him and shall retain in his possession the licence of such driver while such driver remains in his employment and in all cases of complaint such proprietor shall produce the licence of such driver if he be then in his employment and if any driver complained of be adjudged guilty of the offence alleged against him the magistrate shall make an endorsement on the licence of such driver stating the nature of the offence and the amount of the penalty inflicted.

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(2) Any such proprietor who neglects to have delivered to him and to retain in his possession the licence of any driver while such driver remains in his employment or refuses or neglects to produce such licence as aforesaid shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

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—cont.

153. When any driver of a hackney carriage leaves the service of the proprietor by whom he is employed such proprietor shall forthwith return to such driver the licence belonging to him.

Return of
licences to
drivers.

154. The magistrates may upon the conviction for the second time of the proprietor or driver of any hackney carriage for any offence under the provisions of this Head of this Part of this Order or any byelaw made thereunder suspend or revoke as they think fit the licence of any such proprietor or driver.

Licences to
be sus-
pended or
revoked for
misconduct.

155.—(1) No hackney carriage shall be used or employed or let for hire or shall stand or ply for hire within the distance prescribed in the section of this Order of which the marginal note is "Hackney carriages to be licensed" unless the number of persons to be carried by such hackney carriage in words at length and in form following (that is to say) "Licensed to carry persons" be painted on a plate placed on some conspicuous place on the outside of such hackney carriage and in legible letters at least one inch in length and of a proportionate breadth so as to be clearly distinguishable from the colour of the ground whereon the same are painted.

Number of
persons to
be carried
in hackney
carriage
to be
exhibited
thereon.

(2) The driver of any hackney carriage shall not be required to carry in or by such hackney carriage a greater number of persons than the number painted on such plate.

156.—(a) The proprietor of any hackney carriage on which the number of persons to be carried therein is not painted and exhibited in the manner prescribed by the immediately preceding section of this Order who permits such hackney carriage to be used employed or let for hire; or

Penalty for
neglect or
refusal to
carry
prescribed
number.

(b) any person who stands or plies for hire with such hackney carriage; or

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(c) the driver of any hackney carriage who refuses when required by the hirer thereof to carry in or by such hackney carriage the number of persons painted on the plate placed thereon or any less number;

shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

Penalty on driver refusing to drive.

157. Any driver of a hackney carriage standing at any of the stands for hackney carriages appointed by the magistrates or in any street who refuses or neglects without reasonable excuse to drive such hackney carriage to any place within the distance prescribed in the section of this Order of which the marginal note is "Hackney carriages to be licensed" or any distance to be appointed by any byelaw of the magistrates not exceeding the said distance to which he is directed to drive by the person hiring or wishing to hire such hackney carriage shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

Penalty for agreeing to less or demanding more than legal fare.

158. Any proprietor or driver of any hackney carriage and any other person on his behalf who agrees beforehand with any person hiring such hackney carriage to take a sum less than the fare allowed under any byelaw made under this Head of this Part of this Order or who shall ~~exact or demand more than the fare~~ so allowed shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

Agreement to pay more than legal fare not to be binding.

159.—(1) No agreement whatever made with the driver or with any person having or pretending to have the care of any hackney carriage for the payment of more than the fare allowed under any byelaw made under this Head of this Part of this Order shall be binding on the person making such agreement and any such person may notwithstanding such agreement refuse on discharging such hackney carriage to pay any sum beyond the fare allowed as aforesaid.

(2) If any person actually pays to the driver of any hackney carriage in pursuance of any such agreement any sum exceeding the fare to which such driver was entitled the person paying the same shall be entitled on complaint made against such driver before the magistrate to recover back the sum paid beyond the

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proper fare and such driver shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

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 —cont.

160. Any proprietor or driver of any hackney carriage and any other person on his behalf who agrees with any person to carry in or by such hackney carriage persons not exceeding in number the number painted on the plate placed on such hackney carriage in accordance with the provisions of this Head of this Part of this Order for a distance to be in the discretion of such proprietor or driver and for a sum agreed upon shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings if the distance which he carries such persons be under that for which they were entitled to be carried for the sum so agreed upon according to the fare allowed under any byelaw made under this Head of this Part of this Order.

Driver to carry distance to which hirer entitled for agreed fare.

161. Any proprietor or driver of any hackney carriage who is convicted of exacting or demanding as a fare a greater sum than is authorised under any byelaw made under this Head of this Part of this Order shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and in the conviction of such proprietor or driver an order may be included for payment of the sum so overcharged over and above the penalty and expenses and such overcharge shall be returned to the party aggrieved whose evidence shall be admissible in proof of such offence.

Overcharge by hackney carriage drivers to be included in conviction and returned to aggrieved party.

162. Any person who refuses to pay on completion of the hire or service the regular fare due by him for the hire or service of any hackney carriage shall be liable by way of penalty to pay such sum in addition to the fare as the magistrate shall determine as compensation to the driver or proprietor of such hackney carriage for loss or inconvenience arising from such refusal.

Penalty on persons refusing to pay fare.

163. Any proprietor or driver of any hackney carriage who permits or suffers any person to be carried in or upon or about such hackney carriage during the hire thereof without the express consent of the person hiring the same shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings.

Penalty for permitting persons to ride without consent of hirer.

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No person
to act as
driver
without
consent of
proprietor.

164.—(a) Any person authorised by the proprietor of any hackney carriage to act as driver of such hackney carriage who shall suffer any other person to act as driver of such hackney carriage without the consent of the proprietor thereof; or

(b) any person whether licensed or not who shall act as driver of any such hackney carriage without the consent of the proprietor;

shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

Penalty for
leaving
hackney
carriage
unattended
at places
of public
resort.

165. If the driver of any hackney carriage leave such hackney carriage in any street or at any place of public resort or entertainment whether it be hired or not without some proper person to take care of it any constable or any person authorised by any constable may drive away such hackney carriage and deposit it in some place of safe custody and such driver shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings and the expenses incurred in taking away and keeping such hackney carriage in some place of safe custody as aforesaid may be recovered from the proprietor of such hackney carriage.

Improperly
standing
with
carriage or
obstructing
any other
driver.

166. Any driver of any hackney carriage who—

- (a) suffers the same to stand for hire alongside any other hackney carriage; or
- (b) obstructs or hinders the driver of any other vehicle in taking up or setting down any person into or from such other vehicle; or
- (c) wrongfully prevents or endeavours to prevent the driver of any other hackney carriage from being hired;

shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings.

Penalty for
damaging
hackney
carriage.

167. Any person who wilfully injures or damages any hackney carriage or removes any of the fittings thereof shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and the proprietor of such hackney carriage may notwithstanding the imposition of a penalty for such offence sue for compensation for the loss or damage so sustained before any competent court.

168.—(1) The magistrates may subject to the provisions of this Order make such byelaws as they think fit for all or any of the following purposes (that is to say) :—

PART VI.
—cont.
Byelaws for
regulating
hackney
carriages.

For regulating the conduct of the proprietors and drivers of hackney carriages plying within the distance prescribed in the section of this Order of which the marginal note is “ Hackney carriages to be licensed ” and determining what badges (if any) such drivers shall wear and for regulating the hours within which they may exercise their calling;

For regulating the manner in which the name of the proprietor and the number of each hackney carriage corresponding with the number of its licence shall be displayed;

For regulating the construction of hackney carriages
Provided that no byelaw made under the powers of this paragraph shall be of any effect if and so far as it conflicts with any of the provisions of the Motor Vehicles (Construction and Use) Regulations 1937 made by the Minister of Transport in exercise of the powers vested in him under or by virtue of the Road Traffic Act 1930 or any regulations amending extending or in substitution for the said regulations;

For regulating all matters affecting or relating to the safety comfort or convenience of persons hiring or using hackney carriages and of the public;

For regulating the number of persons to be carried by hackney carriages;

For fixing the stands of hackney carriages and the distance to which such drivers may be compelled to take passengers or to ply not exceeding the distance prescribed as aforesaid;

For fixing the rates or fares as well for time as distance to be paid for hackney carriages within the distance prescribed as aforesaid and for securing the due publication of such rates or fares;

For securing the safe custody and re-delivery of any property accidentally left in hackney

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carriages and fixing the charges to be made in respect thereof; and

For regulating and fixing the time and manner in which licences shall be applied for and granted and the time and manner of applying for and granting renewals of licences.

(2) Such byelaws shall be applicable within the city and beyond the city within a distance of five miles from the General Post Office of the city.

C.—*Street porters.*

Street porters to be licensed.

169. The magistrates may from time to time license to ply for hire within the city such number of street porters as they think fit and may cause a register to be kept of such persons so licensed and may from time to time suspend or revoke such licences as they shall see cause.

Penalty for plying without licence.

170. Any person who plies for hire as a street porter within the city without first obtaining a licence from the magistrates or during the time his licence is suspended or after it has been revoked or has ceased to be in force shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings.

Byelaws for regulating street porters.

171.—(1) The magistrates may subject to the provisions of this Order make such byelaws as they think fit for all or any of the following purposes (that is to say) :—

For regulating the conduct of street porters plying within the city and determining what badges (if any) street porters shall wear and for regulating the hours within which they shall exercise their calling;

For fixing the stands of carts or barrows used by street porters;

For fixing the rates as well for time as distance to be paid to street porters and for securing the due publication of such rates; and

For regulating and fixing the time and manner in which the licences to street porters shall be applied for and granted the period during which such licences shall remain in force the time and manner of applying for and granting renewals of licences and the fee to be paid for any licence or renewal of a licence.

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(2) The byelaws made under the repealed Acts and continued in force under the provisions of this Order shall apply and have effect as if references therein to "the prescribed distance" were references to the city. PART VI.
—cont.

172. Any person who refuses to pay on completion of the hire or service of any street porter the authorised rate due to him for such hire or service shall be liable by way of penalty to pay such sum in addition to such authorised rate as the magistrate shall determine as compensation to such street porter for loss or inconvenience arising from such refusal. Penalty on persons refusing to pay porters' rates.

D.—Brokers and pawnbrokers.

173. The following sections of the Burgh Police (Scotland) Act 1892 shall be deemed to have been duly adopted by the Corporation in terms of that Act and shall come into force in the city at the commencement of and as part of this Order (that is to say):— Adoption of Burgh Police (Scotland) Act 1892
Brokers and pawn-brokers.

- 433 (Brokers to be licensed);
- 434 (Brokers to furnish a description of their premises and keep books);
- 435 (Brokers to retain articles for fourteen days after having received them);
- 436 (Brokers to produce articles and books on demand);
- 437 (Pawnbroker to produce his book on demand);
- 438 (Brokers &c. to report stolen goods under a penalty for neglect);
- 439 (If stolen articles be altered or defaced by broker he shall be held to be resetter of stolen goods);
- 440 (Brokers not to carry on business of publicans nor to purchase tickets of pawnbrokers);
- 441 (Pawnbrokers not to act as brokers and brokers not to take articles in pledge);
- 442 (Pawnbroker and broker not to carry on business in the same premises);
- 443 (Penalty on brokers transacting business with persons under fourteen years of age);

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- 444 (Penalty on brokers transacting business between certain hours);
- 445 (Penalty on pawnbrokers &c. purchasing tickets or clothing issued by charitable institutions);
- 446 (Pawnbrokers not to keep smelting pots);
- 447 (Brokers to have their names painted over shop doors);
- 448 (Brokers &c. may detain suspected persons offering goods for pledge or sale);
- 449 (Provisions applicable to a dealer in marine stores);
- 450 (Penalty on carrying on business without licence and other offences);
- 451 (Licences may be suspended or revoked);
- 452 (Saving for ship chandlers or ropemakers);
- 453 (Offences by brokers pawnbrokers and dealers in marine stores to be police offences).

E.—Theatres &c.

Theatres
&c. to be
licensed.

174.—(1) No person shall without a licence from the magistrates have or keep any premises for the performance of stage plays or other theatrical representations or any cinema music-hall skating-rink circus exhibition or place of public resort for public dancing music or other entertainment (all or any of which are in this Head of this Part of this Order referred to as “a theatre”) into which admission is obtained by payment of money or for money consideration (the purchase of any article as a condition of admission being deemed to be a money consideration).

(2) The magistrates may attach to such licence such conditions as they may see fit.

(3) Every such licence shall continue in force for any period not exceeding one year unless the same shall be revoked sooner by the magistrates in consequence of a breach of any such conditions or otherwise.

(4) Any person contravening or failing to comply with any condition attached by the magistrates to any

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licence granted by them under the foregoing provisions of this section shall be guilty of an offence and shall without prejudice to the right of the magistrates to revoke such licence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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—cont.

(5) The provisions of subsection (1) of this section shall not apply in respect of any premises to be used occasionally as a theatre provided that the occupier of any such premises shall before using or permitting any such premises occupied by him to be used as a theatre on any occasion make application to the magistrates for an occasional licence in respect of such premises and the magistrates may grant an occasional licence for such period and subject to such conditions as they may consider necessary to the occupier of such premises and the said occupier shall give notice in writing to the chief constable at least seven days before each entertainment is held of the intention to hold such entertainment in such premises.

(6) Any person contravening or failing to comply with the provisions of the foregoing subsection or with any condition attached by the magistrates to any occasional licence granted by them under the foregoing subsection shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(7) The magistrates may make byelaws for the regulation of theatres.

(8) The provisions of this section shall not prejudice any powers pertaining by statute to the Lord Chamberlain.

175.—(1) No licence shall be granted to any person except the manager or secretary of the theatre or other person authorised on that behalf by the proprietor lessee or occupier of the theatre.

Terms of
licence for
theatres.

(2) Every such holder of a licence shall become bound himself in such sum as the magistrates may require not exceeding twenty pounds with two sureties to be approved of by the magistrates in such further sum not exceeding ten pounds each as the magistrates may require for the due observance of the conditions

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—cont.

of the licence and of any byelaws for the time being in force for the regulation of theatres and for securing payment of any penalties which the holder of the licence may be adjudged to pay for breach of any of such byelaws or of the provisions of this Order.

Suspension
of theatre
licence for
breach of
byelaws.

176. Where the holder of any such licence is convicted of the breach of any of such byelaws or of any condition attached to any licence the magistrates after hearing such holder may suspend the licence for any period and during such suspension the theatre to which the suspension applies shall be deemed to be unlicensed and the person who shall have or keep the same shall in addition to any other penalty he may incur be liable on summary conviction to a daily penalty not exceeding fifty pounds for each day on which any such theatre shall remain open during such period of suspension.

Penalty
for using
buildings
for public
enter-
tainments
without
licence.

177.—(1) Any person keeping using or knowingly letting any building or part of a building premises or any place for the purpose of a theatre without being duly licensed in accordance with the provisions of this Head of this Part of this Order shall be guilty of an offence and shall be liable on summary conviction to a penalty not exceeding fifty pounds for each day on which such building part of a building premises or place is so kept used or let.

(2) Any person being in such building premises or place without lawful excuse shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and the burden of proving that any such building part of a building premises or place is so licensed shall be upon the person keeping or conducting the same.

Byelaws for
billiard
rooms.

178. The magistrates may from time to time make byelaws for the licensing of billiard rooms and bagatelle rooms and may in such byelaws provide for the hours during which such places may be open the safety and comfort of the public the maintenance of order and the suppression of disorderly conduct.

Public
shows and
other like
places.

179.—(1) No public show of any description whatever whether in open ground or in any house or building or caravan or tent and no swings hobby-horses roundabouts switchback railways or other devices

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for affording amusement of a similar nature and no shooting gallery bowling alley place for playing skittles or any other place of a like nature (all which in this Order are referred to as "public show") shall be opened or set up without a permit from the magistrates.

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—cont.

(2) Any person who shall (a) open or set up or be concerned in opening or setting up any public show without a permit from the magistrates or (b) contravene or fail to comply with any condition attached to any permit from the magistrates shall be guilty of an offence and shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding ten pounds.

(3) The magistrates may attach to any permit under the provisions of this section such conditions as they may think fit.

(4) The fee to be paid for each such permit shall not exceed five shillings.

(5) The provisions of this section shall not apply in respect of any public show opened or set up under the authority of the Corporation at the fair ground referred to in Head E (Fair ground on links) of Part IV (Parks bathing entertainments &c.) of this Order.

F.—Window cleaners.

180.—(1) Any person who carries on within the city the trade of window cleaner and any person employed by him who performs the duties of window cleaning in the city shall be licensed by the magistrates in the same manner as if they were included among the persons mentioned in the section of this Order of which the marginal note is "Street porters to be licensed" and the provisions of Head C (Street porters) of this Part of this Order with respect to the licensing of the persons mentioned in the said section shall extend and apply to all such persons.

Window
cleaners
to be
licensed.

(2) Any such licence shall be subject to such conditions as may be attached thereto by the magistrates who may make byelaws for regulating the conduct of such persons and any other matter which they may deem necessary to secure the proper conduct of such persons.

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—cont.

(3) Any person who acts in contravention of any of the provisions of this section or of any byelaws made thereunder or who contravenes or fails to comply with any condition attached to any licence granted under this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

PART VII.

STREET TRAFFIC.

Power to
prevent
obstruction
in streets
during
public pro-
cessions &c.

181.—(1) The magistrates may from time to time make orders for the route to be observed by all traffic and for preventing obstruction of the streets or public places within the city at times of public processions rejoicings or illuminations and at any other time when the streets or places are thronged or liable to be obstructed and may also give directions to the chief constable for keeping order and preventing any obstruction of the streets in the neighbourhood of theatres and other places of public resort.

(2) Any person failing to comply with the provisions of any such order shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

As to
holding pro-
cessions.

182.—(1) No person shall organise or arrange for or take part in organising or arranging for any procession in or passing through any street in the city without giving notice in writing to the chief constable of the intention to conduct such procession specifying the proposed time of commencement and route of such procession and giving at the same time such other particulars with respect to such procession as may be required by the magistrates.

(2) Every such notice shall be given to the chief constable at the police headquarters in the city not less than forty-eight hours prior to the time fixed for the commencement of the proposed procession.

(3) The magistrates may if the conducting of any procession would or would be likely to cause or result in disorderly behaviour or a breach of the peace or any nuisance or annoyance or any obstruction to traffic prohibit the conducting of such procession or may

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make an order prescribing a different route for such procession. PART VII.
—cont.

(4) Any person—

(a) organising or arranging for any procession without giving notice to the chief constable in accordance with this section; or

(b) conducting any procession in respect of which no such notice has been given; or

(c) conducting any procession the conducting of which has been prohibited by the magistrates;

shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

(5) Any person contravening any order of the magistrates prescribing a route for a procession shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

(6) The provisions of this section shall be in addition to and not in derogation of any powers rights and authorities for the time being of the Corporation or of the magistrates but so that no person shall be punished twice for the same offence.

(7) For the purposes of this section “street” means and includes any street highway road bridge square lane footpath court or passage or any other place open and accessible to the public.

(8) For the purposes of this section “procession” shall not mean or include any body consisting of persons in His Majesty’s Naval Military or Air Forces or in any contingent of the Officers Training Corps or in any cadet unit of the British National Cadet Association officially recognised by the Army Council or in any University Air Squadron officially recognised by the Air Council or any public or ceremonial procession which is regularly held in the city or any funeral procession or any theatre or public service vehicle or other queue or any procession of school children.

183. The magistrates may make such byelaws as they think fit for the following purposes (that is to say):— Byelaws as to driving cattle.

(a) For regulating the manner in which and the hours during which cattle shall be driven through the streets;

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 —cont.

- (b) For regulating the conduct of the drivers of such cattle when so employed and determining what badges (if any) such drivers shall wear; and
- (c) For regulating all other matters connected therewith tending to promote the safety and convenience of the public including the carrying of lights or warning devices by persons leading or driving cattle in the hours of darkness :

Provided that any such byelaws shall not prohibit the passage of cattle by a reasonably short and convenient route between any railway station and any cattle market or slaughter-house within the city
 Provided further that no byelaw made under the powers of this section shall be of any effect if and so far as it conflicts with any direction from time to time contained in the code issued by the Minister of Transport in pursuance of section 45 of the Road Traffic Act 1930.

Extension
 of Road
 Traffic
 Acts.

23 & 24
 Geo. 5. c. 53.

184. For the purposes of the provisions of section 46 (Power to restrict use of vehicles on specified roads) of the Road Traffic Act 1930 as amended by section 29 (Power to prohibit or restrict use of vehicles on certain roads) of the Road and Rail Traffic Act 1933 the Corporation shall be deemed to be a county council within the meaning of paragraph (b) of section 60 (Application to Scotland) of the said Act of 1930.

Saving in
 respect of
 quays &c.
 of Aberdeen
 Harbour
 Commis-
 sioners.

185. No order to be made in virtue of the section of this Order of which the marginal note is " Extension of Road Traffic Acts " shall apply to any wharf quay or bridge belonging to the Aberdeen Harbour Commissioners or prejudice or affect the rights powers and privileges enjoyed by the Aberdeen Harbour Commissioners before the commencement of this Order.

PART VIII.

OFFENCES AND PENALTIES.

A.—*Offences in streets &c.*

Penalties
 for certain
 offences.

186. Any person who is guilty of any of the following acts or omissions within the city shall in respect thereof be liable to a penalty not exceeding

the respective amounts or to imprisonment for a period not exceeding the period hereinafter mentioned (viz.) :— PART VIII.
—cont.

(a) To a penalty of ten pounds or alternatively without penalty to imprisonment for sixty days every person who—

(i) Publishes photographs prints or offers for sale or distribution or sells distributes or exhibits to view or causes to be published photographed printed exhibited to view or distributed any indecent or obscene book paper print photograph drawing painting representation model or figure or publicly exhibits any disgusting or indecent object or writes or draws any indecent or obscene word figure or representation in or on any place where it can be seen by the public or sings or recites in public any obscene song or ballad;

(ii) Being a common prostitute or street walker loiters or importunes persons for the purpose of prostitution;

(iii) Wilfully and indecently exposes his person;

(iv) Rides or drives furiously recklessly or carelessly any horse carriage cart or other vehicle (other than a motor vehicle as defined in section 1 of the Road Traffic Act 1930) or drives furiously any cattle;

(b) To a penalty of forty shillings every person who—

(i) Commits a nuisance;

(ii) Uses any threatening abusive or insulting words or behaviour with intent or calculated to provoke a breach of the peace or whereby a breach of the peace may be occasioned;

(iii) Exposes to public view any stallion or bull when serving any mare or cow;

(iv) Keeps any poultry or pigeons near any dwelling-house so as to be a nuisance or an annoyance to the occupiers of adjoining premises.

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PART VIII.
—cont.
Provisions
as to chain-
droppers
and
swindlers.

187. Any chain-dropper thimble loaded-dice player and other swindler of that or any similar description who—

- (a) at any place within the city is found in possession of implements or articles for practising games of hazard;
- (b) exhibits such implements or articles in order to induce or entice or induces or entices any person to play at any game of hazard; or
- (c) by any fraudulent art or device cozens and cheats or attempts to cozen and cheat any person;

may be apprehended by any constable and on conviction shall be liable to imprisonment for any period not exceeding sixty days and shall also at the same time be sentenced to repay any money or restore any property which he may have obtained by means of any such offence.

Penalty for
offences in
streets &c.

188. Any person who in or over any street common stair or common passage (and for the purposes of this section "street" shall include any harbour railway station canal depot wharf quay towing path public path links common or open area or space the seashore down to low-water mark and the strand adjoining the same and all public places within the city) commits any of the following offences shall for every such offence be liable to a penalty not exceeding forty shillings (viz.) :—

- (1) Exposes for show hire or sale (except in a market or market place or fair or other place lawfully appointed for that purpose) any horse or other animal or exhibits in a caravan or otherwise any show or public entertainment or shoes bleeds or farries any horse or animal (except in cases of accident) or cleans dresses exercises trains or breaks or turns loose any horse or animal;
- (2) Urges any dog or other animal to attack worry or put in fear any person or animal;
- (3) Slaughters or dresses any cattle or any part thereof except in the case of any cattle which may have met with any accident and which for the

public safety or other reasonable cause ought to be killed on the spot; PART VIII. —cont.

- (4) Having the care of any wagon cart or carriage—

(a) rides on the shafts thereof or otherwise than on the forepart of such wagon cart or carriage and in such a position as readily to see immediately before and on either side thereof; or

(b) without having reins with a bit attached thereto and in the mouth of the animal drawing such wagon cart or carriage and holding such reins rides upon such wagon cart or carriage or any animal drawing the same; or

(c) is at such a distance from such wagon cart or carriage or in such a position therein as not to have due control over every animal drawing the same; or

(d) does not in meeting any other carriage keep his wagon cart or carriage to the left or near side: or

(e) in passing any other carriage does not keep his wagon cart or carriage on the right or off side of the road (except in cases of actual necessity or some sufficient reason for deviation); or

(f) by obstructing the street wilfully prevents any person or carriage from passing him or any wagon cart or carriage under his care;

- (5) At one time drives more than two horse-drawn carts or wagons and while driving two such carts or wagons has not the halter of the horse in the last cart or wagon securely fastened to the back of the first such cart or wagon or has such halter of a greater length from such fastening to the horse's head than four feet:

- (6) (a) Causes any vehicle or any beast of burden to stand longer than is necessary for loading or unloading goods or for taking up or setting down passengers (except public service vehicles and hackney carriages standing for hire in any place appointed for that purpose by the Corporation or other lawful authority); or

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PART VIII.
—cont.

(b) by any means wilfully interrupts any public crossing or wilfully causes any obstruction in any public footpath or other public thoroughfare;

(7) Causes any tree timber beam girder stone or other heavy article to be drawn or hauled otherwise than upon a wheeled vehicle;

(8) In the daytime—

(a) suffers any load to project more than twelve feet before or behind the vehicle on which it is carried; or

(b) occupies with such vehicle more than nine feet in breadth of the street without taking adequate precautions to guard against injury to persons or damage to property:

Provided that nothing in this paragraph shall derogate from the provisions of the Road Transport Lighting Act 1927 or any regulation made thereunder;

(9) Causes any tree or timber or iron beam to be drawn in or upon any vehicle without having sufficient means of safely guiding the same;

(10) Leads or rides any horse or other animal or draws or drives any vehicle upon any footway of any street;

(11) (a) Places or leaves any furniture goods wares or merchandise or any cask tub basket box pail or bucket or places or uses any standing-place stool bench stall or showboard on any footway; or

(b) places any blind shade covering awning or other projection over or along any such footway unless such blind shade covering awning or other projection is eight feet in height at least in every part thereof from the ground;

(12) Places hangs up or otherwise exposes to sale any goods wares merchandise matter or thing whatsoever so that the same project into or over any footway;

- (13) Sells or assists in selling by auction any goods wares merchandise or other things except in a market or market place or fair or other place lawfully appointed for that purpose;
- (14) Rolls or carries any cask tub hoop or wheel or any ladder plank pole timber or log of wood upon any footway except for the purpose of loading or unloading any vehicle or of crossing the footway;
- (15) Hangs or places any clothes or other article so as to project over any street;
- (16) Discharges any fire-arm or throws or discharges any stone or other missile or makes any bonfire or throws or sets fire to any firework;
- (17) (a) Wilfully and maliciously disturbs any person by pulling or ringing any door bell or knocking at any door or window; or
(b) wilfully and unlawfully extinguishes the light of any lamp;
- (18) Flies any kite or makes or uses any slide on ice or snow;
- (19) Plays at football;
- (20) Washes or cleans any vehicle;
- (21) Cleanses hoops fires washes or scalds any cask or tub or hews saws bores or cuts any timber or stone or slacks sifts or screens any lime;
- (22) Throws or lays down any manure stones coals slates shells lime bricks timber iron or glaziers' chips or the sweepings of any premises or other materials (except building materials so enclosed as to prevent mischief to passengers) except for the purpose of housing or removing the same or suffers such material to remain for a longer period than is necessary Provided as regards any quay or wharf belonging to the Aberdeen Harbour Commissioners that they shall not have consented to such material so remaining;
- (23) Beats or shakes any carpet rug or mat unless such carpet rug or mat is beaten or shaken before the hour of eight in the morning;

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—cont.

- (24) Shakes or dusts any carpet rug or mat from or over any window or stair opening to any street or place;
- (25) Fixes or places any flowerpot or box or other heavy article in any upper window without sufficiently guarding the same against being blown down;
- (26) Throws or sweeps from the roof or the window or door or any part of any house or building any slate brick wood rubbish or other thing except snow thrown or swept so as not to fall on any passenger;
- (27) (a) Writes upon soils defaces or marks any building wall railing fence or hoarding with chalk or paint; or
(b) without the consent of the owner or occupier affixes or causes to be affixed to any building wall railing fence or hoarding any bill or other notice; or
(c) wilfully breaks destroys or damages any part of any building wall railing fence or hoarding or any tree shrub seat or other thing;
- (28) Being the occupier of any premises orders or permits any person in his service to stand on the sill of any window in order to clean paint or perform any operation on the outside of such window or on any other premises unless such window be in the sunk or basement storey or ground floor where there is no sunk or basement storey;
- (29) (a) Leaves open any vault or cellar or the entrance from any street to any cellar or room underground without a sufficient fence or hand-rail; or
(b) leaves defective the door window or other covering of any vault or cellar; or
(c) does not sufficiently fence any area pit or trench left open; or
(d) leaves any open area pit or trench without a sufficient light after sunset to warn and prevent persons from falling thereinto;

(30) Discharges dirt litter or ashes or nightsoil or offal or other offensive matter on any street by means of any soil or foul-water pipe or other channel or throws or lays any dirt litter or ashes or nightsoil or any carrion fish offal or rubbish on any street or seabeach or strand within the city or causes any offensive matter to run from any manufactory brewery slaughterhouse knackery knacker's yard butcher's shop or dunghill into any street Provided that it shall not be deemed an offence to lay sand or other materials in any street in time of frost to prevent accidents or litter or other suitable materials to prevent the freezing of water in pipes or in case of sickness to prevent noise if the person laying any such things causes them to be removed as soon as the occasion for them ceases;

(31) Being a street musician or singer continues to sound or play any musical instrument or to sing after being required by the inmate of any building or by any person on his behalf or by any constable to depart from the neighbourhood thereof;

(32) Being the owner of any vehicle (other than a mechanically propelled vehicle)—

(a) permits the same to be driven by any person who is not of the full age of fourteen years; or

(b) puts such vehicle or any horse yoked to the same or any unyoked or saddled horse temporarily under the charge or care of a person who is not of the full age of fourteen years;

(33) Wilfully jostles or annoys any person or obstructs or incommodes hinders or prevents free passage in any street footpath or footway or causes an obstruction by standing in any close or passage or on any stair after being required to move on by any constable Provided as regards any quay or wharf belonging to the Aberdeen Harbour Commissioners that they shall not have consented thereto;

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- (34) Turns loose or suffers to be at large any bull or dangerous animal;
- (35) While in charge of any vehicle used for slow traffic or riding a bicycle does not keep his vehicle or bicycle to the near or left side of the road when overtaken by any person in charge of a vehicle used for swift traffic so as to allow the swift vehicle to pass the slow vehicle or bicycle;
- (36) To the annoyance or danger of any person hangs or places any linen or clothes or other such article on any rail or fence abutting on any street;
- (37) Discharges any smoke or steam from any premises (otherwise than from the top thereof) into any street or suffers or permits the condensed water or moisture from any steampipe flue or funnel to fall into or upon the street;
- (38) In vending coals or other articles or in drawing attention to any avocation exhibition spectacle or meeting shouts or calls out or uses any bell or horn or other instrument to the annoyance of any person;
- (39) Places or throws any orange rind or peel or banana skin or other thing likely to cause danger to passengers;
- (40) Without proper precautions places or leaves any petroleum paraffin naphtha detonator dynamite or other combustible or explosive material;
- (41) While in charge of any horse-drawn vehicle—
 - (a) falls asleep; or
 - (b) leads or drives any such vehicle under his charge abreast of another or not in line; or
 - (c) when required by any constable or other person refuses to allow a free space between every two of such vehicles for the purpose of crossing; or
 - (d) does not give his name and address when required by any person reasonably apprehending danger;

(42) In raising or lowering or causing to be raised or lowered any article to or from any premises by means of a chain or rope does not sufficiently secure such article and provide and use means for protecting the public against the risk of injury; PART VIII.
—cont.

(43) Otherwise than with lawful authority or reasonable cause takes or retains hold of or gets on to a vehicle (other than a motor vehicle) while in motion for the purpose of being drawn or carried;

(44) Stands sits loiters or lies to the obstruction or annoyance of any person;

(45) Throws or lays down or causes to be thrown or laid down glass pottery nails wire thorns or other articles having sharp edges or points;

(46) Engages in any game of hazard;

(47) Uses any obscene profane or indecent language;

(48) (a) Conveys in any open cart or wagon or otherwise through the streets the carcasses or any parts thereof of slaughtered animals or animal offal without the same being properly covered up from public view with clean cloths or such other coverings as the magistrates may from time to time direct; or

(b) exposes such slaughtered carcasses or any parts thereof or their skins or offals outside the doors or windows of any shop; or

(c) uses machines to mince or hash animal food to the annoyance of any of the inhabitants in the neighbourhood :

Provided as follows (1) where under this section any offence is stated to be to the annoyance or obstruction or danger of any person the committing of such offence may be proved by other evidence than that of any person annoyed obstructed or endangered and (2) nothing contained in this section shall apply to prejudice or affect (a) any railway company in the exercise of their statutory powers or duties or in the use of their undertaking including any road or access constructed on land belonging to them or (b) any byelaws lawfully made by any railway company or any

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PART VIII. prosecutions for offences under such byelaws or under
 —*cont.* any statute of or relating to such railway company.

Penalty for
 burning
 rubbish in
 or near
 streets.

189.—(1) Any person who—

(a) in any street; or

(b) near any street and (in any premises the domestic refuse from which the Corporation are required to collect and remove under the provisions of this Order) to the obstruction annoyance or danger of the public;

burns rubbish refuse debris or waste materials shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

(2) For the purposes of this section “street” has the same meaning as in the section of this Order of which the marginal note is “Penalty for offences in streets &c.”

Byelaws for
 certain
 street
 offences.

190. The Corporation may make byelaws with respect to the following matters:—

(i) For prohibiting or regulating the distribution for advertising purposes in any street or upon the seabeach or any public place of handbills circulars pamphlets leaflets or other printed matter;

(ii) For prohibiting any person from spitting on the pavement or footpath of any street or public place or from spitting in any public building.

Restrictions
 on adver-
 tising
 vehicles &c.

191.—(1) It shall not be lawful for any person—

(i) To use or cause to be used in Union Street or Union Terrace or except with the consent in writing of the magistrates in any other street any vehicle whatever be its form or construction for the purpose exclusively or principally of displaying advertisements; or

(ii) To carry or cause to be carried in Union Street or Union Terrace or except with the consent in writing of the magistrates in any other street by any person for advertising purposes any board placard picture print or notice or any other advertisement exceeding four feet by two feet six inches.

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(2) Any person making application for such consent and being aggrieved by the refusal thereof may within one month of such refusal appeal to the sheriff who may if he considers that such consent has been unreasonably refused grant the same. PART VIII.
—cont.

(3) The Corporation may make byelaws for the regulation control and use of any vehicle board placard picture print notice or advertisement referred to in subsection (1) of this section.

(4) Any person who acts in contravention of the provisions of this section or of any byelaws made thereunder shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

192.—(1) The Corporation may make byelaws for the purpose of regulating and controlling the use of loud-speakers gramophones and any other devices for the reproduction and amplification of sound (in this section referred to as “loud-speakers”) used in such manner as to be audible in any street to the annoyance of the lieges or if they think fit of prohibiting the use in such a manner as to be audible in any street of loud-speakers for advertising purposes. Regulation and control of loud-speakers &c.

(2) Any person who acts in contravention of any byelaws made under the provisions of this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings.

193.—(1) Any person who—

(a) takes away or wilfully breaks throws down or damages any police box police telephone pillar street refuge direction sign sign-post lamp-post lamp-bracket lamp or lighting apparatus or any appliance for the regulation or control of traffic or any tramway standard or other apparatus forming part of the tramway undertaking of the Corporation electricity section box transformer or other electricity or gas apparatus or any air pipe ventilator or other apparatus forming part of the water undertaking of the Corporation or connected with any sewer or any receptacle for the temporary deposit and collection of As to damage to street apparatus &c.

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PART VIII.
—cont.

dust ashes litter or rubbish or any sand-bin belonging to or set up by the Corporation (all or any of which are in this section referred to as "street apparatus"); or

(b) wilfully damages the appurtenances of any street apparatus; or

(c) without lawful authority extinguishes any light thereof;

shall be guilty of an offence and shall be liable to a penalty not exceeding ten pounds for every such offence and the Corporation may recover as damages such further sum of money not exceeding twenty pounds as the sheriff may assess as the amount of damage done by him.

(2) (i) If any person through carelessness breaks throws down or damages any street apparatus and does not upon demand make satisfaction for such damage it shall be lawful for the sheriff upon complaint thereof being established to his satisfaction to order such sum of money (not exceeding twenty pounds) to be paid as the damage proved shall amount to.

(ii) If through carelessness on the part of the driver of any vehicle any street apparatus is broken thrown down or damaged by such vehicle the amount of the damage done to the extent aforesaid may be recovered from either the driver or the owner of the vehicle Provided that if the owner prove that such vehicle was being driven without his authority the sheriff shall not make any order for payment against him.

10 & 11 Vict.
c. 15. (3) Section 20 (Satisfaction for accidentally damaging pipes) of the Gasworks Clauses Act 1847 in so far as it applies to the gas and electric lamps and the standards of the Corporation shall be amended by the substitution of the words "fifteen pounds" for "five pounds" occurring in that section as the maximum penalty recoverable by way of satisfaction to the Corporation for damage done by any person.

Penalty for
improper
use of police
telephones
fire alarms
&c.

194. Any person who—

(a) makes improper use of any telephone in a police box; or

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(b) wantonly or maliciously rings any fire alarm; PART VIII.
or —cont.

(c) raises any false alarm of fire;
shall be guilty of an offence and shall be liable to a
penalty not exceeding five pounds.

195. Any person who—

(a) covers over or wilfully or negligently obstructs
the convenient access to or interferes with
any police telephone call box shelter or box
fire alarm ambulance call point fire-plug or
fire-hydrant or any cover over any valve or
hydrant or any manhole cover; or

Interference
with
telephone
call boxes
&c.

(b) removes or effaces any plate or mark indicating
the position of such call box shelter or box
alarm ambulance call point plug valve hydrant
or manhole; or

(c) does any act in connection therewith so as to
cause danger to the public;

shall be guilty of an offence and shall be liable to
a penalty not exceeding five pounds and the Corpora-
tion may recover the expenses of replacement and
making good from such person as damages.

196.—(1) No person shall fix place extend suspend
retain or maintain any rope cable line cord pole post
banner streamer wire tube pipe or similar article over
any street without the consent in writing of the Cor-
poration and in granting such consent the Corporation
may attach to such consent such terms and conditions
as they may think fit. Restriction
on over-
head wires.

(2) Any person acting in contravention of the
provisions of this section shall be guilty of an offence
and shall be liable to a penalty not exceeding five pounds
and to a daily penalty not exceeding forty shillings.

(3) Nothing in this section contained shall extend
to any apparatus erected or constructed by any person
having power to erect or construct the same under any
Act of Parliament.

197. Any person who in connection with the
loading unloading packing or unpacking of goods or
articles of any description causes or permits straw
paper shavings packing material or debris from any
crate package or vehicle to be thrown or laid or to fall
Loading or
unloading
of goods in
streets.

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PART VIII. on any street and does not immediately remove the
 —cont. same or in any way litters any street shall be guilty of
 an offence and shall be liable to a penalty not exceeding
 forty shillings Provided that the provisions of this
 section shall not apply in respect of any wharf or quay
 belonging to the Aberdeen Harbour Commissioners.

Power to
 impound
 stray
 cattle.

198.—(1) If any cattle are at any time found at large
 in any street without any person having the charge
 thereof any constable may seize and impound such cattle
 and may detain the same until the owner thereof pay
 to the Corporation the reasonable expenses of impound-
 ing and keeping such cattle.

(2) Any person allowing any cattle to be at large
 in any street without any person having the charge
 thereof shall be guilty of an offence and shall be liable
 to a penalty not exceeding forty shillings.

(3) If such expenses are not paid within seven
 days after such impounding the Corporation may pro-
 ceed to sell such cattle or cause the same to be sold
 but previous to such sale seven days' notice thereof
 shall be given to or left at the dwelling-house or place
 of business of the owner of such cattle if he is known or
 if not then notice of such intended sale shall be given
 by advertisement to be inserted seven days before
 such sale in some newspaper published or circulated
 within the city and the money arising from such sale
 after deducting the said expenses and all other expenses
 attending the impounding advertising keeping and sale
 of any such cattle so impounded shall be paid to the
 Corporation and shall be by them paid on demand to
 the owner of the cattle so sold.

B.—Stolen goods &c.

Adoption of
 provisions
 of Burgh
 Police
 (Scotland)
 Act 1892
 as to stolen
 goods &c.

199.—(1) The following sections of the Burgh Police
 (Scotland) Act 1892 shall be deemed to have been duly
 adopted by the Corporation in terms of that Act and
 shall come into force in the city at the commencement
 of and as part of this Order (that is to say):—

Section 412 (Goods &c. found to be reported to
 police office);

Section 413 (Goods stolen or fraudulently dis-
 posed of to be delivered up to
 owner);

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Section 414 (How stolen or unclaimed goods to be kept); and PART VIII.
—cont.

Section 415 (Unclaimed stolen property &c. to be disposed of).

(2) Nothing contained in this section or in the sections of the Burgh Police (Scotland) Act 1892 adopted as aforesaid shall apply to any property found in or on any public service vehicle belonging to the Corporation or railway property.

C.—Nuisances.

200. Nothing in this Order contained shall exempt any person guilty of any offence under the provisions of the Public Health Acts so far as relating to nuisances or any other Act in force for the time for the removal or prevention of nuisances from prosecution or action in respect thereof in the same manner as if this Order had not been passed and nothing contained in this Order and no proceedings taken under the same shall in any way prevent any proceedings authorised by and taken or to be taken under the said Acts or any of them. Proceedings
under
Public
Health
Acts.

201. Any person who has or keeps or suffers to be kept within any premises any dog or other animal which is a nuisance or annoyance to any of the inhabitants in the neighbourhood and does not prevent the continuance of such nuisance or annoyance by removing such dog or other animal or otherwise within such time as the magistrate shall determine which he is hereby authorised to do in a summary manner shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings. Dogs or
other
animals if
a nuisance
or annoy-
ance to be
removed or
restrained.

202. Any person in charge of a dog in any street and having the dog on a lead who allows or permits such dog to deposit its excrement upon a public pavement or footway shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings. Nuisance
by dogs.

203.—(1) For the purpose of abating or mitigating any nuisance annoyance or damage caused by the congregation at any place in the city of pigeons or rooks having or believed by the Corporation to have Nuisance
arising from
pigeons or
rooks.

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PART VIII. no owner or of preventing or minimising any such
—*cont.* nuisance annoyance or damage which might in the
opinion of the Corporation be so caused the Corporation
may destroy or may seize and sell or otherwise dispose
of or cause to be destroyed or seized and sold or other-
wise disposed of any pigeons or rooks in excess of such
number as the Corporation may consider reasonable
and take such other steps as they may deem necessary
for any such purpose :

Provided that the Corporation shall not in the
exercise of the powers conferred by this section—

- (a) enter upon any building or land (other than
a street) without the consent (which shall not
be unreasonably withheld) of the occupier or
the authority body or person having the
exclusive control and management of such
building or land;
- (b) execute or do any work or thing affecting the
structure of such building or the use of such
land without the consent (which shall not be
unreasonably withheld) of the authority body
or person in whom such building or land is
vested; or
- (c) knowingly destroy sell or otherwise dispose of
or cause to be destroyed sold or otherwise
disposed of any pigeon or rook belonging to
any person.

(2) Any question arising under this section as to
whether any consent has been unreasonably withheld
shall be determined by the sheriff.

Noise
nuisance.

204.—(1) A noise nuisance shall be liable to be
dealt with summarily in the manner provided in
Part II of the Public Health (Scotland) Act 1897 in
the same way and to the same effect as in cases under
subsection (6) of section 16 of that Act and the Corpora-
tion shall have all the powers and duties with reference
to a noise nuisance which a local authority has with
reference to a nuisance under the said Act.

(2) For the purposes of this section a noise
nuisance shall be deemed to exist where any person
makes or continues or causes to be made or continued

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any excessive or unreasonable or unnecessary noise and where such noise (a) is injurious or dangerous to health and (b) is capable of being prevented or mitigated having due regard to all the circumstances of the case : PART VIII.
—cont.

Provided that if the noise is occasioned in the course of any trade business or occupation it shall be a good defence that the best practicable means of preventing or mitigating it having regard to the cost have been adopted.

(3) Nothing contained in this section shall apply to a railway company or their servants exercising statutory powers.

205.—(1) Any person who so uses or causes or permits or suffers to be used any furnace or fire (except a household fire) as that black or brown smoke issues therefrom unless he proves that he uses the best practicable means for preventing such smoke and has carefully attended to and managed such furnace or fire so as to prevent as far as possible the escape of such smoke therefrom shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings in respect of any such act or omission and to a further penalty not exceeding five pounds in respect of every day or part of a day during which such act or omission continues after the imposition of the first-mentioned penalty or in respect of every act or omission of a like nature which occurs within one month after such imposition : Prevention
of nuisance
arising
from smoke.

Provided that where the emission of black or brown smoke from any furnace or fire is caused by careless or inefficient firing or by the mismanagement of any furnace or fire the liability for the said penalty shall be incurred on conviction without service of any notice or requirement for its discontinuance or remedy being necessary.

(2) Nothing in this Order contained shall affect prejudicially the operation of the Smoke Nuisance (Scotland) Act 1857 or the Smoke Nuisance (Scotland) Act 1865 or the provisions of the Public Health (Scotland) Act 1897 relating to the prevention of nuisance arising from smoke and all offences under the said Acts or this Order in regard to the prevention of smoke may 20 & 21 Vict.
c. 73.
28 & 29 Vict.
c. 102.

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PART VIII. be tried by the magistrates and the penalties may be
—cont. recovered and applied in the same way as penalties are
recovered and applied under this Order.

(3) The provisions of this section shall not extend
and apply to motor vehicles as defined in section 1 of
the Road Traffic Act 1930 on any street.

PART IX.

STREETS BUILDINGS &C.

Construc-
tion of and
interpreta-
tions for
Part IX of
Order.

206. The provisions of this Part of this Order shall
form part of and be construed as one with the Order of
1936 and in and for the purposes of this Part of this
Order words and expressions to which meanings are
assigned by the Order of 1936 shall have the same
respective meanings.

Repair of
carriageway
and foot-
ways of
streets not
maintained
by Cor-
poration.

207.—(1) The Corporation may from time to time
after notice as provided in section 25 (Notice of repair
&c. to be given) of the Order of 1936 carry out such
works (including the laying of channels gutters gullies
and paved crossings and also kerbing where not already
laid) in or on the carriageway or footways of any street
not maintained by the Corporation which is in bad
repair in such manner and with such materials as they
think fit in order to make good such carriageway or
footways.

(2) The expenses which may be incurred by the
Corporation in carrying out such works as aforesaid
(to be ascertained as provided in section 24 (Expenses
of paving and repairing streets &c.) of the Order of
1936) shall be repaid to the Corporation by the owners
of the lands fronting or abutting on the street in which
such works have been carried out and shall be recover-
able as provided in the said section 24 of the Order
of 1936 Provided always that the owners of the lands
fronting or abutting on such street shall not be called
upon to pay any part of the expense of making good
or repairing the carriageway or footways as the case
may be of such street for seven years after the com-
pletion at the expense of such owners of such works

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as aforesaid Provided also that nothing in this section contained shall prejudice or interfere with the powers of the Corporation of making good the carriageway or footways as the case may be of such street at the expense of such owners after the expiration of the said period of seven years. PART IX.
—cont.

208.—(1) Where the carriageway or the footways of any street not maintained by the Corporation is or are in bad repair the Corporation may from time to time in their discretion (without prejudice to the powers of the Corporation under the immediately preceding section of this Order and section 23 (Repair of carriageway and footways of streets to be thereafter maintained by Corporation) of the Order of 1936) after notice as provided by section 25 (Notice of repair &c. to be given) of the Order of 1936 carry out such temporary repairs of the carriageway or footways of such street as they think fit. Temporary repairs of carriageway and footways of streets.

(2) The expenses which may be incurred by the Corporation in carrying out such repairs as aforesaid (to be ascertained as provided in section 24 (Expenses of paving and repairing streets &c.) of the Order of 1936 and as if such temporary repairs were works specified in the said sections 23 and 24) shall be repaid to the Corporation by the owners of the lands fronting or abutting on the street in which such repairs have been carried out and shall be recoverable as provided in section 160 (Recovery of expenses from owners) of the Order of 1936 and the said section 160 shall extend and apply for the purposes of this section as if this section were one of the sections of the Order of 1936 referred to in the said section 160.

209. Any owner who proposes to erect on undeveloped land a building fronting or abutting on any street where there is no existing footway between the carriageway of such street and the land upon which the building is proposed to be erected or a footway of less width than ten feet shall make provision on the land belonging to him for a footway of such breadth not exceeding ten feet as the Corporation shall direct and before such building is occupied the owner shall cause such footway to be formed. Formation of footways in front of new buildings.

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PART IX.
—cont.
Building
develop-
ment
alongside
existing
streets.

210. Notwithstanding any other provision in the City Acts the following provisions shall apply and have effect with respect to the development of or building on undeveloped land fronting or abutting on any existing street :—

- (1) Where it appears to the Corporation that the character of a street will be altered in consequence of building or other operations or where undeveloped land fronting or abutting on a street is proposed to be developed the Corporation may by order declare such street or such portion thereof as may be specified in the order to be a new street for the purpose of the application thereto of the provisions of the Order of 1936 with respect to new streets :
- (2) Not less than one month before making an order under this section the Corporation shall cause notice of the intended order to be advertised in a newspaper circulating within the city and notice of the intended order shall also be sent or delivered to all owners of lands fronting or abutting on the street or part thereof and shall be posted at each end of the street or part thereof or in some conspicuous position in the street or part thereof :
- (3) Every such notice shall contain a statement that the intended order may be made by the Corporation at any time after the day named in the notice and that any person who feels aggrieved by the intended order may lodge written objections against the same with the town clerk within the said period of one month :
- (4) The Corporation shall consider such objections and shall give the objector an opportunity of being heard and thereupon the Corporation may at their discretion proceed with the said order or make such alterations thereon as they judge fit or abandon the same :
- (5) In the event of the Corporation deciding to proceed with the said order with or without alterations thereon they shall as soon as may be after so deciding intimate by notice their

decision to such objector and any such objector considering himself aggrieved by such decision may appeal thereagainst to the sheriff provided that within one month after the date of the notice intimating such decision the objector so appealing gives written intimation of his appeal and the grounds thereof to the town clerk :

- (6) In the event of any such appeal being made the sheriff shall take such decision into consideration along with the appeal and shall have power to make such order thereon as he thinks fit and to incorporate such conditions therein as to him appear fair and equitable having regard to all the circumstances and the order of the sheriff shall be final as regards the said decision and shall not be subject to appeal to any court :
- (7) Upon an order under this section coming into operation any person who shall commence to erect a new building upon undeveloped land abutting on or adjoining the street by the order declared to be a new street shall in relation to such undeveloped land be deemed to be laying out a new street within the meaning of the provisions of the Order of 1936 with respect to new streets :
- (8) Before disposing of any application for the approval of plans of a new street submitted under the provisions of this section the Corporation may require the owners of undeveloped land adjoining the street to submit for the approval of the Corporation a scheme of development of such land wherein provision shall be made so far as the Corporation may deem the same to be necessary for opening up the adjoining or backlying land by means of cross streets connecting with the existing street or otherwise :
- (9) Nothing in this section shall prejudice or affect the legal rights and remedies against the person constructing such new street competent to any owner of land or premises injuriously

PART IX.
 —cont.

affected by or in consequence of the construction of such new street :

- (10) For the purposes of this and the immediately preceding section of this Order “undeveloped land” shall not include any land forming part of any garden contiguous to and used in connection with any residential premises or any yard or open space contiguous to and used in connection with any business or industrial premises as such garden yard or open space respectively exist at the commencement of this Order :
- (11) Nothing in this section shall extend to a building (other than a dwelling-house) erected by a railway company in the exercise of their statutory powers and occupied or used or intended to be occupied or used for the purposes of their railway.

Construction of new streets abutting on developed land.

211.—(1) Where any person constructs a new street and such street or any portion thereof abuts upon developed land but there is no direct access to such street from such developed land the person constructing such new street so far as it abuts upon such developed land shall construct the carriageway and footways of such street or portion thereof in such manner and by such means and according to such standard of construction as the Corporation shall direct and thereafter such street or portion thereof shall be maintained by the Corporation.

(2) For the purposes of this section “developed land” shall include any garden contiguous to and used in connection with any residential premises and any yard or open space contiguous to and used in connection with any business or industrial premises.

Provision as to painting of buildings.

212.—(1) If having regard to the site of any building and its surroundings the Corporation are of opinion that the painting or decoration of any external wall door window shop sign or railing (hereinafter in this section referred to as “external portion”) of any such building is such as to affect amenity injuriously the Corporation shall be entitled to call upon the owner or occupier of such building by notice under the hand of the city engineer to re-paint or re-decorate such external portion to their satisfaction and in such

a way as not to be injurious to amenity and that within twenty-one days from the date of the notice and such notice shall contain a specification of the re-painting or re-decoration which will be required in order to remove the injury to amenity complained of. Provided that the provisions of this section shall not apply so as to authorise the Corporation to require any alteration of the scheme of decoration of any railway station signal signal box signal cabin or other property owned and occupied by any railway company for the purposes of their railway.

PART IX.
—cont.

(2) Any person aggrieved by any requirement of the Corporation under this section may within twenty-eight days from the date on which he received notice of such requirement appeal to the sheriff and the provisions of section 168 (Appeals) of the Order of 1936 shall extend and apply in respect of any such appeal.

213.—(1) The sheriff on complaint by the Corporation may order the owner of any neglected site within a reasonable time to be fixed by the order to remove any rubbish which has resulted from the demolition or partial demolition of any building or which has accumulated on such neglected site.

As to
neglected
sites.

(2) If the order is not obeyed within the time thereby prescribed the Corporation may authorise the city engineer at any time after the expiration of such time to enter upon the neglected site and execute the order.

(3) All expenses incurred by the Corporation under subsection (2) of this section in relation to a neglected site may be recovered by the Corporation from the owner of the neglected site as damages.

(4) For the purposes of this section "neglected site" means the site of a building which has been demolished or partly demolished and which is in such a condition as to be prejudicial to the property in or the inhabitants of the neighbourhood.

214. The Corporation may plant or authorise the planting of trees or shrubs in any street and provided a sufficient free space at each side be left open and available for the carriageways and footways may lay out or authorise the laying out of the centre portion of any street in shrubbery or pleasure ground or may provide island platforms for pedestrians. Provided that

Planting of
trees &c. in
streets.

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PART IX.
 —cont.

15 & 16

Geo. 5. c. 68.

25 & 26

Geo. 5. c. 47.

the powers conferred on the Corporation by this section shall be in addition to and not in derogation of the provisions of section 1 of the Roads Improvement Act 1925 or of section 13 (4) of the Restriction of Ribbon Development Act 1935. Provided also that for the purposes of section 7 of the Telegraph Act 1878 any work done in exercise of the powers conferred by this section shall be deemed to be work done in the exercise of an undertaking authorised by an Act of Parliament and the Corporation shall be deemed to be the undertakers.

Prohibition
 of persons
 vehicles &c.
 on grass
 margins.

215.—(1) Where the Corporation maintain any grass or other area which is situated in or forms part of or adjoins any street and which is laid out or levelled for ornamental purposes any person who wilfully walks or otherwise proceeds or rides or drives any horse cattle or vehicle on over or across any such area shall be guilty of an offence and shall be liable to a penalty not exceeding twenty shillings:

Provided that this section shall not prevent a person driving a vehicle on to the grass margin of a street in an emergency or for the purpose of avoiding an accident.

(2) Nothing contained in this section shall affect the duty of the Corporation under section 58 of the Road Traffic Act 1930.

Power to
 purchase
 lands
 houses &c.
 for
 additional
 improve-
 ments.

216.—(1) The Corporation may resolve to acquire lands and heritages or any part thereof within the city (not being lands and heritages belonging to and acquired and used by any railway company or the Aberdeen Harbour Commissioners as a railway or railway station or depot or as part of a harbour dock or wharf or for the purposes of the undertaking of the said commissioners) for the purpose of widening enlarging extending or otherwise improving any street and they may hold sell or feu any parts of such lands and heritages which are not required for such purposes or they may build on such lands and heritages.

(2) In order to acquire such lands and heritages the Corporation shall have power to purchase and take the same by agreement under the Lands Clauses Acts and failing such purchase by agreement they may present a petition to the sheriff for authority to put in force the powers of the Lands Clauses Acts with respect to the

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acquisition of lands otherwise than by agreement in the manner provided in section 60 of the Burgh Police (Scotland) Act 1892.

PART IX.
—cont.

(3) Any owner or occupier whose property may be affected or the Corporation if dissatisfied with the decision of the sheriff may appeal to the Secretary of State who may order further inquiry or take such other steps as he may think desirable in the circumstances and may thereafter issue an order either in accordance with the prayer of the petition or with such modifications or alterations thereon as may appear to him to be requisite and may make such order as he thinks fit in reference to the costs charges and expenses incurred in relation to such order.

(4) Nothing in this section shall affect the operation of the Restriction of Ribbon Development Act 1935.

217.—(1) The owner of every house where there is no provision for a supply of water for domestic or sanitary purposes or where in the opinion of the Corporation the provision made is inadequate shall when required by notice by the Corporation make such provision for the introduction or increase of such supply as the Corporation may consider necessary and as may be specified in the notice.

Water and
water-
closets.

(2) Any owner who does not comply with any notice given by the Corporation under the provisions of this section or who fails to execute to the satisfaction of the Corporation and within the time specified in the notice the works required to comply with such notice shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) An owner may appeal to the sheriff against any notice under the provisions of this section where such notice relates to any house where in the opinion of the Corporation the existing provision made for a supply of water is inadequate by giving notice of appeal to the sheriff within twenty-one days after the notice is received or such longer time as the sheriff may allow and no proceedings shall be taken in respect of any notice whilst the appeal is pending and the provisions of section 103 (Procedure on appeals to sheriff) of the Housing (Scotland) Act 1925 shall mutatis mutandis apply to any such appeal.

15 & 16
Geo. 5. c. 15.

PART X.

BYELAWS AND JURISDICTION.

A.—Byelaws.

Confirma-
tion of
byelaws.

218.—(1) Except as otherwise expressly provided in this Order byelaws made under the powers of the sections of this Order of which the marginal notes are respectively set out in the first column of the Fifth Schedule to this Order shall not take effect unless and until they have been confirmed by the authority designated in the second column of the said schedule opposite such sections respectively (hereinafter in this section referred to as “the confirming authority”) and the confirming authority may allow modify or disallow the same as they may think fit.

(2) Not less than one month before application is made by the Corporation or by the magistrates as the case may be to the confirming authority for the confirmation of a byelaw as provided by this section notice of the intended application shall be published in one or more local newspapers circulating in the city and for a period of not less than one month before making such application a copy of the proposed byelaws shall be kept at the office of the town clerk and shall be available for inspection during office hours without charge and the town clerk shall furnish a copy of the proposed byelaws to any ratepayer on application.

(3) Any person who objects to any proposed byelaw or any proposed alteration of a byelaw may during the last mentioned period of one month send notice of his objection (which shall contain detailed reasons therefor) to the confirming authority and a copy of such objection shall at the same time be sent to the town clerk and the confirming authority shall consider the objection and any answers thereto by the Corporation before confirming the byelaw.

Application
of sections
of City
Acts to
byelaws.

219. Except where otherwise provided in this Order the following provisions and enactments contained in the Order of 1936 shall so far as applicable extend and apply in reference to byelaws and offences under this Order as fully and effectually as if those sections had

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(with any necessary modifications) been re-enacted in and formed part of this Order :— PART X.
—cont.

- Section 161 (Byelaws to be signed);
- Section 162 (Publication of byelaws);
- Section 163 (Byelaws to be binding on all parties);
- Section 164 (Evidence of byelaws);
- Section 165 (Penalty on pulling down boards exhibiting byelaws).

220. The Corporation or the magistrates as the case may be may by any byelaws made under the provisions of this Order provide for the imposition on offenders against the same of such reasonable penalties as they think fit not exceeding the sum of forty shillings and a daily penalty not exceeding ten shillings. Penalty for infringement of byelaws.

B.—Jurisdiction of police court and recovery of penalties.

221.—(1) Subject to the provisions of the Summary Jurisdiction (Scotland) Acts the magistrates or any one or more of them shall except where otherwise provided in the City Acts have jurisdiction under the City Acts for the trial in a summary manner and punishment of crimes and offences under the provisions of the City Acts. Jurisdiction of magistrates.

(2) For the purposes of this Head of this Part of this Order references to the City Acts shall include references to any byelaws made in pursuance of the City Acts.

222. In the courts to be held under the authority of this Order the Procurator-fiscal for the time shall be the prosecutor of or complainer against all persons accused of offending against any of the provisions of the City Acts. Prosecutor in police court.

223. It shall be competent to the magistrate at his discretion in lieu and place of or in addition to any punishment by imprisonment or fine or pecuniary penalty to ordain any offender against the provisions of the City Acts to find caution for good behaviour or for keeping the peace for any period not exceeding six months and under a penalty not exceeding twenty pounds and to sentence such offender to imprisonment until such Offenders may be ordained to find caution.

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PART X.
—cont.

caution be found or until liberated in manner after mentioned but such imprisonment shall be subject to the limitation after mentioned.

Warrants
may be
executed in
the harbour
of Aberdeen.

224. It shall be lawful to execute ~~the~~ warrants to be granted by the magistrate under the provisions of the Summary Jurisdiction (Scotland) Acts and the City Acts in any part of the harbour or bay of Aberdeen.

On non-
payment of
penalties
offenders
may be
imprisoned.

225. Where immediate payment is not made of any fine pecuniary penalty forfeiture damages sums of money or expenses authorised awarded or decerned for by the magistrate under the provisions of the City Acts it shall be lawful for the magistrate to adjudge the person found liable for the same to be imprisoned till such fines penalties forfeitures damages sums of money or expenses are paid.

Extent of
imprison-
ment that
may be
awarded.

226.—(1) Where any person sentenced by the magistrate to pay any fine pecuniary penalty forfeiture damages sums of money or expenses or to find caution under the authority of the City Acts is imprisoned for non-payment of such fine pecuniary penalty forfeiture damages sums of money or expenses or for want of such caution the period of imprisonment shall not in any such case exceed the period of sixty days or any shorter period which may be specified in the sentence.

(2) Where any person has been sentenced to find caution in addition to any punishment such person shall not be detained in prison under one conviction for a longer period than sixty days and on the expiration of the period of imprisonment such person shall be set at liberty and shall be free from the payment of any such fine pecuniary penalty forfeiture damages sums of money or expenses and from the sentence ordering him to find caution.

Recovery
of damages
under City
Acts.

227. All damages forfeitures and expenses directed to be paid or imposed by the provisions of the City Acts of which the recovery is not specially therein provided for may be sued for and recovered along with the expenses of the action in the same manner as any debt may be sued for and recovered by the law and practice of Scotland.

228. In all cases where any sum of money is by the City Acts authorised to be recovered as a fine penalty forfeiture damages or otherwise from any person it shall be lawful for the magistrate if he see fit to adjudge and sentence such person in addition thereto to pay the expenses of the complaint and proceedings thereon.

PART X.
 —cont.
 Expenses of process may be decerned for.

229.—(1) All fines penalties forfeitures damages and expenses directed to be paid or imposed by the City Acts (excepting any penalties which may be thereby imposed upon the Corporation and any damages sums of money or expenses specially provided by the City Acts to be payable to or recoverable by any person to whom the same may be awarded) shall notwithstanding anything to the contrary in the City Acts contained be paid to the city chamberlain and where such fines penalties forfeitures damages and expenses (excepting as aforesaid) are recoverable before the magistrate the same shall in the first instance be paid to the clerk of the police court who shall enter the same in a book to be kept for the purpose (which shall be at all times open to the inspection of the city chamberlain) and such clerk shall once every month at least pay over such fines penalties forfeitures damages and expenses as have been received by him to the city chamberlain.

Application of fines and penalties.

(2) All fines penalties forfeitures damages and expenses exigible by the Corporation under the City Acts shall when recovered be paid into the burgh fund and be dealt with in the manner provided in the City Acts.

(3) Nothing in this section shall apply to fines penalties forfeitures damages or expenses recovered in the sheriff court.

230. In all cases of prosecution under the City Acts it shall be lawful for the magistrate whose sentence has been appealed from to authorise the expenses incurred in the proceedings in such appeal to be defrayed out of the burgh fund Provided that as soon as may be after any such sentence has been appealed from as aforesaid a report shall be made to the Corporation of the facts and circumstances of the prosecution in which any such sentence has been pronounced and

Expenses of appeal.

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PART X.
 —*cont.*

appealed from and the Corporation shall thereupon either direct such sentence appealed from to be defended or not as to them shall seem proper and if they direct such ~~sentence not to be defended~~ then no expenses incurred subsequently to such direction of the Corporation shall be defrayed out of the burgh fund.

Offences
under
Public
Parks
Act &c.

231. All offences against the provisions of the Public Parks Act and the Aberdeen Harbour Acts 1895 to 1933 or any Act incorporated with the last-mentioned Acts or any byelaws made in virtue of the provisions of any of the said Acts may be tried by the magistrates as police offences and the mode of recovery of penalties and expenses provided in the City Acts shall apply to the prosecution of such offences.

Penalties
as to
cemetery
offences.

232. Penalties imposed under the provisions of Head C (Burial grounds and cemeteries) of Part V (General municipal powers) of this Order or any byelaws made in virtue of those provisions shall be recovered in the sheriff court under the provisions of the Summary Jurisdiction (Scotland) Acts.

Recovery of
penalties.

233. Any penalty under this Order or under any byelaws or regulations made under this Order unless otherwise specially provided for may be recovered in manner provided by the Summary Jurisdiction (Scotland) Acts.

PART XI.

MISCELLANEOUS.

Lands for
purposes of
Order.

234.—(1) The Corporation may from time to time as they think fit by agreement purchase feu or lease or arrange for the use of any lands or other property situated within or beyond the city for or in connection with any of the purposes of this Order.

(2) Subject to the provisions of the City Acts the Corporation may sell feu or lease on such terms as they may determine any lands buildings or other property belonging to them and held by them for any of the purposes of this Order Provided that the Corporation shall not (unless the Secretary of State otherwise directs) sell feu lease or otherwise dispose of any of the lands to

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which this section applies except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to enquire whether the direction of the Secretary of State is necessary or has been obtained.

PART XI.
 —cont.

235.—(1) The time limited by section 12 (Period for compulsory purchase of lands) of the Aberdeen Corporation Order 1930 for the compulsory purchase of lands for the purposes of that Order as extended by section 50 (Extension of time for compulsory purchase of lands for street improvements) of the Aberdeen Corporation Order 1934 is hereby further extended until the first day of October one thousand nine hundred and forty-four.

Extension of time for compulsory purchase of lands for street improvements &c.
 25 & 26 Geo. 5. c. ii.

(2) The time limited by section 26 (Period for compulsory purchase of lands) of the Aberdeen Corporation Order 1936 for the compulsory purchase of lands for the purposes of Part III (Street improvements) and Part IV (Bridge) of that Order is hereby extended until the first day of January one thousand nine hundred and forty-three.

236. The time limited by section 133 (Period for compulsory purchase) of the Order of 1936 for the compulsory purchase of lands for the purposes of Part IV (Sewers &c.) of that Order is hereby extended until the first day of January one thousand nine hundred and forty-three.

Extension of time for compulsory purchase of lands for sewers.

237.—(1) Whereas in virtue of a charter granted by King Robert the Bruce to the burgesses and community of the burgh of Aberdeen dated the tenth day of December in the fourteenth year of the reign of that monarch (one thousand three hundred and nineteen) the Corporation are the owners of an area of land situated in the parish of Newhills and county of Aberdeen known as Brimmond Hill extending to five hundred and twenty acres or thereby (hereinafter referred to as "Brimmond Hill") And whereas certain owners of adjoining lands and others are accustomed to graze cattle and other stock on and to use for other purposes Brimmond Hill although doubts exist as to the rights of such owners and others so to do And whereas it is expedient that Brimmond Hill should be held by the Corporation freed

As to Brimmond Hill.

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—cont.

from any rights of grazing or otherwise and that the further powers in this section contained should be conferred on the Corporation with respect to Brimmond Hill. Now therefore Brimmond Hill shall vest in the Corporation for and on behoof of the common good free from all rights (if any) of grazing or otherwise whatsoever now vested in or exercised by any company body or person with respect to Brimmond Hill:

Provided that the Corporation shall make compensation to any company body or person whose rights (if any) with respect to Brimmond Hill are taken away under the provisions of this section and the amount of such compensation shall failing agreement be determined by arbitration under the provisions of the Lands Clauses Acts with respect to the taking of lands otherwise than by agreement.

(2) The Corporation may exercise with respect to Brimmond Hill any of the powers conferred on them by this Order with respect to the parks. Provided that any byelaws with respect to Brimmond Hill made under the provisions of this section shall before confirmation be subject to the reasonable approval of the county council of the county of Aberdeen.

Power to
shut up
part of
certain
streets.

238.—(1) The Corporation may stop up permanently that part of the lane or footpath in the city known as Regent Walk lying between a line drawn across Regent Walk in continuation of the east side of that part of High Street lying to the south of Regent Walk and a line drawn across Regent Walk in continuation of the west side of Dunbar Street and thereupon all rights of way over the same shall cease and be extinguished and the Corporation may appropriate the site and soil of the said portion of Regent Walk so stopped up and the site and soil thereof shall vest in the Corporation and the Corporation may sell and convey the same to the University Court of the University of Aberdeen on such terms and conditions as may be agreed between the Corporation and the said University Court.

(2) The Corporation may stop up permanently that part of Advocates Road in the city lying between a line drawn across the east end of Advocates Road in continuation of the west side of that part of King Street lying to the north of Advocates Road and a line drawn

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across Advocates Road (at right angles to the sides thereof) three hundred feet or thereabouts eastward from the point of junction of Advocates Road with King's Crescent such last-mentioned point being on the south side of Advocates Road and the east side of King's Crescent and the Corporation may appropriate the site and soil of the said portion of Advocates Road so stopped up and the site and soil thereof shall vest in the Corporation and the Corporation may utilise the same for such of the purposes of the City Acts as they may think fit Provided that if the Corporation stop up the said portion of Advocates Road under the provisions of this section they shall provide a suitable and adequate alternative street in substitution therefor between King's Crescent and King Street.

PART XI.
—cont.

239. Notwithstanding the stopping up of the parts of the lane or footpath known as Regent Walk and of the road known as Advocates Road authorised to be stopped up by the section of this Order the marginal note whereof is "Power to shut up part of certain streets" the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove from such lane or footpath and from such road any telegraphic line which is in under along over or across the same respectively and the Corporation shall pay to the Postmaster-General the expense incurred by him of and incidental to the removal of such telegraphic line and of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may require.

For protection of
Postmaster-General.

In this section the expression "telegraphic line" has the same meaning as in the Telegraph Act 1878.

240. Notwithstanding anything in this Order contained or shown on the plan relating to Hazlehead referred to in the section of this Order of which the marginal note is "Interpretation" there shall by virtue of this section be transferred to the common good from the rating accounts of the Corporation that portion of Hazlehead comprising a strip of ground lying along the south-east boundary of Hazlehead as such strip of ground is shown coloured red on the plan signed by William McLean Watson the chairman of

Transfer of
portion of
Hazlehead
to common
good.

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PART XI.
—cont.

the commissioners to whom this Order was referred and deposited with the town clerk and the sum of three hundred and fifteen pounds shall be paid from the account of the common good in respect of such transfer to the account of the Corporation in respect of the parks.

Power to
provide
camping
ground.

241. The Corporation may as part of any of their undertakings or services utilise any land belonging to them for camping grounds or may acquire or lease lands for this purpose and they may in connection with any such camping grounds (a) provide such facilities for camping purposes as they think proper and (b) make such reasonable charges for camping sites and impose such conditions and make and enforce such regulations for the use of such sites and with respect to any such camping grounds as they think fit.

Power to
establish
information
bureaux.

242. The Corporation may establish and maintain within the city an information bureau or information bureaux for the purpose of supplying information with regard to the city or may subscribe towards the establishment of any such bureau or bureaux and may if they think fit make charges for the use of such bureau or bureaux or for information supplied by means thereof.

Acceptance
of gifts of
property.

243. The Corporation may accept hold and administer any gift of property whether heritable or moveable for any public purpose.

Power to
cut off
disused
water
pipes.

244. Where any pipe laid for the purpose of supplying the water of the Corporation to any premises whether through the premises becoming unoccupied or otherwise has become disused or derelict the city engineer and any officer of the Corporation appointed by him and producing his appointment if required may after giving notice to the owner or occupier cut off any such pipe at any point at which it shall seem to him to be proper so to do whether within or without such premises :

Provided that the powers contained in this section shall not be exerciseable in respect of any pipe laid in property belonging to a railway company (other than dwelling-houses or property not used primarily for railway purposes) and forming part of the undertaking of such company.

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245. Any person being the occupier of a building or part of a building or other place of public resort for the sale or consumption of provisions or refreshments of any kind who opens his premises for business before five of the clock in the morning or keeps them open or does business therein after midnight unless specially allowed by the magistrates shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

PART XI.
 —cont.

Hours within which provision shops shall not be kept open.

246.—(1) The Corporation may make byelaws for the purpose of securing that any premises used or to be used for the purpose of carrying on the business of a hairdresser barber manicurist or chiropodist are suitable and adequate for such purpose and of securing the cleanliness of such premises and of the instruments towels and materials used by hairdressers barbers manicurists and chiropodists in such premises or elsewhere where a charge is made for attendance or service.

Byelaws as to premises &c. of hairdressers barbers &c.

(2) Any person using any such premises shall keep exhibited in a suitable place a copy of the byelaws made by the Corporation under this section.

(3) Any person who acts or offends against any byelaw made under this section shall be guilty of an offence and shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

247. The provisions of section 32 of the Public Health (Scotland) Act 1897 so far as relating to byelaws as to offensive businesses shall within the city extend to the trade or business of a fish fryer notwithstanding that such trade or business may not have been declared to be an offensive business in pursuance of the provisions of the Public Health Acts.

Byelaws in respect of fried fish shops.

248. Any person who throws casts deposits or by any other means conveys or causes to be conveyed any rubbish or other solid matter into any river stream or watercourse so as to interfere with the amenity of such river stream or watercourse shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

Penalty for throwing rubbish into streams.

249.—(1) Where a tank or other fixed container which has been used for the storage of petroleum spirit and is no longer used for that purpose is situated on any premises (other than premises forming part of any dock

Derelict petrol tanks.

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PART XI.
—cont.
18 & 19
Geo. 5. c. 32.

or harbour within the jurisdiction of a harbour authority as such expressions are defined in the Petroleum (Consolidation) Act 1928) the occupier or if there is no occupier the proprietor of such premises shall give notice to the chief officer appointed by the Corporation for the administration of the Petroleum (Consolidation) Act 1928 and Acts amending that Act that such tank or container is no longer so used and on being required by the said chief officer shall in the manner directed and within the period specified by him take such steps as may be reasonably practicable to prevent danger from such tank or container.

(2) Any officer of the Corporation duly authorised by them may require the occupier or if there is no occupier the proprietor of such premises to afford such officer all necessary facilities for inspecting such tank or container and for ascertaining whether steps have been taken to prevent danger from such tank or container in accordance with the provisions of this section.

(3) Any person who fails to comply with the provisions of this section or who obstructs any such officer shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(4) In this section the expression "petroleum spirit" has the meaning assigned to it by the Petroleum (Consolidation) Act 1928.

Blasting
operations.

250.—(1) No blasting operations shall be carried out within the city without a permit from the city engineer and the city engineer may attach to any permit under the provisions of this section such conditions as he may deem necessary or advisable with a view to the prevention of danger or annoyance to the public.

(2) Any person proposing to carry out blasting operations shall give at least forty-eight hours' notice in writing to the city engineer of his intention so to do.

(3) Any person who carries out blasting operations without giving notice as aforesaid to the city engineer and obtaining a permit therefor or who contravenes or fails to comply with the conditions of such permit shall be guilty of an offence and shall be liable to a penalty not exceeding five pounds.

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(4) The provisions of this section shall not apply to or in respect of any property belonging to the Aberdeen Harbour Commissioners and forming part of their undertaking.

PART XI.
—cont.

(5) Nothing in this section shall affect the operation of the Factories Act 1937 or any regulation or order made thereunder.

251. Subject to the provisions of this Order the following provisions shall apply with respect to licences granted or renewed under the provisions of this Order (that is to say):—

General provisions as to licences.

- (1) Every application for the grant or renewal of a licence shall be made in writing to the Town Clerk who shall when requested supply forms of application to intending applicants:
- (2) All such applications shall be lodged with the town clerk and in the case of the renewal of a licence such application shall be lodged not later than one month prior to the expiry of the current licence:
- (3) Every licence shall remain in force for one year or until the twenty-eighth day of May next ensuing or for such shorter period as may be prescribed in the licence unless the licence is sooner suspended revoked or forfeited.

252. A charge not exceeding the amount of the respective charges set forth in the Sixth Schedule to this Order may be made in respect of the grant or renewal of any licence granted or renewed under the provisions of this Order.

Charges for licences.

253. The Corporation and any officer appointed by them and exhibiting his authority if required may at all reasonable hours in the daytime enter into and upon any lands as well for the purpose of inspection as for the purpose of executing any work authorised to be executed by them under the provisions of the City Acts without being liable to any legal proceedings on account thereof Provided that except in case of emergency or where otherwise provided in the City Acts the Corporation or such officer shall not make any such entry unless with the consent of the occupier of such lands until after the expiration of twenty-four hours' notice for that purpose given to such occupier.

Entry on premises for purposes of City Acts.

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 —cont.
 Application
 of City
 Acts.

254. Except where otherwise provided in this Order the following provisions and enactments contained in the Order of 1936 shall so far as applicable extend and apply in reference to the provisions of this Order as fully and effectually as if those sections had with any necessary modifications been re-enacted in and formed part of this Order :—

- Section 150 (Penalty for refusing entry or inspection to be made);
- Section 151 (As to service of notice on owners and occupiers);
- Section 152 (Corporation in default of owner or occupier may execute works and recover expenses);
- Section 153 (Occupier in default of owner may execute works and deduct expenses from his rent);
- Section 154 (How expenses are to be recovered from owner or occupier);
- Section 155 (Power to levy charges on occupier who may deduct same from rent);
- Section 156 (Occupier not to be liable for more than amount of rent due);
- Section 157 (Corporation may allow time for repayment by owner or occupier of improvement expenses &c.);
- Section 158 (Proceedings in case of tenants opposing execution of Order);
- Section 159 (Recovery of damages under Order);
- Section 166 (Penalty on persons obstructing officers in their duty);
- Section 167 (Penalty where no penalty is otherwise stated).

Recovery of
 expenses
 from
 owners.

255. Where in pursuance of any of the provisions of this Order any expense of and in connection with the execution by the Corporation or by their direction of any works is recoverable from any person and such expense is not forthwith paid the Corporation may in their option and without prejudice to their right to recover such expense by any other method competent to them recover the said expense from such person in the manner provided by the City Acts for the recovery

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of drainage rates authorised by the City Acts to be levied by way of private assessment. PART XI.
—cont.

256. Nothing in this Order contained shall prejudice take away diminish alter or abridge any statutory or other rights powers privileges jurisdictions or authorities acquired by vested in or enjoyed by the Aberdeen Harbour Commissioners to in or over the port and harbour of Aberdeen (as defined by the Aberdeen Harbour Act 1895) and such rights powers privileges jurisdictions and authorities shall subject to any statutory or other rights powers privileges jurisdictions and authorities acquired by vested in or enjoyed by the Corporation prior to the commencement of this Order continue to be held exercised and enjoyed by the Aberdeen Harbour Commissioners as if the Act confirming this Order had not been passed. Saving for
Aberdeen
Harbour
Commis-
sioners.

58 & 59 Vict.
c. cxxxvi.

257. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown or shall subject to the provisions of this Order any lands buildings or works vested in or occupied by the Crown or any department of His Majesty's Government except to such extent as His Majesty or such department may voluntarily agree and in particular nothing herein contained shall authorise the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land heritages subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Crown Lands or of the Board of Trade respectively without the consent in writing of the Commissioners of Crown Lands or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose. Crown
rights.

258. Nothing in this Order shall prejudice or affect the provisions of the City Acts with respect to any part of the city which under the provisions of the City Acts is not fully assessable for the purpose of the rates leviable under the City Acts. Saving for
provisions of
City Acts as
to parts of
city not
fully rated.

259. All expenditure incurred by the Corporation in the exercise of the powers conferred and the performance of the duties imposed on them by this Order or the byelaws made thereunder and not otherwise recovered as in this Order provided shall be paid As to
expenditure
for pur-
poses of
Order.

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PART XI. or satisfied out of the burgh fund and shall be deemed
—*cont.* to be expenditure payable out of the consolidated rate
of the city under the appropriate head.

Repeal of
Acts.

260. Subject to the provisions of this Order the Acts and Orders specified in the Seventh Schedule to this Order are (so far as not already repealed) hereby repealed to the extent mentioned in the third column of that schedule and on and after the commencement of this Order all references to the repealed Acts or any of them in the City Acts and in any other Acts and Orders shall be read and have effect as if this Order or any Act or Order amending the same were mentioned therein instead of the repealed Acts or any of them.

Rescission
of adoption
of Burgh
Police
(Scotland)
Acts.

261. The adoption by the Corporation prior to the commencement of this Order of any of the provisions of the Burgh Police (Scotland) Acts 1892 to 1911 relating to matters in respect of which there are corresponding provisions in this Order shall from the commencement of this Order be deemed to be rescinded and such provisions shall not in virtue of such adoption apply to the city.

General
saving
from effect
of repeal.

262. Subject to the provisions of this Order and notwithstanding the repeal of the repealed Acts or anything contained in the two immediately preceding sections of this Order—

- (a) all existing agreements made by the Corporation under any of the repealed Acts shall be and continue valid and available for all purposes and for and against all parties as if the Act confirming this Order had not been passed;
- (b) all property vested in the Corporation at the commencement of this Order shall continue vested in the Corporation to the same effect and extent and all acts works matters and things done or commenced under the powers of the repealed Acts or any of them which were at the commencement of this Order valid and available or in progress and all existing notices notices to treat agreements awards conveyances contracts titles deeds instruments feus leases wayleaves obligations rights and

remedies shall be and continue valid and available for all purposes and for and against all parties and may be continued enforced and completed as if the Act confirming this Order had not been passed;

- (c) all actions arbitrations submissions prosecutions and proceedings by with or against the Corporation by reason of any matter or thing done before the commencement of this Order in execution of or in relation to any of the repealed Acts may be continued commenced or prosecuted by with or against the Corporation as if the Act confirming this Order had not been passed;
- (d) all existing byelaws rules regulations orders licences registrations consents sanctions and approvals in execution of or in relation to or granted in pursuance of any of the repealed Acts shall continue in force until repealed altered or revoked under the provisions of this Order or until their expiration and may be enforced in like manner and with the same penalties as if made for like purposes respectively under the provisions of this Order;
- (e) all rents rates charges and other sums at the commencement of this Order due to the Corporation under the repealed Acts may be collected and recovered by the Corporation as if the Act confirming this Order had not been passed;
- (f) all books plans and documents which under any of the repealed Acts or otherwise would have been receivable in evidence shall be admitted in evidence in all courts and proceedings as if the Act confirming this Order had not been passed.

263. The costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of the burgh fund in such manner as the Corporation may determine. Costs of Order.

The SCHEDULES referred to in the foregoing Order.

THE FIRST SCHEDULE.

AGREEMENT between Miss ELIZABETH CROMBIE DUTHIE of Ruthrieston (hereinafter referred to as "Miss Duthie") of the first part and the LORD PROVOST MAGISTRATES AND TOWN COUNCIL OF THE ROYAL BURGH AND CITY OF ABERDEEN (hereinafter referred to as "the Town Council") of the second part.

WHEREAS Miss Duthie is desirous out of the means and estate to which she has succeeded by the death of her uncle the late Walter Duthie W.S. Edinburgh and of her brother the late Alexander Duthie advocate in Aberdeen to perpetuate the memory of her said relatives and their hereditary connection with the city of Aberdeen as well as to evince her own interest in the said city and in the well-being of its inhabitants and with this view has resolved to present to the Town Council a public park or pleasure ground (hereinafter referred to as "the proposed park") for the recreation use and behoof of the inhabitants of the said city of Aberdeen And whereas Miss Duthie has recently purchased from the Town Council for the purpose of being converted into and forming part of the proposed park all and whole the lands and others in the parish of Old Machar and county of Aberdeen being the lands particularly described in the feu charter granted by Alexander Gibbon Esquire of Johnston James McGregor Allan residing in London son of the now deceased Mrs. Jane Gibbon Knox or Allan sometime residing in Aberdeen widow of the deceased Doctor Colin Allan late surgeon of Her Majesty's Forces sometime residing at Frederickton New Brunswick and Alexander Cochran advocate in Aberdeen the surviving trustees original and assumed of the said Mrs. Jane Gibbon Knox or Allan with consent of William Paul advocate in Aberdeen in favour of the lord provost baillies and remanent members of the Town Council of the Burgh of Aberdeen dated the 4th 7th and 11th days of July 1876 and recorded in the division of the general register of sasines applicable to the county of Aberdeen on the 7th day of August same year which lands and others are hereinafter referred to as "the lands of Allanvale":

And whereas Miss Duthie has also purchased from the Aberdeen Cemetery Company Limited for the purpose of being converted into and forming part of the proposed park all and whole that part of the ninth lot of the town and lands of Pitmuxton lying to the east of the road which forms the east boundary of the cemetery at Allanvale belonging to the said cemetery company lying in the said parish of Old Machar and county of Aberdeen and being part of the lands particularly described in the disposition granted by Colin Allan coppersmith in Aberdeen and others in favour of the said cemetery company dated the 27th and 30th days of December 1873 and 5th 8th and 10th days of January 1874 and recorded in the said division of the general register of sasines applicable to the county of Aberdeen on the 13th day of March 1874 which part so purchased is hereinafter referred to as "the property purchased from the cemetery company":

And whereas Miss Duthie is also desirous of acquiring for the purpose of being converted into and forming part of the proposed park all and whole the lands of Arthurseat and others in the said parish of Old Machar and county of Aberdeen belonging to Arthur Steuart Williamson youngest son of the late Doctor Benjamin Williamson physician in Aberdeen being the lands particularly described in the instrument of sasine in favour of the said Benjamin Williamson in life-rent and the said Arthur Steuart Williamson in fee recorded in the particular register of sasines reversions &c. kept for the counties of Aberdeen and Kincardine on the 8th day of April 1850 which lands and others are hereinafter referred to as "the lands of Arthurseat":

And whereas the said Arthur Steuart Williamson left this country for Australia in the year 1857 and no communication has been received from him since 1863 nor has he been heard of by his relatives since that time and they are in absolute ignorance of his residence or address and Alexander Edmond advocate Aberdeen was nominated and appointed by the Lords of Council and Session to be his *Factor loco absentis* conform to interim Act and decree in favour of the said Alexander Edmond dated the 30th day of June and extracted the 12th day of July both in the year 1877 but his powers do not extend to transacting for a sale by agreement of any lands or heritable property belonging to the said Arthur Steuart Williamson:

And whereas Miss Duthie is also desirous of acquiring for the purpose of being converted into and forming part of the proposed park all and whole those parts and portions of the lands of Polmuir after described all lying in the said parish of Old Machar and county of Aberdeen (that is to say) (First) that piece of ground bounded on the north by the Deeside Railway on the

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1st SCH.
 —cont.

west by the lands of Allanvale on the south by the lands of Arthurseat and on the east partly by the lands of Arthurseat and partly by the road leading from Sycamore Place to Devanha Distillery (Second) that piece of ground of a triangular shape and included within the following boundary (that is to say) commencing at the south side of the said road leading from Sycamore Place to Devanha Distillery at a point twenty-two yards or thereby east from the east boundary wall of the lands of Arthurseat running thence southwards in a straight line for a distance of thirty yards or thereby to the said boundary wall and thence north-westwards along the said boundary wall to the point of commencement and (Third) that piece of ground measuring one acre one rood and sixteen poles or thereby lying to the west of the Caledonian Railway viaduct across the river Dee bounded on the west by the lands of Arthurseat on the north and east by part of the said lands of Polmuir and on the south by the north bank of the river Dee together also with the said bank of the river Dee in so far as it extends along the south boundary of the said last-mentioned piece of ground which three pieces of ground above described form part of the lands particularly described in the instrument of sasine in favour of Doctor William Pirrie physician in Aberdeen and of George King bookseller in Aberdeen and William Duncan merchant there both now deceased the trustees under the antenuptial contract of marriage entered into between William Matthews junior leather merchant in Aberdeen and Mrs. Barbara or Barbara Kyd Dingwall Fordyce afterwards Matthews both now deceased which instrument of sasine is dated the twenty-second and recorded in the particular register of sasines &c. kept for the counties of Aberdeen and Kincardine on the twenty-third days of September both in the year one thousand eight hundred and forty-six which subjects are hereinafter referred to as "the said parts of Polmuir":

• And whereas the Town Council are about to apply to Parliament in the ensuing session for an Act to confer on them further borrowing powers and for other purposes and Miss Duthie has requested them to include in the said Bill such clauses as may be requisite for enabling them to acquire the lands of Arthurseat and the said parts of Polmuir by compulsory purchase for the purpose of being converted into and forming part of the proposed park and the Town Council have agreed to such request on the conditions after mentioned:

Therefore the said parties have agreed as follows viz. :—

First The Town Council shall promote a Bill in the Session of Parliament next after November one thousand eight hundred and eighty for the purpose inter alia of confirming this agreement and conferring

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upon them such powers and authority as may be requisite to enable them to acquire by compulsory purchase the lands of Arthurseat and the said parts of Polmuir for the purpose of being converted into and forming part of the proposed park :

1st Sch.
—cont.

Second Miss Duthie hereby binds and obliges herself her heirs executors and successors to bear and free and relieve the Town Council of the whole costs charges and expenses incurred or which may be incurred by the Town Council in connection with or in reference to the said Bill in so far as such costs charges and expenses are applicable to the portion of the Bill relating to the proposed park and that whether the Act so to be applied for shall be obtained or not :

Third The Town Council shall as soon as may be after the passing of the Act so to be applied for proceed to take such steps as may be competent to them under the same for putting into operation and carrying into effect the powers thereby conferred upon the Town Council for the purchase of the lands of Arthurseat and the said parts of Polmuir :

Fourth When and so soon as the amount of the purchase price or compensation to be paid for the lands of Arthurseat and the said parts of Polmuir respectively is ascertained and fixed Miss Duthie shall be bound as she hereby binds and obliges herself and her foresaids to make payment to the Town Council of the amount of such purchase price or compensation and also to pay to the Town Council or free and relieve them of the whole costs charges and expenses which may have been incurred by them or for which they may be liable in connection with or in consequence of the said purchase or in relation thereto including all claims competent to the tenants of the said subjects under their respective leases :

Fifth Miss Duthie binds and obliges herself and her foresaids to lay out at her own expense the lands of Allanvale the property purchased from the cemetery company the lands of Arthurseat and the said parts of Polmuir as a public park or pleasure ground to be called "The Duthie Park" according to a plan and design prepared by William R. McKelvie surveyor in Dundee consisting of four sheets or drawings which are all marked with the letter "A" and signed by the parties as relative hereto or with such alterations thereon as may be approved of by

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1ST SCH.
—cont.

Miss Duthie and the Town Council and that within the space of two years after the Town Council shall have obtained entry to the lands of Arthurseat and the said parts of Polmuir declaring that although in the formation of the proposed park it is intended to remove the south enclosing wall of the lands of Arthurseat and of the said parts of Polmuir so as to leave room for a carriage drive nothing herein contained shall infer any obligation either upon Miss Duthie or the Town Council to form the carriage drive shown upon the said plan and design between the proposed park and the river Dee :

Sixth Miss Duthie binds and obliges herself and her foresaids previous to the execution of the disposition after mentioned to redeem the whole annual feu duties and casualties of superiority payable for or in respect of the proposed park in so far as she may be entitled to redeem the same and in the event of her being unable to do so to provide a sum sufficient to pay the said annual feu duties and casualties of superiority :

Seventh On the completion of the proposed park Miss Duthie binds and obliges herself and her foresaids to grant execute and deliver a formal and valid disposition in favour of the Town Council of the lands of Allanvale the property acquired from the Cemetery Company and the said parts of Polmuir in so far as already belonging to her it being hereby provided and declared that the disposition conveyance or other title to the lands of Arthurseat and the other portions of the said parts of Polmuir shall be taken by the Town Council directly in their own favour for the purposes of the proposed park :

Eighth The Town Council bind and oblige themselves as the local authority for the said royal burgh and city of Aberdeen under the Public Parks (Scotland) Act 1878 to accept the gift of the proposed park and to uphold and maintain the same in all time coming as a park public walk or pleasure ground under and in terms of the said Act for the recreation use and behoof of the inhabitants of the said city of Aberdeen :

Ninth The Town Council shall have power at any time if they shall deem it expedient so to do to feu or lease that portion of the proposed park lying along the north side thereof adjoining the Deeside Railway measuring six acres or thereby and shown upon

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a plan or drawing prepared by the said William R. McKelvie marked with the letter "B" and signed by the parties as relative hereto and that under such conditions as the Town Council may consider proper and the feu duties and rents to be obtained by such feuing or leasing shall be applied by the Town Council towards the expense which may be incurred by them in upholding and maintaining the proposed park and for no other purpose whatever :

1st Sch.
—cont.

Tenth Any questions or differences which may arise between the parties as to the intent effect interpretation or implement of this agreement shall be and are hereby submitted and referred to John Comrie Thomson esquire advocate sheriff substitute of Aberdeen and Kincardine whom failing John Dove Wilson esquire advocate sheriff substitute of Aberdeen and Kincardine as sole arbiter and whose decision shall be final conclusive and binding on both parties :

Lastly Both parties consent to the registration hereof for preservation and execution.

In witness whereof these presents (written on this and the five preceding pages by James Meston junior writer in Aberdeen together with the marginal addition on the fifth page hereof also written by the said James Meston junior) are executed by the said parties in duplicate as follows viz. are subscribed by Miss Duthie at Aberdeen upon the twenty-sixth day of November in the year eighteen hundred and eighty before these witnesses Peter Macleod Cran city chamberlain of Aberdeen and Robert Middlemass coachman to Miss Duthie and are in terms of "The Aberdeen Municipality Extension Act 1871" subscribed on behalf of the Town Council by Peter Esslemont the lord provost George Donald the senior baillie and William Gordon the town clerk all of the said burgh of Aberdeen and sealed with the common seal of the Town Council of the said burgh all at Aberdeen upon the twenty-seventh day of the said month of November and year last mentioned before these witnesses George Strachan and James Adam Ross both writers in Aberdeen.

(Signed) P. M. CRAN
Witness.

ROBERT MIDDLEMASS
Witness.

GEORGE STRACHAN
Witness.

JAMES A. ROSS
Witness.

E. C. DUTHIE.
P. ESSLEMONT
Lord provost.
G. DONALD
Senior baillie.
W. GORDON
Town clerk.



THE SECOND SCHEDULE.

TOLLS DUES STALLAGES RATES AND RENTS TO BE TAKEN FOR THE FISH MARKET.

Dues payable on all fish other than fresh herrings brought into or sold in the market one penny farthing per hundredweight and for every fraction of a hundredweight.

Dues payable on fresh herrings brought into or sold in the market one penny farthing per cran and for every part of a cran.

For the use of the market wells for gutting or cleaning fish each hawker one penny per day.

Stallages to be charged in the market—

At a rate calculated on the superficial area of each stall or standing not exceeding sixpence per foot per week.

THE THIRD SCHEDULE.

TABLE OF CHARGES FOR MARKET STANDS IN JUSTICE STREET MARKET AND THE GREEN.

Every space of ground occupied each day or part of a day—

1. For the sale of goods commodities or wares where—

- | | | | |
|--|-------|---------------------------------------|--------------------|
| (1) A stall is placed | - - - | $\frac{1}{2}d.$ per superficial foot | Minimum charge 6d. |
| (2) A cart barrow or other vehicle is placed. | | $\frac{1}{2}d.$ per superficial foot. | |
| (3) No stall cart barrow or other vehicle is placed. | | $\frac{1}{2}d.$ per superficial foot. | |
| (4) The sale is by auction | - - - | $1\frac{1}{2}d.$ per superficial foot | Minimum charge 2s. |

2. For any purposes other than the sale of goods commodities or wares where—

- | | | | |
|--|-------|---------------------------|--------------------|
| (1) A stall is placed | - - - | 1d. per superficial foot | Minimum charge 1s. |
| (2) A cart barrow or other vehicle is placed. | | 1d. per superficial foot. | |
| (3) No stall cart barrow or other vehicle is placed. | | 1d. per superficial foot. | |

All the above charges apply to Fridays and Saturdays On other days the charges are one-half of the above charges.

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THE FOURTH SCHEDULE.

FORM OF WEIGHT TICKET FOR COAL.

CITY AND ROYAL BURGH OF ABERDEEN.

WEIGHT TICKET OR NOTE ON DELIVERY OF COAL OVER
TWO HUNDREDWEIGHT.

..... (here insert the name of buyer)

Take notice that you are to receive herewith tons
cwt. qrs. lbs. of coal.

(description of coal)

(When sold in sacks add)

in	sacks each containing	cwt.	qrs.	lbs.
1	1	1	1	1
2	2	2	2	2
3	3	3	3	3
4	4	4	4	4
5	5	5	5	5
6	6	6	6	6
7	7	7	7	7
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86	86	86	86	86
87	87	87	87	8

(When sold in bulk add)

Tons. cwt. qrs. lbs.

Weight of coal and vehicle - - -

Tare weight of vehicle - - - -

Net weight of coal herewith delivered
to purchaser - - - - ,

..... (here insert the name of seller)

..... (here insert the name of the person in charge
of the vehicle)

Date of delivery.....

NOTE.

Where coal is delivered by means of a vehicle the seller must deliver or send by post or otherwise to the purchaser or his servant before any part of the coal is unloaded a ticket or note in this form.

Any seller of coal who delivers a less quantity than is stated in this ticket or note is liable to a penalty.

Any person in charge of a vehicle used for the delivery of coal who having received a ticket or note for delivery to the purchaser refuses or neglects to deliver it to the purchaser or his servant is liable to a penalty.

THE FIFTH SCHEDULE.

CONFIRMING AUTHORITY FOR BYELAWS.

1. Number and marginal note of section.	2. Confirming authority.
15. Washhouses and drying grounds	The sheriff.
16. Corporation may provide slaughter-houses and cattle markets.	The Department of Health.
18. Byelaws as to manufacture of fire-lighters &c.	The sheriff.
19. Byelaws with respect to handling wrapping &c. of food and sale of food in open air.	The Department of Health.
41. Byelaws as to cleansing streets and collection &c. of refuse.	The Department of Health.
45. Byelaws for cleansing common stairs &c. by tenants.	The Department of Health.
56. Byelaws as to parks - - -	The Secretary of State.
60. As to parks outside city - -	The Secretary of State.
63. As to public open space near Bay of Nigg.	The Secretary of State.
64. Entertainment buildings - -	The sheriff.
70. Byelaws as to family and mixed bathing.	The sheriff.
75. Power to provide bathing pool on links.	The sheriff.
76. Jurisdiction of Corporation over seabeach.	The Secretary of State.
77. Protection of seabeach - -	The Secretary of State.
80. Byelaws as to bathing &c. -	The sheriff.
83. Byelaws as to esplanade seashore and sands.	The Secretary of State.
88. Byelaws for regulation of fair ground.	The Secretary of State.
107. Byelaws as to fish market - -	The sheriff.
109. Byelaws for Justice Street Market	The sheriff.
111. Byelaws as to use of The Green as public market place.	The sheriff.
113. Byelaws for regulation of markets	The sheriff.
117. Personal weighing machines -	The Board of Trade.

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1.	2.	5TH SCH.
Number and marginal note of section.	Confirming authority.	—cont.
127. Byelaws as to sale of coal - -	The Board of Trade.	
135. Byelaws for cemeteries - -	The Department of Health.	
168. Byelaws for regulating hackney carriages.	The sheriff.	
171. Byelaws for regulating street porters.	The sheriff.	
174. Theatres &c. to be licensed -	The sheriff.	
178. Byelaws for billiard rooms -	The sheriff.	
180. Window cleaners to be licensed -	The sheriff.	
183. Byelaws as to driving cattle -	The sheriff.	
190. Byelaws for certain street offences	The sheriff.	
191. Restrictions on advertising vehicles &c.	The sheriff.	
192. Regulation and control of loud-speakers &c.	The sheriff.	
246. Byelaws as to premises &c. of hairdressers barbers &c.	The Department of Health.	

THE SIXTH SCHEDULE.

FEES TO BE PAID ON GRANT OR RENEWAL OF LICENCES.

Nature of licence.	Amount of fee					
	For grant of licence.			For renewal of licence.		
	£	s.	d.	£	s.	d.
1. Places for keeping swine - -	0	1	0	0	1	0
2. Pleasure boats - - -	0	2	6	0	2	6
3. Fish porters - - -	0	1	6	0	1	6
4. Hackney carriage drivers - -	0	1	0	0	1	0
5. Street porters - - -	0	1	0	0	1	0
6. Theatres - - -	1	0	0	1	0	0
7. „ (Occasional) - - -	0	2	6	—	—	—
8. Window cleaners - - -	0	5	0	0	1	0

THE SEVENTH SCHEDULE.

ACTS AND ORDERS REPEALED.

1.	2.	3.
Session and chapter.	Title of Act or Order.	Extent of repeal.
25 & 26 Vict. c. cciii.	The Aberdeen Police and Waterworks Act 1862.	Section 70 so far as it relates to byelaws relative to the watching and lighting of streets the prevention of infectious disease and the putting down and removal of nuisances Part IX (except sections 144 and 146) Part XI Part XII Part XIII Part XIV Part XV Part XVI Part XVII Part XVIII Part XIX Part XX (except the provisions of section 253 which relate to the appointment of scavengers) Part XXI Part XXVII Part XXX and Part XXXIV.
30 Vict. c. li.	The Aberdeen Police and Waterworks Amendment Act 1867.	Sections 34 to 63 inclusive.
34 & 35 Vict. c. clxi.	The Aberdeen Municipality Extension Act 1871.	Section 130 section 140 sections 147 to 151 inclusive sections 153 to 159 inclusive and section 161.
44 & 45 Vict. c. lxxiii.	The Aberdeen Corporation Act 1881.	Part III sections 72 and 73 and Schedule A.
46 & 47 Vict. c. lx.	The Aberdeen Extension and Improvement Act 1883.	Sections 86 and 87.
54 & 55 Vict. c. cxciv.	Aberdeen Corporation Act 1891.	Sections 115 to 126 inclusive and the Ninth Schedule.
62 & 63 Vict. c. lx.	Aberdeen Corporation Act 1899.	Section 43 (except the proviso).
63 & 64 Vict. c. cccxiv.	The Aberdeen Police and Improvement Act 1900.	Sections 24 to 29 inclusive sections 37 to 40 inclusive section 58 sections 64 and 66 and the Second Schedule.
7 Edw. 7. c. cxi.	The Aberdeen Corporation Order 1907.	Part III (except section 17) Part V sections 28 to 30 inclusive and section 32 (except so far as relating to the appointment of officers and servants).

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1.	2.	3.
Session and chapter.	Title of Act or Order.	Extent of repeal.
1 & 2 Geo. 5. c. cxxiv.	The Aberdeen Corporation Order 1911.	Sections 4 to 9 inclusive sections 20 to 24 inclusive.
5 & 6 Geo. 5. c. l.	The Aberdeen Corporation Order 1915.	Sections 27 and 28 section 36 and sections 38 and 39.
10 & 11 Geo. 5. c. cxxiii.	The Aberdeen Corporation Order 1920.	Sections 32 and 33.
15 & 16 Geo. 5. c. cxxix.	The Aberdeen Corporation Order 1925.	Sections 4 and 5 section 6 (except subsection (5)) section 7 section 9 (except subsection (3)) sections 10 to 19 inclusive and sections 33 and 34.
20 & 21 Geo. 5. c. cxxxii.	The Aberdeen Corporation Order 1930.	Part IV section 87 section 89 (except subsection (2)) and the Second Schedule.
25 Geo. 5. c. ii.	The Aberdeen Corporation Order 1934.	Section 23 Part V Part IX (except section 87) Part XI Part XII and sections 122 and 123 sections 125 to 127 inclusive.
26 Geo. 5. & 1 Edw. 8. c. lxxvii.	The Aberdeen Corporation (Streets Buildings Sewers &c.) Order 1936.	Sections 22 and 78.
26 Geo. 5. & 1 Edw. 8. c. lxxviii.	The Aberdeen Corporation Order 1936.	Sections 39 to 41 inclusive Part VIII (except section 60) sections 61 to 65 inclusive sections 71 and 72 and the Third Schedule.

7TH SCH.
—cont.

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